ATTORNEY-BUILT · FOR THE NOV 10, 2026 COLORADO LLP EXAM

THE SUCCESS

Complete Library Edition · 2026

Every sample question we've written — all 405, every answer explained — plus all 6 sample essays with model answers and grading notes.

Created by a Colorado family law attorney with 23+ years in domestic relations practice — a Colorado District Court-appointed Child & Family Investigator (CFI) and former government investigator for Denver Human Services.

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How to Use This Library

All 405 original sample questions plus all six sample essays. Five rounds, one plan — work it in order.

ROUND	WHAT TO DO	WHERE
01	**DIAGNOSE** Pick a subject and take it cold in Part I — answers hidden, no notes. Mark every miss. Your miss list becomes your personal syllabus.	PART I
02	**STUDY THE WHY** Look up every miss in Part II. The ✓/✗ lines kill each wrong answer, the **Why** states the rule, the **Authority** tells you what to read next. Review your lucky guesses too — a guess is a miss in disguise.	PART II
03	**WRITE THE ESSAYS** Outline each of the six sample essays in 25 minutes before reading the model answer. Then compare against the grading notes — structure is what scores.	PART III
04	**DRILL THE NUMBERS** 91 days, 182 days, $250, 12% compounded monthly, 5 years, 10% — the exhibits collect the thresholds. Drill them until they're reflex.	EXHIBITS
05	**RE-TEST YOUR MISSES** In the final stretch, re-take your miss list cold in Part I. Repeat until the list is empty. An empty miss list is what ready feels like.	PART I, AGAIN

PRO MOVE	**Build timed practice exams.** The real exam is 90 family-law questions (180 minutes) plus 45 ethics questions (90 minutes) — 2:00 a question. Pull 90 + 45 from Part I and sit them against the real clock — this library holds three full exams' worth. Train at 90 seconds a question and exam day feels slow.

THE RUNWAY TO NOVEMBER 10

AUGUST	SEPTEMBER	OCTOBER	NOV 1–9
First pass begins. Rounds 1–2, subject by subject.	Finish the first pass. Essays — Round 3.	Timed practice exams. Drill the numbers — Round 4.	Round 5 only. Re-test misses until the list is empty.

NOVEMBER 10, 2026 — EXAM DAY · RALPH L. CARR JUDICIAL CENTER, DENVER

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Part I — All 405 Questions

Answers hidden. Explanations begin in Part II.

Jurisdiction

QUESTION 1 OF 405 · FL-001 · JURISDICTION — GROUNDS

In Colorado, what is the sole legal ground a petitioner must establish to obtain a decree of dissolution of marriage?

A. Adultery or other marital fault
B. That the marriage is irretrievably broken
C. One year of continuous separation
D. Mutual written consent of both spouses

QUESTION 2 OF 405 · FL-002 · JURISDICTION — RESIDENCY

How long must a party be domiciled in Colorado before the court may enter a decree of dissolution?

A. 90 days
B. 181 days
C. 91 days
D. 182 days

QUESTION 3 OF 405 · FL-003 · JURISDICTION — WAITING PERIOD

A petition is served on the respondent on March 1. What is the earliest the court may enter a dissolution decree, assuming all other requirements are met?

A. Immediately upon the respondent's default
B. After 91 days from service
C. After 90 days from service
D. After 6 months from filing

QUESTION 4 OF 405 · FL-004 · JURISDICTION — PERSONAL JURISDICTION

A wife files for dissolution in Colorado. The husband lives out of state, was never married in Colorado, and has no contacts here. The court most clearly has jurisdiction to:

A. Divide the husband's out-of-state pension
B. Order the husband to pay maintenance
C. Dissolve the marital status
D. Enter a money judgment against the husband for marital debt

QUESTION 5 OF 405 · FL-005 · JURISDICTION — UCCJEA HOME STATE

Under the UCCJEA, the 'home state' of a 4-year-old child is generally where the child:

A. Has lived since birth, where the child is under six months old
B. Has lived with a parent for at least 6 consecutive months before the case began
C. Has attended preschool for at least 6 consecutive months
D. Has lived nearest the child's extended family

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QUESTION 6 OF 405 · FL-006 · JURISDICTION — UCCJEA PRIORITY

The UCCJEA gives initial child-custody jurisdiction priority to:

A. The state with the most evidence about the child
B. The home state of the child
C. Whichever state the petitioner chooses
D. The state where the marriage occurred

QUESTION 7 OF 405 · FL-007 · JURISDICTION — LEGAL SEPARATION CONVERSION

A decree of legal separation may be converted to a decree of dissolution on motion after the decree of legal separation has been in effect for at least:

A. 91 days
B. 180 days
C. 182 days
D. One year, unless the parties stipulate otherwise

QUESTION 8 OF 405 · FL-008 · JURISDICTION — INVALIDITY

A declaration of invalidity (annulment) in Colorado is available on grounds such as:

A. Irretrievable breakdown
B. Lack of capacity to consent due to age, duress, fraud, or incapacity
C. Incompatibility after a long marriage
D. One spouse's relocation

QUESTION 9 OF 405 · FL-009 · JURISDICTION — VENUE

Venue for a Colorado dissolution is generally proper in the county where:

A. Either party obtained the marriage license
B. Either party resides
C. Either party's attorney maintains an office
D. Either party last resided during the marriage

QUESTION 10 OF 405 · FL-010 · JURISDICTION — COMMENCEMENT DOCUMENTS

A Colorado dissolution is typically commenced by filing a:

A. Complaint and answer
B. Petition (and summons if not a co-petition)
C. Motion for decree
D. Notice of separation

QUESTION 11 OF 405 · FL-011 · JURISDICTION — TEMPORARY ORDERS

During a pending dissolution, a party who needs interim support or a parenting schedule should seek:

A. A permanent decree
B. Temporary orders under Section 14-10-108
C. A protection order only
D. Summary judgment

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QUESTION 12 OF 405 · FL-012 · JURISDICTION — AUTOMATIC INJUNCTION

Upon filing and service of a dissolution petition, the automatic temporary injunction generally restrains the parties from:

A. Speaking to each other

B. Transferring marital property except in the usual course of business or for necessities, and from molesting or disturbing the other

C. Leaving the state

D. Selling property either party owned separately before the marriage

Procedure

QUESTION 13 OF 405 · FL-013 · PROCEDURE — RULE 16.2 DUTY

C.R.C.P. 16.2 imposes on each party in a domestic relations case a duty of:

A. Disclosure only if requested

B. Full and honest disclosure of all material financial information

C. Disclosure limited to tax returns

D. Disclosure only after temporary orders

QUESTION 14 OF 405 · FL-014 · PROCEDURE — RULE 16.2 REALLOCATION

If a party fails to disclose a material asset, C.R.C.P. 16.2(e) allows the court to reallocate that asset on a motion filed within:

A. 1 year of the decree

B. 5 years of the decree

C. 6 months of the decree

D. 4 years of the decree

QUESTION 15 OF 405 · FL-015 · PROCEDURE — SWORN FINANCIAL STATEMENT

The form used to disclose a party's income, expenses, assets, and debts in a Colorado domestic case is the:

A. Sworn Financial Statement (JDF 1111)

B. Petition (JDF 1101)

C. Parenting Plan (JDF 1113)

D. Separation Agreement (JDF 1115)

QUESTION 16 OF 405 · FL-016 · PROCEDURE — MANDATORY DISCLOSURE TIMING

Mandatory financial disclosures and the Sworn Financial Statement are generally due within how many days after service or first appearance?

A. 41 days

B. 45 days

C. 42 days

D. 91 days

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QUESTION 17 OF 405 · FL-017 · PROCEDURE — MEDIATION

In many Colorado domestic relations cases, before a contested hearing the parties are typically required to:

A. Waive their right to counsel
B. Attend mediation or another form of alternative dispute resolution
C. Submit to binding arbitration
D. Post a bond securing the other party's attorney fees

QUESTION 18 OF 405 · FL-018 · PROCEDURE — PARENTING PLAN

A written document allocating parenting time and decision-making that the parties submit (or the court orders) is called a:

A. Sworn Financial Statement
B. Parenting Plan
C. Separation Agreement
D. Decree of Invalidity

QUESTION 19 OF 405 · FL-019 · PROCEDURE — SEPARATION AGREEMENT

A separation agreement resolving property and maintenance is binding on the court unless the court finds it:

A. Unfair to the party who signed without counsel
B. Unconscionable
C. Unrecorded, because it was never filed with the decree
D. Unsupported by the mandatory financial disclosures

QUESTION 20 OF 405 · FL-020 · PROCEDURE — DEFAULT

If a properly served respondent fails to respond or appear, the petitioner may seek:

A. Summary judgment under C.R.C.P. 56
B. A decree by default after the waiting period
C. Criminal contempt
D. An automatic appeal

QUESTION 21 OF 405 · FL-021 · PROCEDURE — SERVICE

Personal service of a dissolution summons and petition on an in-state respondent is generally accomplished by:

A. Email from the petitioner
B. Delivery by a process server or sheriff, or by the respondent's waiver/acceptance
C. Posting at the courthouse
D. Publication in all cases

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QUESTION 22 OF 405 · FL-022 · PROCEDURE — INITIAL STATUS CONFERENCE

Many districts hold an early hearing to set deadlines and identify issues, called the:

A. Permanent orders hearing
B. Initial status conference
C. Sentencing hearing
D. Pretrial readiness conference only

QUESTION 23 OF 405 · FL-023 · PROCEDURE — TRIAL MANAGEMENT CERTIFICATE

Before a contested permanent orders hearing, parties commonly file a document identifying witnesses, exhibits, and issues, known as a:

A. Trial Management Certificate
B. Notice of Appeal
C. Writ of Garnishment
D. Bill of Particulars

QUESTION 24 OF 405 · FL-024 · PROCEDURE — LLP FILING FORMS

Under C.R.C.P. 207.1, an LLP preparing pleadings may:

A. Use only JDF forms
B. Use JDF forms or templates generally accepted by the court
C. File documents only after review by the clerk's self-help center
D. Draft only if an attorney signs

QUESTION 25 OF 405 · FL-025 · PROCEDURE — DECREE CONTENTS

A final decree of dissolution typically incorporates all of the following EXCEPT:

A. The parenting plan
B. The property division
C. The maintenance and child support orders
D. A finding of marital fault

QUESTION 26 OF 405 · FL-243 · PROCEDURE — MAGISTRATES

Many domestic relations matters are heard by:

A. Only Supreme Court justices
B. District court judges or magistrates
C. Juries of six, on timely demand
D. Arbitrators only

QUESTION 27 OF 405 · FL-244 · PROCEDURE — REVIEW OF MAGISTRATE ORDER

A party dissatisfied with a magistrate's order may generally seek:

A. Immediate appeal to the Supreme Court
B. A petition for review by the district court judge
C. An immediate certiorari petition to the court of appeals
D. A new trial automatically

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QUESTION 28 OF 405 · FL-247 · PROCEDURE — DEFAULT AFTER SERVICE

If a respondent is properly served and does not appear, the petitioner may:

A. Re-serve the respondent and wait a second 35-day period
B. Proceed to default orders after the waiting period, with required disclosures and proposed orders
C. Have the petition dismissed for failure to prosecute
D. Proceed only after a court-ordered mediation session

QUESTION 29 OF 405 · FL-249 · PROCEDURE — PARENTING CLASS

In cases involving children, many Colorado courts require parents to:

A. Deposit anticipated child support into the court registry
B. Complete an approved parenting/co-parenting education class
C. Submit to a custody evaluation in every case
D. Attend criminal court

APR

QUESTION 30 OF 405 · FL-026 · APR — TERMINOLOGY

Colorado law replaced the terms 'custody' and 'visitation' with:

A. 'Guardianship' and 'access'
B. 'Decision-making responsibility' and 'parenting time'
C. 'Care' and 'control'
D. 'Residence' and 'contact'

QUESTION 31 OF 405 · FL-027 · APR — STANDARD

The governing standard for an initial allocation of parental responsibilities is:

A. The tender-years doctrine
B. The best interests of the child
C. The maternal preference
D. Equal time in all cases

QUESTION 32 OF 405 · FL-028 · APR — BEST INTERESTS FACTORS

Which of the following is a statutory best-interests factor for parenting time?

A. The wealth of each parent
B. The ability of each parent to encourage a loving relationship between the child and the other parent
C. The parents' religion
D. Which parent filed first

QUESTION 33 OF 405 · FL-029 · APR — CHILD'S WISHES

A child's wishes regarding parenting time are considered:

A. Always controlling at any age
B. If the child is sufficiently mature to express reasoned and independent preferences
C. Only if the child is at least 16
D. Only when presented through a guardian ad litem

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QUESTION 34 OF 405 · FL-030 · APR — DECISION-MAKING

Allocation of decision-making responsibility concerns:

A. The day-to-day schedule
B. Major decisions such as education, health care, and religious upbringing
C. Who claims the child on taxes
D. Child support amount

QUESTION 35 OF 405 · FL-031 · APR — JOINT DECISION-MAKING FACTORS

In deciding whether to order joint decision-making, the court additionally considers:

A. Whether the parties can cooperate and make shared decisions
B. The parents' incomes
C. Who owns the marital home
D. The child's grades only

QUESTION 36 OF 405 · FL-032 · APR — DOMESTIC VIOLENCE

Credible evidence that one parent committed domestic violence:

A. Is irrelevant to APR
B. Must be considered and may rebut the appropriateness of joint decision-making
C. Automatically terminates parental rights
D. Only matters in criminal court

QUESTION 37 OF 405 · FL-033 · APR — RESTRICTION STANDARD

A court may impose a substantial restriction on a parent's parenting time only if it finds that parenting time would:

A. Be inconvenient for the other parent
B. Endanger the child's physical health or significantly impair the child's emotional development
C. Reduce child support
D. Cause the child to miss extracurriculars

QUESTION 38 OF 405 · FL-034 · APR — PARENTING TIME VS. DECISION-MAKING

Which statement is correct?

A. Parenting time and decision-making must always be allocated to the same parent
B. Parenting time and decision-making are allocated separately and may differ
C. Decision-making automatically follows the majority-time parent
D. Only one parent may ever have decision-making

QUESTION 39 OF 405 · FL-035 · APR — PARENTING COORDINATOR

To assist high-conflict parents in implementing a parenting plan, a court may appoint a:

A. Special prosecutor
B. Parenting coordinator
C. Special master appointed to decide the disputed issues
D. Guardian of the estate

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QUESTION 40 OF 405 · FL-036 · APR — CFI/PRE

To investigate and make recommendations about the child's best interests, the court may appoint a:

A. Child and Family Investigator (CFI) or Parental Responsibilities Evaluator (PRE)
B. Probation officer
C. Court reporter to document the parenting exchanges
D. Magistrate's clerk

QUESTION 41 OF 405 · FL-037 · APR — RELOCATION PRE-DECREE

When parents live in different cities and an initial APR determination is being made (no prior order), the court:

A. Applies a presumption against the out-of-town parent
B. Applies the best-interests factors without a presumption and without requiring either parent to stay
C. Requires the moving parent to prove necessity
D. Automatically awards majority time to the in-state parent

QUESTION 42 OF 405 · FL-038 · APR — ALLOCATION NOT BASED ON SEX

In allocating parental responsibilities, the court:

A. Shall presume the mother is the better caregiver for a young child
B. Shall not presume any person is better able to serve the child's interests because of that person's sex
C. Shall favor the parent with the higher income
D. Shall favor the parent who remains in the marital home

QUESTION 43 OF 405 · FL-039 · APR — FREQUENT CONTACT POLICY

Colorado's APR statute reflects a policy of:

A. Minimizing contact with both parents
B. Encouraging frequent and continuing contact with both parents where safe
C. Always awarding sole decision-making
D. Limiting parenting time to weekends

QUESTION 44 OF 405 · FL-040 · APR — STEP-UP PLANS

Where a parent has had limited contact, a court may order a:

A. Graduated no-contact order that becomes permanent without findings
B. Graduated 'step-up' parenting schedule that increases contact over time
C. Graduated termination of the parent's rights over six months
D. Graduated 50/50 schedule imposed automatically

QUESTION 45 OF 405 · FL-041 · APR — SUPERVISED PARENTING TIME

Supervised parenting time is appropriate when:

A. The parents simply dislike each other
B. There is a safety concern that nonetheless does not justify denying all contact
C. One parent earns less
D. The child prefers it for convenience

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QUESTION 46 OF 405 · FL-042 · APR — MODIFYING A PARENTING PLAN BY AGREEMENT

Parents who agree to change their parenting schedule should:

A. Simply act on the change without court involvement
B. Submit a stipulated modification for the court to approve
C. Wait two years regardless
D. File a new dissolution

QUESTION 47 OF 405 · FL-043 · APR — RELIGIOUS UPBRINGING

Decision-making about the child's religious upbringing:

A. Is never within the court's allocation
B. Is part of decision-making responsibility that can be allocated
C. Always goes to the majority-time parent
D. Is decided by the child alone

QUESTION 48 OF 405 · FL-044 · APR — SIBLINGS

In allocating parenting time among multiple children, courts generally:

A. Split siblings between households as a default
B. Consider keeping siblings together as part of best interests
C. Always keep all children with the mother
D. Weigh sibling placement only for children over 12

QUESTION 49 OF 405 · FL-045 · APR — NON-PARENT STANDING

A non-parent (e.g., grandparent) may seek allocation of parental responsibilities when:

A. Only after both parents are deceased
B. The child is not in the physical care of a parent, or the non-parent has had the child in their care for the statutory period
C. Only with both parents' consent
D. Only after adoption

QUESTION 50 OF 405 · FL-046 · APR — BEST INTERESTS PARAMOUNT CONCERN

Under the 2018+ amendments, the court's determination of parenting time gives paramount consideration to:

A. Parental convenience
B. The child's safety and the child's physical, mental, and emotional needs
C. Equalizing the parents' time exactly
D. The parents' employment schedules

QUESTION 51 OF 405 · FL-047 · APR — DOMESTIC VIOLENCE AND JOINT DECISION-MAKING

Where one parent has committed domestic violence against the other, joint decision-making:

A. Is required to promote cooperation
B. Is generally not appropriate, and the court must consider the safety of the child and abused party
C. Must still be ordered if the abuser requests it
D. Is mandatory after counseling

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QUESTION 52 OF 405 · FL-048 · APR — GENETIC/PARENTAGE PREREQUISITE

Before allocating parental responsibilities to an alleged father whose parentage is disputed, the court generally must:

A. Proceed while genetic testing is pending
B. Resolve parentage (e.g., via the Uniform Parentage Act) first
C. Award him equal time immediately
D. Refer the matter to criminal court

QUESTION 53 OF 405 · FL-049 · APR — MODIFICATION PENDING

While a motion to modify parenting time is pending, the existing order:

A. Is automatically suspended
B. Remains in effect until modified
C. Is stayed pending the hearing
D. Converts to 50/50

QUESTION 54 OF 405 · FL-050 · APR — CHILD'S SAFETY VS. CONTACT POLICY

If the frequent-contact policy conflicts with the child's safety, the court must:

A. Prioritize contact
B. Prioritize the child's safety and needs
C. Order equal time anyway
D. Defer to the parents' agreement regardless of safety

QUESTION 55 OF 405 · FL-069 · APR — UCCJEA CONTINUING JURISDICTION

After Colorado makes an initial APR determination, it generally retains exclusive, continuing jurisdiction until:

A. The child turns 12
B. Neither the child nor a parent has a significant connection to Colorado and substantial evidence is no longer available here, or all have left the state
C. The other parent objects
D. Five years pass

QUESTION 56 OF 405 · FL-070 · APR — EMERGENCY JURISDICTION

A Colorado court may exercise temporary emergency jurisdiction under the UCCJEA when:

A. The petitioner prefers Colorado
B. The child is present in Colorado and has been abandoned or emergency protection is needed because of threatened mistreatment or abuse
C. The other state is far away
D. The parents were married in Colorado

QUESTION 57 OF 405 · FL-075 · APR — MODIFICATION SCOPE FOR LLPS

Which best describes an LLP's authorized scope as to parental responsibilities?

A. Initial APR and modification, but only when uncontested
B. Both the initial allocation and modification of parental responsibilities, within the rule's limits
C. Parenting time only, with decision-making reserved to attorneys
D. No APR work at all

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APR Modification

QUESTION 58 OF 405 · FL-051 · APR MODIFICATION — GENERAL STANDARD

A motion to modify parenting time (not changing the majority residential parent) is generally decided under:

A. The endangerment standard only
B. The best interests of the child
C. Clear and convincing evidence of unfitness
D. A presumption against any change

QUESTION 59 OF 405 · FL-052 · APR MODIFICATION — CHANGING MAJORITY PARENT

To change the parent with whom the child resides a majority of the time over objection, the moving party generally must show best interests PLUS:

A. A six-month waiting period since the last order
B. A statutory trigger such as the present environment endangers the child or the parties agree
C. A showing that the other parent earns less
D. A two-year waiting period only

QUESTION 60 OF 405 · FL-053 · APR MODIFICATION — DECISION-MAKING

Modification of decision-making responsibility is governed by which statute?

A. Section 14-10-131
B. Section 14-10-115
C. Section 14-10-114
D. Section 14-10-108

QUESTION 61 OF 405 · FL-054 · APR MODIFICATION — DECISION-MAKING STANDARD

Under Section 14-10-131, to modify decision-making the court must find a change in circumstances and that modification is in the child's best interests; to change the primary decision-maker's authority over objection, it generally requires:

A. Mere convenience
B. A showing that retaining the arrangement endangers the child and the harm of change is outweighed by its advantages
C. The child's consent only
D. A 10% income change

QUESTION 62 OF 405 · FL-061 · APR MODIFICATION — TWO-YEAR LIMIT

After a contested decision-making order, a party generally may not file a motion to modify decision-making for:

A. 1 year
B. 2 years, absent endangerment or the child's integration
C. 5 years
D. 6 months

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QUESTION 63 OF 405 · FL-062 · APR MODIFICATION — INTEGRATION EXCEPTION

One trigger to change the majority residential parent is that the child has been:

A. Enrolled in a new school
B. Integrated into the moving party's family with the consent of the other party
C. Old enough to drive
D. Receiving better grades

QUESTION 64 OF 405 · FL-063 · APR MODIFICATION — AGREEMENT TRIGGER

If both parents agree to change the majority residential parent, the court:

A. Cannot approve it
B. May modify if the change is in the child's best interests and the parties agree
C. Must hold a contested hearing anyway
D. Must wait two years

QUESTION 65 OF 405 · FL-064 · APR MODIFICATION — ENDANGERMENT TRIGGER

The 'endangerment' trigger for changing the majority residential parent requires the present environment to:

A. Be merely suboptimal
B. Endanger the child's physical health or significantly impair the child's emotional development, with the harm of change outweighed by its advantages
C. Cause inconvenience
D. Reduce parenting time slightly

QUESTION 66 OF 405 · FL-065 · APR MODIFICATION — MINOR ADJUSTMENTS

A parent seeking a modest change to weeknight exchange times should expect the court to apply:

A. The endangerment standard
B. The best-interests standard for a minor modification
C. A criminal standard
D. No standard; it is automatic

QUESTION 67 OF 405 · FL-068 · APR MODIFICATION — BURDEN OF PROOF

In a contested modification, the moving party generally bears the burden to show:

A. Beyond a reasonable doubt
B. By a preponderance that the statutory standard is met
C. Probable cause supported by affidavit
D. Clear and convincing in all cases

QUESTION 68 OF 405 · FL-072 · APR MODIFICATION — RELOCATION VS. MINOR MOVE

A within-town move that does not substantially change geography:

A. Triggers the full relocation analysis
B. Generally does not trigger the heightened relocation factors
C. Requires a new dissolution
D. Automatically changes the majority parent

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QUESTION 69 OF 405 · FL-073 · APR MODIFICATION — BEST INTERESTS RE-EXAMINED

On any APR modification, the ultimate touchstone remains:

A. The parents' preferences
B. The best interests of the child
C. Equalizing time
D. Minimizing support

Relocation

QUESTION 70 OF 405 · FL-055 · RELOCATION — POST-DECREE FACTORS

When a majority-time parent seeks to relocate post-decree with the child to a distant location, the court applies the best-interests factors PLUS the additional relocation factors found in:

A. Section 14-10-124 only
B. Section 14-10-129(2)(c)
C. Section 14-10-115
D. Section 14-10-131

QUESTION 71 OF 405 · FL-056 · RELOCATION — NO PRESUMPTION

In a contested post-decree relocation, the burden allocation is best described as:

A. The relocating parent must prove the move is necessary
B. Neither parent bears a presumption; the court weighs all factors for the child's best interests
C. The objecting parent must prove the child will be harmed
D. The relocating parent automatically wins if employed

QUESTION 72 OF 405 · FL-057 · RELOCATION — CONSTITUTIONAL BACKDROP

The Ciesluk framework reflects the tension between:

A. Two non-constitutional statutes
B. Each parent's competing constitutional interests (the right to travel and the right to parent) and the child's best interests
C. Two competing statutory presumptions, one favoring each parent
D. Contract and tort law

QUESTION 73 OF 405 · FL-058 · RELOCATION — PRE-DECREE DISTINCTION

The key difference between Spahmer (pre-decree) and Ciesluk (post-decree) relocation is that:

A. Spahmer applies a presumption against moving
B. In a pre-decree initial determination the court cannot order a parent to live somewhere and simply allocates based on where parents will live, while post-decree adds the 129(2)(c) relocation factors
C. Both require proof of necessity
D. Ciesluk applies only to interstate moves

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QUESTION 74 OF 405 · FL-059 · RELOCATION — NOTICE

A parent intending to relocate with the child to a residence that substantially changes geography should:

A. Move first and notify later

B. Provide advance written notice to the other parent as soon as practicable

C. Notify only the school

D. Notify the court but not the other parent

QUESTION 75 OF 405 · FL-060 · RELOCATION — TEMPORARY ORDERS LIMIT

In a relocation dispute, the court may NOT:

A. Modify the parenting plan to accommodate the move

B. Enter temporary orders allowing the child to relocate before a full hearing in a contested case (it must hold a hearing)

C. Consider the child's best interests

D. Appoint a CFI to investigate the proposed relocation

QUESTION 76 OF 405 · FL-066 · RELOCATION — LONG-DISTANCE PLANS

If a court permits a child's relocation, it commonly:

A. Eliminates the other parent's time

B. Fashions a long-distance parenting plan (e.g., extended summers, holidays, virtual contact)

C. Orders the moving parent to pay all of the other parent's travel forever

D. Terminates decision-making

QUESTION 77 OF 405 · FL-067 · RELOCATION — CHILD'S ADJUSTMENT FACTOR

Among the relocation factors, the court weighs:

A. The moving parent's new partner's income

B. The anticipated impact of the move on the child and the child's present and future relationships with both parents

C. The cost of the moving truck

D. The objecting parent's hobbies

QUESTION 78 OF 405 · FL-071 · RELOCATION — EFFECT OF UNILATERAL MOVE

A majority-time parent who relocates with the child without notice or consent risks:

A. No consequence if the move stays within Colorado

B. An order to return the child, modification, or other remedies, and the move being weighed against them

C. Automatic approval

D. Criminal immunity

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QUESTION 79 OF 405 · FL-074 · RELOCATION — DOMICILE OF YOUNGER CHILD

For relocation involving a very young child with limited school ties, courts:

A. Still apply a presumption favoring the primary caregiver's move

B. Still apply the relocation factors, weighing the child's developmental needs and bonding with each parent

C. Still allow the move automatically, given the limited school ties

D. Still deny the move automatically until the child starts school

Child Support

QUESTION 80 OF 405 · FL-076 · CHILD SUPPORT — MODEL

Colorado calculates child support using which model?

A. Percentage-of-obligor-income model

B. Income shares model

C. The Melson formula used in some other states

D. Flat statutory amount

QUESTION 81 OF 405 · FL-077 · CHILD SUPPORT — GROSS INCOME DEFINITION

Which is generally included in 'gross income' for child support?

A. TANF public assistance

B. Salary, wages, commissions, bonuses, and self-employment income

C. Child support received for a different child

D. SNAP and other means-tested public benefits

QUESTION 82 OF 405 · FL-078 · CHILD SUPPORT — SELF-EMPLOYMENT INCOME

For a self-employed parent, gross income equals gross receipts minus:

A. All claimed business deductions on the tax return

B. Ordinary and necessary expenses required to produce income (not all tax deductions)

C. One-half of self-employment tax only

D. Personal living expenses

QUESTION 83 OF 405 · FL-079 · CHILD SUPPORT — IMPUTATION

Income may be imputed to a parent who is:

A. Working full time

B. Voluntarily unemployed or underemployed, absent an exception

C. Disabled and unable to work

D. Caring for an infant under 30 months in some cases

QUESTION 84 OF 405 · FL-080 · CHILD SUPPORT — UNDER-30-MONTHS EXCEPTION

The under-30-months caregiver exception to imputation applies when a parent:

A. Cares for any child

B. Is caring for a child under 30 months of age for whom the parents owe a joint legal duty of support

C. Has any preschooler

D. Simply prefers not to work

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QUESTION 85 OF 405 · FL-081 · CHILD SUPPORT — SHARED-CARE THRESHOLD

Since March 1, 2026, a parent's overnights earn the shared parenting time credit once that parent has at least:

A. 92 overnights
B. 1 overnight per year
C. 182 overnights
D. 93 overnights

QUESTION 86 OF 405 · FL-082 · CHILD SUPPORT — PARENTING TIME CREDIT

Under the March 1, 2026 guidelines, shared overnight parenting time is handled by:

A. Multiplying the basic obligation by 1.5 before allocation
B. Deducting a credit: total basic obligation × that parent's Parenting Time Table percentage
C. Multiplying the basic obligation by zero when overnights are equal
D. Multiplying each parent's income by two before the calculation

QUESTION 87 OF 405 · FL-083 · CHILD SUPPORT — ADJUSTMENTS

Which is a permitted adjustment added to the basic obligation?

A. The obligor's car payment
B. Work-related child care costs, the child's health insurance premium, and extraordinary medical expenses
C. The obligor's student loans
D. Vacation and travel costs the parents agree to share

QUESTION 88 OF 405 · FL-084 · CHILD SUPPORT — HEALTH INSURANCE CREDIT

A parent who pays the child's health insurance premium:

A. Receives no credit unless the decree says so expressly
B. Receives credit on the worksheet for the child's share of the premium
C. Must pay double
D. Loses parenting time

QUESTION 89 OF 405 · FL-085 · CHILD SUPPORT — EXTRAORDINARY MEDICAL

Unreimbursed medical expenses become 'extraordinary' (shared as an add-on) when they exceed:

A. $200 per child per year
B. $250 per child per year
C. $240 per child per year
D. $300 per child per year

QUESTION 90 OF 405 · FL-086 · CHILD SUPPORT — INCOME PRORATION

After determining the adjusted basic obligation, the court allocates it:

A. In equal shares regardless of income
B. In proportion to each parent's share of combined adjusted gross income
C. In full to the higher earner
D. In proportion to overnights only, ignoring income

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QUESTION 91 OF 405 · FL-087 · CHILD SUPPORT — LOW-INCOME ADJUSTMENT

For very low-income obligors, Colorado's guideline provides:

A. No support is ever ordered

B. A low-income adjustment and self-support reserve so the obligor retains a minimum subsistence amount

C. A flat $500 minimum

D. Triple the obligation as a statutory penalty

QUESTION 92 OF 405 · FL-088 · CHILD SUPPORT — NUMBER OF OVERNIGHTS COUNTING

For the parenting-time adjustment, the court counts:

A. Hours of contact

B. The number of overnights each parent has with the child per year

C. Weekend days only

D. School days only

QUESTION 93 OF 405 · FL-089 · CHILD SUPPORT — IMPUTATION FACTORS

When imputing potential income, the court considers:

A. Only the minimum wage

B. Employment potential and probable earnings based on work history, education, skills, and job opportunities

C. The other parent's income only

D. A flat statewide average

QUESTION 94 OF 405 · FL-090 · CHILD SUPPORT — MULTIPLE CHILDREN ADJUSTMENT

A parent supporting children from another relationship may receive:

A. No consideration

B. An adjustment/deduction for other children the parent has a legal duty to support

C. Double the deduction for each additional child

D. An exemption from all support

QUESTION 95 OF 405 · FL-091 · CHILD SUPPORT — MAINTENANCE INTERACTION

When maintenance is ordered in the same case, for the child support calculation:

A. Maintenance is ignored

B. Maintenance actually paid is deducted from the payor's income and added to the recipient's income

C. Maintenance is added to both incomes

D. Maintenance doubles the obligation

QUESTION 96 OF 405 · FL-092 · CHILD SUPPORT — DEVIATION

A court may deviate from the guideline amount if:

A. A parent simply asks

B. Application would be inequitable, unjust, or inappropriate, with specific findings

C. The obligor dislikes the amount

D. Only if both parties stipulate to the deviation

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QUESTION 97 OF 405 · FL-093 · CHILD SUPPORT — DURATION

Child support generally continues until the child reaches the age of emancipation, which in Colorado is presumptively:

A. 18
B. 19
C. 21
D. 16

QUESTION 98 OF 405 · FL-094 · CHILD SUPPORT — POST-SECONDARY

Court-ordered payment of college expenses:

A. Is mandatory in all cases
B. Is generally not required absent the parties' agreement
C. Is automatic until age 25
D. Is required for public colleges only

QUESTION 99 OF 405 · FL-095 · CHILD SUPPORT — DISABLED CHILD

Support for a child who is physically or mentally disabled:

A. Always ends at 19
B. May continue past 19 where the disability arose before emancipation and the child cannot be self-supporting
C. Requires a conservatorship before support may continue
D. Ends at 18

QUESTION 100 OF 405 · FL-096 · CHILD SUPPORT — HIGH SCHOOL EXTENSION

If a 19-year-old is still enrolled in high school, support:

A. Ends immediately at 19
B. May continue until the end of the month following graduation, up to age 21 in some cases
C. Continues until age 21 regardless of enrollment
D. Continues only if the child is disabled

QUESTION 101 OF 405 · FL-097 · CHILD SUPPORT — IMPUTATION AND INCARCERATION

For a parent who is incarcerated, courts generally:

A. Do impute the income the parent earned before incarceration
B. Do not treat incarceration as voluntary unemployment justifying imputation in most circumstances
C. Do terminate support automatically for the term of incarceration
D. Do double the obligation as a penalty for the conviction

QUESTION 102 OF 405 · FL-098 · CHILD SUPPORT — CREDIT AT 70 OVERNIGHTS

Father has 70 overnights a year; mother has 295. Under the March 1, 2026 guidelines, the father:

A. Gets no credit because he is below 93 overnights
B. Gets a parenting time credit of 8.28% of the total basic obligation
C. Pays no support
D. Uses neither the schedule nor the Parenting Time Table

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QUESTION 103 OF 405 · FL-099 · CHILD SUPPORT — TAX EXEMPTION

Allocation of the federal dependency tax benefit between parents:

A. Is forbidden, because the federal benefit is not divisible
B. May be allocated by the court as part of the orders, often to maximize the family's overall benefit
C. Always goes to the mother
D. Is decided by the IRS only

QUESTION 104 OF 405 · FL-100 · CHILD SUPPORT — PRESUMPTIVE CORRECTNESS

The amount produced by the guideline is:

A. Merely a suggestion
B. Rebuttably presumed to be the correct amount of child support
C. Always a maximum
D. Only advisory like maintenance

CS Modification

QUESTION 105 OF 405 · FL-101 · CS MODIFICATION — STANDARD

A child support order may be modified upon a showing of:

A. A 5% change in the guideline amount
B. A substantial and continuing change of circumstances
C. Fraud in the original proceeding, within 5 years
D. The obligor's request alone

QUESTION 106 OF 405 · FL-102 · CS MODIFICATION — 10% PRESUMPTION

There is a presumption of a substantial and continuing change if applying the guideline to current circumstances would change the support obligation by at least:

A. 5%
B. 10%
C. 12%
D. 9%

QUESTION 107 OF 405 · FL-103 · CS MODIFICATION — EFFECTIVE DATE

A child support modification is generally effective:

A. Back to the child's birth
B. Retroactive to the date the motion to modify was filed
C. Only prospectively from the order date
D. Back five years

QUESTION 108 OF 405 · FL-114 · CS MODIFICATION — CHANGE IN CUSTODY

When physical care of the child changes, support modification may be effective:

A. Only from the new order
B. As of the date the change in physical care occurred, in defined circumstances
C. Only prospectively from the filing of the motion
D. Five years later

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CS Enforcement

QUESTION 109 OF 405 · FL-104 · CS ENFORCEMENT — VESTED ARREARS

Past-due child support installments:

A. Can be retroactively forgiven by the court at will
B. Become vested judgments as they accrue and are not subject to retroactive modification
C. Disappear after one year
D. Lapse if not reduced to judgment within 6 months

QUESTION 110 OF 405 · FL-105 · CS ENFORCEMENT — INCOME ASSIGNMENT

A common automatic enforcement tool for child support is:

A. Wage garnishment by income assignment (withholding)
B. Criminal indictment in all cases
C. Property seizure without notice
D. License revocation without findings

QUESTION 111 OF 405 · FL-106 · CS ENFORCEMENT — INTEREST

Unpaid child support generally accrues statutory interest at:

A. No interest, because support judgments are exempt
B. A statutory rate (commonly 12% per year, compounded monthly) on arrears
C. 10% per year, simple
D. 8% per year, the general judgment rate

QUESTION 112 OF 405 · FL-107 · CS ENFORCEMENT — LICENSE SUSPENSION

For significant nonpayment, the state may:

A. Only report the arrears to credit bureaus
B. Suspend the obligor's driver's, professional, or recreational licenses
C. Imprison without process
D. Garnish 100% of wages

QUESTION 113 OF 405 · FL-108 · CS ENFORCEMENT — REMEDIAL CONTEMPT

Remedial contempt for nonpayment of child support is characterized by:

A. A fixed punitive jail term
B. A coercive sanction the obligor can purge by complying (the 'keys to the cell')
C. A sanction imposed without any findings
D. A mandatory suspension of the obligor's professional licence

QUESTION 114 OF 405 · FL-109 · CS ENFORCEMENT — PUNITIVE CONTEMPT (SCOPE)

Punitive contempt under C.R.C.P. 107:

A. Is within an LLP's scope
B. Is outside an LLP's scope and requires an attorney
C. Is the same as remedial contempt
D. Is never available in family cases

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QUESTION 115 OF 405 · FL-111 · CS ENFORCEMENT — TAX INTERCEPT

Past-due support may be collected through:

A. Voluntary payments the obligor chooses to make out of tips
B. Interception of state and federal tax refunds through the IV-D program
C. Seizure of exempt benefits
D. Only the remedies the parties wrote into the decree

CS Contempt

QUESTION 116 OF 405 · FL-110 · CS CONTEMPT — ABILITY TO COMPLY

A key element the movant must establish in a remedial contempt for nonpayment is that the obligor:

A. Has a high income
B. Had the present ability to comply and willfully failed to do so
C. Was once employed
D. Lives in Colorado

CS

QUESTION 117 OF 405 · FL-112 · CS — UIFSA

Interstate establishment and enforcement of support orders is governed by:

A. The UCCJEA
B. The Uniform Interstate Family Support Act (UIFSA)
C. The Hague Convention only
D. State contract law

QUESTION 118 OF 405 · FL-113 · CS — FOREIGN ORDER REGISTRATION (SCOPE)

Registration of a foreign (out-of-state) support order for enforcement in Colorado is:

A. Within an LLP's scope
B. Outside an LLP's scope (a carve-out)
C. Prohibited entirely
D. Within scope only if no contempt is sought

QUESTION 119 OF 405 · FL-115 · CS — EMANCIPATION EVENT

Which event generally emancipates a child for support purposes before 19?

A. Getting a part-time job
B. Marriage or entry into active military duty
C. Starting high school
D. Moving to a new school district

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QUESTION 120 OF 405 · FL-116 · CS — MULTIPLE FAMILY ADJUSTMENT

A subsequent child born to the obligor in a new relationship:

A. Increases the existing order automatically
B. May be considered as an adjustment but does not automatically reduce an existing order
C. Has no possible relevance
D. Terminates the existing order

QUESTION 121 OF 405 · FL-117 · CS — RETROACTIVE SUPPORT

In an initial determination, the court may order child support retroactive to:

A. The date the petition was filed, at the earliest
B. The date of physical separation or the child's birth in a parentage case, as provided by statute
C. Only the hearing date
D. Ten years prior

QUESTION 122 OF 405 · FL-118 · CS — VOLUNTARY OVERPAYMENT

Voluntary payments a parent makes beyond the ordered amount:

A. Always count as a credit against future support
B. Generally do not create a credit against future support absent agreement or order
C. Double the obligation
D. Terminate support

QUESTION 123 OF 405 · FL-119 · CS — SELF-SUPPORT RESERVE

The self-support reserve in the guideline functions to:

A. Maximize the obligation
B. Ensure the obligor retains a minimum income for basic needs
C. Eliminate support for high earners
D. Increase interest on arrears

QUESTION 124 OF 405 · FL-120 · CS — IMPUTATION REBUTTAL

A parent facing imputation can rebut it by showing:

A. Only a doctor's certification of total disability
B. That the unemployment/underemployment is not voluntary or that an exception (incapacity, infant care, good-faith career change) applies
C. That they dislike working
D. That the other parent earns more

QUESTION 125 OF 405 · FL-121 · CS — CHILD SUPPORT AND BANKRUPTCY

Child support obligations in bankruptcy are:

A. Fully dischargeable
B. Non-dischargeable domestic support obligations entitled to priority
C. Discharged after 7 years
D. Reduced automatically

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QUESTION 126 OF 405 · FL-122 · CS — DIRECT PAY VS. REGISTRY

Courts often direct child support to be paid through:

A. Cash with no record
B. The Family Support Registry to create a payment record
C. A friend of the family
D. The child directly

QUESTION 127 OF 405 · FL-123 · CS — MODIFICATION NOT AUTOMATIC

If an obligor loses a job, the support obligation:

A. Automatically drops to zero
B. Continues at the ordered amount until the court modifies it
C. Is forgiven for any month the obligor is unemployed
D. Is abated automatically after 30 days of unemployment

QUESTION 128 OF 405 · FL-124 · CS — HEALTH INSURANCE ORDER

Child support orders must address:

A. Only cash support
B. Provision of the child's medical support (health insurance and/or cash medical)
C. Only parenting time
D. College savings

QUESTION 129 OF 405 · FL-125 · CS — SCOPE SUMMARY

Which child support task is within an LLP's authorized scope?

A. Establishing, enforcing, and modifying child support, including remedial contempt
B. Punitive contempt
C. Registering a foreign support order
D. Preparing a QDRO

Maintenance

QUESTION 130 OF 405 · FL-126 · MAINTENANCE — AUTHORITY

Spousal maintenance in Colorado is governed primarily by:

A. Section 14-10-115
B. Section 14-10-114
C. Section 14-10-113
D. Section 14-10-124

QUESTION 131 OF 405 · FL-127 · MAINTENANCE — ADVISORY GUIDELINE

The statutory maintenance guideline is best described as:

A. Mandatory and binding
B. Advisory; the court must consider it but make findings and may deviate
C. A maximum cap only
D. Applicable only to short marriages

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QUESTION 132 OF 405 · FL-128 · MAINTENANCE — AMOUNT FORMULA

Under the advisory guideline, the monthly maintenance amount equals:

A. 50% of the higher income
B. 40% of the higher earner's monthly adjusted gross income minus 50% of the lower earner's
C. 30% of combined income
D. The difference in the parties' incomes

QUESTION 133 OF 405 · FL-129 · MAINTENANCE — INCOME CAP

The advisory maintenance formula applies when the parties' combined annual adjusted gross income is:

A. $120,000 or less
B. $240,000 or less
C. $250,000 or less
D. $360,000 or less

QUESTION 134 OF 405 · FL-130 · MAINTENANCE — DURATION

The advisory guideline term of maintenance is determined by:

A. A flat 5 years
B. A percentage of the length of the marriage on a statutory schedule
C. The recipient's age only
D. The number of children

QUESTION 135 OF 405 · FL-131 · MAINTENANCE — MINIMUM MARRIAGE LENGTH

The advisory maintenance term schedule generally begins to apply at marriages of at least:

A. 2 years (24 months)
B. 3 years (36 months)
C. 7 years (84 months)
D. 10 years (120 months)

QUESTION 136 OF 405 · FL-132 · MAINTENANCE — FACTORS

In setting maintenance, the court must consider factors including:

A. Only the recipient's income
B. The financial resources of each party, lifestyle during the marriage, distribution of marital property, income, employment, age, and health
C. Marital fault, weighed against the requesting spouse
D. Which party filed first

QUESTION 137 OF 405 · FL-133 · MAINTENANCE — TEMPORARY

Temporary maintenance during the pending case:

A. Cannot be ordered
B. May be ordered to maintain the status quo and meet needs until final orders
C. Is always permanent
D. Requires a 3-year marriage

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QUESTION 138 OF 405 · FL-134 · MAINTENANCE — MODIFIABILITY

Post-decree maintenance is generally:

A. Modifiable only within 6 months of the decree
B. Modifiable on a substantial and continuing change, unless the parties agreed it is non-modifiable
C. Modifiable only upward
D. Modifiable only by the payor

QUESTION 139 OF 405 · FL-135 · MAINTENANCE — TERMINATION

Absent contrary agreement, maintenance ordinarily terminates upon:

A. The payor's retirement automatically
B. The death of either party or the remarriage of the recipient
C. The recipient getting any job
D. Five years regardless of the order

QUESTION 140 OF 405 · FL-136 · MAINTENANCE — TAX TREATMENT

For maintenance orders entered after 2018, the federal tax treatment is:

A. Deductible to payor, taxable to recipient
B. Not deductible to the payor and not taxable to the recipient
C. Taxable to both
D. A credit to the payor

QUESTION 141 OF 405 · FL-137 · MAINTENANCE — ADJUSTED GROSS INCOME

For the maintenance formula, 'adjusted gross income' generally means gross income less:

A. All household expenses
B. Pre-existing child support and maintenance obligations actually paid for other relationships
C. Rent and utilities
D. Discretionary spending

QUESTION 142 OF 405 · FL-138 · MAINTENANCE — ABOVE THE CAP

Where combined income exceeds the guideline cap, the court:

A. Must award the formula amount anyway
B. Determines maintenance based on the statutory factors, reasonable need, and ability to pay
C. Cannot award maintenance
D. Awards exactly 40% of the higher income

QUESTION 143 OF 405 · FL-139 · MAINTENANCE — PROPERTY INTERPLAY

In deciding maintenance, the court considers the property division because:

A. Property is irrelevant to maintenance
B. Income-producing or liquid property awarded to a spouse affects that spouse's ability to meet needs independently
C. Property always eliminates maintenance
D. Maintenance must equal the property award

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QUESTION 144 OF 405 · FL-140 · MAINTENANCE — FINDINGS REQUIREMENT

When the court awards maintenance, it must:

A. Make a bare statement of the amount, without findings

B. Make findings concerning the amount and term, including the guideline calculation and the statutory factors

C. Make the award the parties agreed to, without independent findings

D. Make the guideline award without explaining the statutory factors

QUESTION 145 OF 405 · FL-141 · MAINTENANCE — VOCATIONAL CONSIDERATIONS

A recipient's earning capacity and need for education or training:

A. Are irrelevant once the guideline figure is calculated

B. Are considered, and rehabilitative maintenance may support a transition to self-sufficiency

C. Bar any maintenance

D. Require a vocational degree

QUESTION 146 OF 405 · FL-142 · MAINTENANCE — LUMP SUM

Maintenance may sometimes be structured as:

A. A monthly payment only, never in another form

B. A lump sum or property transfer in lieu of periodic maintenance, by agreement or order

C. A quarterly payment, but only if the payor is self-employed

D. A payment made by the parties' adult children

QUESTION 147 OF 405 · FL-143 · MAINTENANCE — COHABITATION

Absent a specific agreement, the recipient's cohabitation with a new partner:

A. Automatically terminates maintenance

B. May support a modification motion based on changed circumstances but does not automatically terminate statutory maintenance

C. Increases maintenance

D. Has no possible relevance

QUESTION 148 OF 405 · FL-144 · MAINTENANCE — NON-MODIFIABLE AGREEMENTS

If the parties agree maintenance is contractual and non-modifiable:

A. The court can still modify it freely

B. Neither party may later obtain a modification, providing certainty

C. Only the payor can modify

D. It must be reviewed annually

QUESTION 149 OF 405 · FL-145 · MAINTENANCE — SCOPE FOR LLPS

Handling a maintenance claim within a dissolution is:

A. Within an attorney's scope only, never an LLP's

B. Within an LLP's scope as part of dissolution/legal separation matters

C. Within an LLP's scope only with attorney co-counsel

D. Within scope only below the advisory-formula income cap

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QUESTION 150 OF 405 · FL-146 · MAINTENANCE — COMPUTATION EXAMPLE

Higher earner: $8,000/month AGI; lower earner: $3,000/month AGI; combined under cap. The advisory amount is:

A. $1,700/month
B. $3,200/month
C. $2,800/month
D. $0

QUESTION 151 OF 405 · FL-147 · MAINTENANCE — ZERO RESULT

If both spouses earn $6,000/month AGI, the advisory maintenance amount is:

A. $2,400/month
B. $0
C. $3,000/month
D. $120/month

QUESTION 152 OF 405 · FL-148 · MAINTENANCE — ORDER OF OPERATIONS

When both maintenance and child support are ordered, the court calculates:

A. Child support first
B. Maintenance first, then adjusts incomes before calculating child support
C. Both simultaneously and independently
D. Only one of the two

QUESTION 153 OF 405 · FL-149 · MAINTENANCE — SELF-SUFFICIENCY GOAL

A central policy underlying maintenance is to:

A. Punish the higher earner
B. Address economic disparity and support the recipient's reasonable needs and transition toward self-sufficiency
C. Equalize the parties' incomes permanently
D. Reward the longer-married spouse

QUESTION 154 OF 405 · FL-150 · MAINTENANCE — RESERVED JURISDICTION

A court may sometimes 'reserve' the issue of maintenance, meaning:

A. Maintenance is denied forever
B. The court declines to award now but retains authority to consider maintenance later within the permissible period
C. Maintenance is automatically granted later
D. The parties cannot raise it again

Property

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QUESTION 155 OF 405 · FL-151 · PROPERTY — SYSTEM

Colorado divides marital property under which system?

A. Community property (equal split)
B. Equitable distribution
C. Title-based ownership
D. Forfeiture to the innocent spouse

QUESTION 156 OF 405 · FL-152 · PROPERTY — MARITAL PROPERTY DEFINITION

Marital property generally includes:

A. Only property titled in both names
B. All property acquired by either spouse during the marriage, with limited exceptions
C. Only the marital home
D. Property acquired before the marriage

QUESTION 157 OF 405 · FL-153 · PROPERTY — SEPARATE PROPERTY

Which is generally separate (non-marital) property?

A. A bonus earned during the marriage
B. Property acquired by gift, bequest, devise, or descent
C. Wages earned during the marriage
D. A home purchased during the marriage with marital funds

QUESTION 158 OF 405 · FL-154 · PROPERTY — APPRECIATION OF SEPARATE PROPERTY

The increase in value of one spouse's separate property during the marriage is:

A. Always separate
B. Marital property subject to division
C. Ignored entirely
D. Returned to the donor

QUESTION 159 OF 405 · FL-155 · PROPERTY — COMMINGLING

When separate funds are commingled with marital funds so they cannot be traced:

A. They remain separate automatically
B. They may lose their separate character and be treated as marital
C. They become the bank's property
D. They are split with the donor

QUESTION 160 OF 405 · FL-156 · PROPERTY — VALUATION DATE

Marital property is generally valued as of:

A. The date of marriage
B. The date of the decree or the hearing on property division
C. The date of separation
D. The date of filing

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QUESTION 161 OF 405 · FL-157 · PROPERTY — FACTORS

In dividing marital property, the court considers factors including:

A. Marital fault in causing the breakdown of the marriage

B. Each spouse's contribution (including as homemaker), the value of separate property set apart, economic circumstances, and changes in separate property value

C. Which spouse filed first

D. The length of the engagement

QUESTION 162 OF 405 · FL-158 · PROPERTY — MARITAL DEBT

Marital debts are:

A. Always assigned to the higher earner

B. Allocated equitably along with marital assets

C. Ignored by the court

D. Assigned to whoever incurred them in all cases

QUESTION 163 OF 405 · FL-159 · PROPERTY — RETIREMENT ACCOUNTS

The marital portion of a spouse's pension or 401(k) earned during the marriage is:

A. Separate property

B. Marital property subject to division

C. Exempt from division

D. The employer's property

QUESTION 164 OF 405 · FL-160 · PROPERTY — QDRO CARVE-OUT

Preparing the qualified domestic relations order (QDRO) needed to divide a 401(k) is:

A. Within an LLP's scope

B. Outside an LLP's scope (a collateral-issue carve-out)

C. Unnecessary for any plan

D. The judge's personal task

QUESTION 165 OF 405 · FL-161 · PROPERTY — MARITAL HOME

Awarding the marital home to the parent with majority parenting time:

A. Is prohibited unless a court approves it in advance

B. May be appropriate as an economic-circumstances factor, considering the children's stability

C. Is required by statute

D. Eliminates child support

QUESTION 166 OF 405 · FL-162 · PROPERTY — PRENUPTIAL AGREEMENT CARVE-OUT

If a valid premarital agreement governs property, an LLP:

A. May litigate its enforceability

B. May not prepare or litigate pre- or post-nuptial agreements (a carve-out)

C. Must draft a new one

D. May ignore it if the client instructs the LLP to do so

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QUESTION 167 OF 405 · FL-163 · PROPERTY — MARITAL AGREEMENTS ACT

Colorado's enforceability standards for premarital and marital agreements are set by the:

A. Uniform Commercial Code
B. Colorado Marital Agreement Act / Uniform Premarital and Marital Agreements Act
C. Restatement (Second) of Contracts
D. Probate Code

QUESTION 168 OF 405 · FL-164 · PROPERTY — TRUST BENEFICIARY CARVE-OUT

If a spouse is a trust beneficiary and trust information is relevant to the division, an LLP:

A. Should value the trust themselves
B. Must treat it as a carve-out outside scope and involve an attorney
C. May ignore the trust
D. Can subpoena the trustee alone

QUESTION 169 OF 405 · FL-165 · PROPERTY — BUSINESS VALUATION

Where a marital estate includes a closely held business, valuation:

A. Is unnecessary
B. Often requires expert valuation, and preparing documents to sell/distribute a business entity is a carve-out
C. Is the judge's job alone
D. Is prohibited

QUESTION 170 OF 405 · FL-166 · PROPERTY — DISSIPATION

If a spouse wastes marital assets (e.g., on an affair or gambling) in contemplation of divorce, the court may:

A. Sanction the spouse only through attorney-fee awards
B. Consider the dissipation/economic fault in making an equitable division
C. Award the wasting spouse more
D. Order criminal charges

QUESTION 171 OF 405 · FL-167 · PROPERTY — GIFTS BETWEEN SPOUSES

A gift from one spouse to the other during the marriage is generally:

A. Separate property of the recipient
B. Marital property subject to division
C. Returned to the donor
D. Voidable at the donor's election

QUESTION 172 OF 405 · FL-168 · PROPERTY — TRACING BURDEN

A spouse claiming an asset is separate bears the burden to:

A. Show acquisition before the marriage by clear and convincing evidence
B. Trace and prove the separate source of the property by a preponderance
C. Prove it beyond a reasonable doubt
D. Obtain the other spouse's consent

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QUESTION 173 OF 405 · FL-169 · PROPERTY — POST-DECREE OMITTED ASSETS

If an asset was not divided and was not disclosed, the remedy may include:

A. Quiet title in a separate civil action only
B. Reopening to divide the omitted asset, including under Rule 16.2(e) within 5 years for nondisclosure
C. Automatic 50/50 of all assets
D. Criminal restitution only

QUESTION 174 OF 405 · FL-170 · PROPERTY — SEPARATE PROPERTY INCOME

Income generated by separate property during the marriage (e.g., rent, interest) is:

A. Always separate
B. Often treated as marital, like appreciation, depending on the circumstances
C. The donor's property
D. Separate, unless deposited into a joint account

QUESTION 175 OF 405 · FL-171 · PROPERTY — EQUITABLE NOT EQUAL

A 60/40 division of marital property in favor of one spouse is:

A. Per se improper
B. Permissible if the court finds it equitable under the factors
C. Required in all cases
D. Only allowed by agreement

QUESTION 176 OF 405 · FL-172 · PROPERTY — DEBT INCURRED AFTER SEPARATION

Debt one spouse incurs after separation but before the decree is:

A. Always marital
B. Analyzed for whether it benefited the marriage or is separate; not automatically marital
C. Always the other spouse's
D. Presumed nonmarital by statute

QUESTION 177 OF 405 · FL-173 · PROPERTY — MARITAL PORTION OF SEPARATE ASSET

For a home one spouse owned before marriage but paid down with marital funds, the court may recognize:

A. A separate-property interest only, with no marital component
B. A marital interest in the appreciation and in equity built with marital funds during the marriage
C. A full marital ownership interest in the entire home
D. A marital interest limited to the original down payment

QUESTION 178 OF 405 · FL-174 · PROPERTY — AGREEMENTS ON DIVISION

Parties may resolve property division by:

A. Court order only
B. A separation agreement, which binds the court unless unconscionable
C. Oral handshake only
D. The children's preference

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QUESTION 179 OF 405 · FL-175 · PROPERTY — SCOPE RECAP

Which property-related task is within an LLP's scope?

A. Drafting a QDRO
B. Negotiating and drafting the agreement dividing the marital home and ordinary accounts
C. Litigating a prenuptial agreement
D. Preparing business-sale documents

Protection Orders

QUESTION 180 OF 405 · FL-176 · PROTECTION ORDERS — AUTHORITY

Civil protection orders in Colorado are governed primarily by:

A. Title 14, Article 10
B. Title 13, Article 14
C. Title 19, Article 4
D. Title 15

QUESTION 181 OF 405 · FL-177 · PROTECTION ORDERS — TWO-STEP STRUCTURE

The typical structure of a civil protection order proceeding is:

A. A single permanent order with no hearing
B. A temporary (ex parte) protection order followed by a hearing on a permanent order
C. Only a criminal charge
D. An automatic lifetime ban

QUESTION 182 OF 405 · FL-178 · PROTECTION ORDERS — TPO STANDARD

A temporary protection order may issue when the petitioner shows:

A. Mere dislike
B. A risk or threat of physical harm, or a threat of psychological or emotional harm
C. A prior breakup
D. A property dispute

QUESTION 183 OF 405 · FL-179 · PROTECTION ORDERS — PPO BURDEN

At the hearing to make a protection order permanent, the petitioner must generally prove the grounds by:

A. Beyond a reasonable doubt
B. A preponderance of the evidence
C. Clear and convincing evidence
D. No proof is needed

QUESTION 184 OF 405 · FL-180 · PROTECTION ORDERS — TIMING OF HEARING

After a TPO issues, the return hearing on a permanent order is typically set within:

A. 24 hours
B. 14 days
C. 15 days
D. 35 days

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QUESTION 185 OF 405 · FL-181 · PROTECTION ORDERS — SCOPE OF RELIEF

A protection order may include provisions such as:

A. Only a no-contact term
B. No-contact, stay-away, exclusion from a shared residence, and temporary care/parenting provisions
C. A property sale order
D. A criminal sentence

QUESTION 186 OF 405 · FL-182 · PROTECTION ORDERS — MUTUAL ORDERS

Mutual protection orders (against both parties):

A. Are favored
B. Are disfavored absent separate petitions and independent findings against each party
C. Are automatic
D. Are required in every case

QUESTION 187 OF 405 · FL-183 · PROTECTION ORDERS — RELATIONSHIP TO CRIMINAL

A civil protection order is:

A. The same as a criminal case
B. Separate from any criminal case arising out of the same conduct
C. A substitute for prosecution
D. Only available after a conviction

QUESTION 188 OF 405 · FL-184 · PROTECTION ORDERS — FIREARMS

A permanent protection order for domestic abuse commonly triggers:

A. No firearm consequences
B. Federal and state restrictions on the respondent's possession of firearms
C. An automatic firearm permit
D. Increased gun rights

QUESTION 189 OF 405 · FL-185 · PROTECTION ORDERS — DURATION/MODIFICATION

A permanent protection order:

A. Expires in one year automatically
B. Remains in effect until modified or dismissed, and the restrained party may later seek modification
C. Cannot ever be changed
D. Must be renewed monthly

QUESTION 190 OF 405 · FL-186 · PROTECTION ORDERS — STANDING

A protection order may be sought by:

A. Only married petitioners
B. A person who alleges abuse, stalking, or threats, including in non-marital relationships
C. Only parents
D. Only employers

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QUESTION 191 OF 405 · FL-187 · PROTECTION ORDERS — CHILDREN

A protection order proceeding may include temporary provisions for children when:

A. Only if a dissolution is already pending

B. Necessary for the children's safety, subject to the domestic relations court's authority over APR

C. Always, permanently

D. Only if the children testify

QUESTION 192 OF 405 · FL-188 · PROTECTION ORDERS — VIOLATION

Violating a protection order can result in:

A. No consequence

B. Criminal charges and/or contempt

C. Only a fine paid to the respondent

D. Automatic dismissal of the order

QUESTION 193 OF 405 · FL-189 · PROTECTION ORDERS — SCOPE FOR LLPS

Representing a client in a civil protection order matter is:

A. Outside an LLP's scope

B. Within an LLP's authorized scope

C. Allowed only for the respondent

D. Within scope for temporary orders but not permanent orders

QUESTION 194 OF 405 · FL-190 · PROTECTION ORDERS — EMERGENCY PROTECTION ORDER

When courts are closed, law enforcement may obtain from an on-call judge an:

A. Permanent protection order

B. Emergency protection order (EPO) of short duration

C. Automatic divorce

D. Arrest warrant only

Name Change

QUESTION 195 OF 405 · FL-191 · NAME CHANGE — ADULT AUTHORITY

An adult legal name change in Colorado is governed by:

A. C.R.S. 14-10-101, the dissolution article

B. C.R.S. 13-15-101

C. C.R.S. 19-1-101, the Children's Code

D. C.R.S. 15-10-101, the Colorado Probate Code

QUESTION 196 OF 405 · FL-192 · NAME CHANGE — REQUIREMENTS

An adult petitioner for a name change typically must provide:

A. Only a driver's license and a filing fee

B. A petition, and (depending on circumstances) a fingerprint-based criminal history check and publication, unless waived for safety

C. A jury trial

D. A doctor's note

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QUESTION 197 OF 405 · FL-193 · NAME CHANGE — MINOR

A name change for a minor generally requires:

A. Only the petitioning parent's consent
B. Notice to and often consent of both parents (or good cause), with the child's best interests considered
C. No notice to the other parent
D. The minor's sole decision

QUESTION 198 OF 405 · FL-194 · NAME CHANGE — PURPOSE LIMITS

A court may deny a name change if it is sought:

A. To take a spouse's surname
B. For a fraudulent or unlawful purpose, such as evading creditors or law enforcement
C. After divorce
D. For religious reasons

QUESTION 199 OF 405 · FL-195 · NAME CHANGE — RESTORATION IN DISSOLUTION

A party may have a former name restored:

A. Only in a separate action
B. As part of the dissolution decree on request
C. Only by separate petition under Title 13
D. Only with the other spouse's consent

QUESTION 200 OF 405 · FL-196 · NAME CHANGE — SAFETY WAIVERS

For a survivor of domestic violence, the court may:

A. Require publication always
B. Waive publication and seal records to protect the petitioner's safety
C. Deny the change
D. Notify the abuser

QUESTION 201 OF 405 · FL-197 · NAME CHANGE — EFFECT

A granted legal name change:

A. Erases the person's history
B. Changes the person's legal name going forward; the person should update records and IDs
C. Requires re-doing for each agency by court
D. Is temporary

QUESTION 202 OF 405 · FL-198 · NAME CHANGE — SCOPE FOR LLPS

Handling an adult or minor name change is:

A. Outside an LLP's scope
B. Within an LLP's authorized scope
C. Allowed only with attorney supervision
D. Prohibited for minors

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QUESTION 203 OF 405 · FL-199 · NAME CHANGE — CRIMINAL HISTORY

A required fingerprint-based criminal history check for an adult name change is intended to:

A. Punish the petitioner
B. Ensure the change is not sought to evade law enforcement or registration obligations
C. Generate revenue
D. Delay the case

QUESTION 204 OF 405 · FL-200 · NAME CHANGE — BOTH PARENTS DISAGREE (MINOR)

If one parent objects to a minor's name change, the court:

A. Must deny it
B. Decides based on the child's best interests after a hearing
C. Must grant it
D. Defers to the child only

Gender Designation

QUESTION 205 OF 405 · FL-201 · GENDER DESIGNATION — SCOPE

Assisting an adult with a legal gender-designation change is:

A. Outside an LLP's scope
B. Within an LLP's authorized scope
C. Allowed only in juvenile court
D. Within scope only with a supervising attorney's signature

QUESTION 206 OF 405 · FL-202 · GENDER DESIGNATION — BIRTH CERTIFICATE

Colorado permits a change of the sex designation on a birth certificate:

A. Through a probate court petition, as with a change of name
B. Through a statutory process, generally without requiring surgery
C. Through a court order, but only after gender-confirming surgery
D. Through a process available only to minors

QUESTION 207 OF 405 · FL-203 · GENDER DESIGNATION — NAME TOGETHER

A person changing gender designation often simultaneously seeks:

A. An amended Colorado birth certificate only, with no name change
B. A legal name change, which an LLP may also handle
C. A criminal record change
D. A new birthdate

QUESTION 208 OF 405 · FL-204 · GENDER DESIGNATION — MINORS

For a minor's gender-designation change, the process:

A. Is identical to an adult's
B. May require parental consent or court involvement and additional documentation
C. Is prohibited
D. Requires a jury

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QUESTION 209 OF 405 · FL-205 · GENDER DESIGNATION — CONFIDENTIALITY

In handling identity-change matters, an LLP should be attentive to:

A. Publicizing the change widely

B. Protecting the client's privacy and safety, including seeking record sealing or publication waivers where appropriate

C. Ignoring confidentiality

D. Notifying the public

Parentage

QUESTION 210 OF 405 · FL-206 · PARENTAGE — GOVERNING ACT

Parentage in Colorado is determined under the:

A. Uniform Commercial Code

B. Uniform Parentage Act (Title 19, Article 4)

C. UCCJEA

D. Probate Code

QUESTION 211 OF 405 · FL-207 · PARENTAGE — PRESUMPTION (MARRIAGE)

A man is presumed to be the father if:

A. He pays support

B. He and the child's mother are married (or were within 300 days before birth) or he holds the child out as his own

C. He requests it

D. He is older than the mother

QUESTION 212 OF 405 · FL-208 · PARENTAGE — ACKNOWLEDGMENT

Parentage may be established without court action by:

A. A verbal statement

B. A voluntary acknowledgment of parentage signed by both parents

C. A birth announcement

D. Naming the child

QUESTION 213 OF 405 · FL-209 · PARENTAGE — RESCINDING ACKNOWLEDGMENT

A signed acknowledgment of parentage may generally be rescinded:

A. Within 2 years of the child's birth

B. Within a limited statutory period (e.g., 60 days) or before a related proceeding, whichever is earlier

C. Within 90 days after signing, regardless of any related proceeding

D. Only through a full parentage adjudication

QUESTION 214 OF 405 · FL-210 · PARENTAGE — GENETIC TESTING

In a contested parentage case, the court may order:

A. A psychological evaluation of both parents

B. Genetic (DNA) testing to determine biological parentage

C. A lie-detector test

D. A jury verdict only

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QUESTION 215 OF 405 · FL-211 · PARENTAGE — TWO-PARTY SCOPE

An LLP may handle a parentage case when it involves:

A. Three or more alleged parents disputing parentage
B. Two parties (a two-party parentage determination)
C. A contested ICWA matter
D. A trust dispute

QUESTION 216 OF 405 · FL-212 · PARENTAGE — MULTI-PARTY CARVE-OUT

Which parentage scenario is OUTSIDE an LLP's scope?

A. A mother and one alleged father with DNA testing
B. A dispute where more than two people assert or deny legal parentage
C. An uncontested acknowledgment
D. Establishing support after parentage

QUESTION 217 OF 405 · FL-213 · PARENTAGE — STANDING/TIME LIMITS

An action to establish parentage:

A. Must be filed before the child turns 5 in all cases
B. May be subject to statutory standing and limitation provisions, varying by presumption
C. Has no procedural rules
D. Is criminal

QUESTION 218 OF 405 · FL-214 · PARENTAGE — SUPPORT AFTER ESTABLISHMENT

After parentage is established, the court may order:

A. Support running only from the judgment date forward
B. Child support, including potentially retroactive support to birth within limits
C. Only future support starting at age 5
D. Support paid to the state only

QUESTION 219 OF 405 · FL-215 · PARENTAGE — ASSISTED REPRODUCTION

Parentage involving assisted reproduction or surrogacy:

A. Is always simple
B. Can raise complex legal issues that may exceed an LLP's competence/scope
C. Is criminal
D. Is identical to ordinary parentage

QUESTION 220 OF 405 · FL-216 · PARENTAGE — PRESUMPTION REBUTTAL

A presumption of parentage may be rebutted:

A. Only within 63 days of the child's birth
B. By clear and convincing evidence, including genetic test results, in an appropriate proceeding
C. By a simple denial
D. Only after the child turns 18

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QUESTION 221 OF 405 · FL-217 · PARENTAGE — BEST INTERESTS OVERLAY

In some parentage disputes, the court may consider:

A. The genetic evidence alone, to the exclusion of other factors

B. The child's best interests and the policy of protecting established parent-child relationships, not biology alone

C. The mother's wishes alone, as the presumptive parent

D. The alleged father's income only

QUESTION 222 OF 405 · FL-218 · PARENTAGE — ACKNOWLEDGMENT EFFECT

A valid, unrescinded acknowledgment of parentage:

A. Is merely advisory

B. Has the legal effect of a determination of parentage (like a judgment)

C. Must be re-signed yearly

D. Requires court approval to take effect

QUESTION 223 OF 405 · FL-219 · PARENTAGE — JURISDICTION FOR SUPPORT

To order support against an out-of-state alleged parent, the court needs:

A. Only subject-matter jurisdiction over the child's home state

B. Personal jurisdiction (e.g., under UIFSA's long-arm provisions)

C. Only the child's presence

D. The other parent's consent

QUESTION 224 OF 405 · FL-220 · PARENTAGE — SCOPE SUMMARY

Which parentage task is within an LLP's scope?

A. A four-party parentage dispute

B. A two-party action to establish parentage and resulting support and APR

C. A contested ICWA placement

D. Drafting a surrogacy contract

Scope

QUESTION 225 OF 405 · FL-221 · SCOPE — AUTHORIZED MATTERS

Which of the following is within an LLP's authorized family law scope?

A. Registering a foreign order

B. Dissolution, legal separation, and declaration of invalidity

C. Punitive contempt

D. A prenuptial agreement dispute

QUESTION 226 OF 405 · FL-222 · SCOPE — CONTINUING ON IN-SCOPE ISSUES

If a complex out-of-scope issue arises mid-case, C.R.C.P. 207.1(i) allows an LLP to:

A. Continue only after the client retains an attorney for the whole case

B. Continue representing the client on the in-scope matters while the client obtains an attorney for the out-of-scope issue

C. Continue and take on the out-of-scope issue as well

D. Continue only through withdrawal, retaining the fee already earned

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QUESTION 227 OF 405 · FL-223 · SCOPE — FOREIGN ORDER REGISTRATION

Registration of an out-of-state custody or support order is:

A. Within an LLP's scope
B. A carve-out outside an LLP's scope
C. Always unnecessary
D. Handled by the clerk for the LLP

QUESTION 228 OF 405 · FL-224 · SCOPE — COMMON-LAW MARRIAGE DISPUTE

A contested common-law marriage (existence or formation date disputed) is:

A. Within an LLP's scope
B. Outside an LLP's scope (a carve-out)
C. Not recognized in Colorado
D. Decided by the parties

QUESTION 229 OF 405 · FL-225 · SCOPE — ICWA MATTERS

Certain non-parent decision-making or parenting-time disputes are outside an LLP's scope when:

A. The child is over 12
B. The court has determined the Indian Child Welfare Act (ICWA) applies and a non-parent's contested request is involved
C. The parents agree
D. No tribe is involved

QUESTION 230 OF 405 · FL-248 · SCOPE — WORKING WITH AN ATTORNEY

When part of a matter is out of scope, an LLP and an attorney:

A. Cannot both be involved
B. May work in tandem, with the attorney handling the out-of-scope issue
C. Must merge into one firm
D. Are prohibited from communicating

QUESTION 231 OF 405 · FL-250 · SCOPE — IDENTIFYING OUT-OF-SCOPE ISSUES

A competent LLP's first task when a complex issue appears is to:

A. Proceed regardless
B. Recognize whether it falls within a carve-out or exceeds the LLP's competence and advise the client accordingly
C. Ask the judge to decide scope
D. Withdraw from everything

LLP in Court

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QUESTION 232 OF 405 · FL-226 · LLP IN COURT — PERMITTED ACTIVITIES

In a hearing within their scope, an LLP may:

A. Only sit silently
B. Examine witnesses, make objections and offers of proof, and argue to the court
C. Only file documents
D. Only speak if the judge asks

QUESTION 233 OF 405 · FL-227 · LLP IN COURT — WITNESS EXAMINATION

Regarding witness testimony, the current rule:

A. Permits no questioning of witnesses by an LLP
B. Permits an LLP to elicit testimony and examine any witness
C. Permits cross-examination only, not direct
D. Permits questioning of the LLP's own client only

QUESTION 234 OF 405 · FL-228 · LLP IN COURT — EXPERTS

Concerning expert witnesses, the current rule:

A. Bars LLPs from any case with an expert
B. Contains no scope limitation specific to expert witnesses
C. Requires attorney co-counsel for experts
D. Forbids cross-examining experts

LLP

QUESTION 235 OF 405 · FL-229 · LLP — LIBERAL CONSTRUCTION

The comment to C.R.C.P. 207.1 directs that an LLP's authorized scope be:

A. Narrowly construed
B. Liberally construed to include ordinary and reasonable actions within scope not expressly prohibited
C. Applied only to uncontested matters
D. Limited to JDF forms

Carve-Out

QUESTION 236 OF 405 · FL-230 · CARVE-OUT — QDRO/RETIREMENT

Preparing a QDRO to divide retirement assets is outside scope because it is:

A. A simple form
B. A collateral issue requiring analysis outside the LLP's authorized practice
C. Always handled by the plan
D. Within Title 19

QUESTION 237 OF 405 · FL-231 · CARVE-OUT — COLLATERAL ISSUES

Which is a collateral-issue carve-out an LLP must refer out?

A. Calculating child support
B. An immigration, criminal, or bankruptcy issue affecting the family matter
C. Drafting a parenting plan
D. Filing a dissolution petition

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QUESTION 238 OF 405 · FL-232 · CARVE-OUT — BUSINESS ENTITY DOCUMENTS

Preparing documents to effectuate the sale or distribution of a business entity is:

A. Within scope

B. Outside scope, except an agreement addressing the underlying property division

C. Always required

D. Handled by the court

QUESTION 239 OF 405 · FL-242 · CARVE-OUT — TRUST INCOME DISPUTE

A dispute about the value of or income from a trust in which a party is a beneficiary is:

A. Within scope

B. A carve-out outside an LLP's scope

C. Irrelevant to family law

D. Handled by the trustee in the divorce

QUESTION 240 OF 405 · FL-245 · CARVE-OUT — PUNITIVE CONTEMPT REFERRAL

If a client wants to jail an ex-spouse purely to punish past nonpayment, the LLP should:

A. File for punitive contempt

B. Explain that punitive contempt is outside scope and refer the client to an attorney, while offering remedial remedies within scope

C. File remedial contempt but style it as punitive

D. Explain the difference and let the client file the punitive motion pro se

Contempt

QUESTION 241 OF 405 · FL-233 · CONTEMPT — REMEDIAL VS. PUNITIVE

The key difference between remedial and punitive contempt is:

A. The courtroom used

B. Remedial is coercive and purgeable; punitive imposes a fixed sanction to punish and is outside LLP scope

C. Remedial requires a jury

D. There is no difference

QUESTION 242 OF 405 · FL-234 · CONTEMPT — ELEMENTS

To establish remedial contempt for violating a court order, the movant must show:

A. Only that an order exists

B. A valid order, the respondent's knowledge of it, present ability to comply, and willful noncompliance

C. Criminal intent beyond a reasonable doubt

D. That the respondent is wealthy

Hearings

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QUESTION 243 OF 405 · FL-235 · HEARINGS — BURDEN OF PROOF

Most contested family law issues are decided by:

A. Beyond a reasonable doubt
B. A preponderance of the evidence
C. Clear and convincing evidence in all cases
D. No standard

QUESTION 244 OF 405 · FL-240 · HEARINGS — OFFERS OF PROOF

An offer of proof is used to:

A. Object to the judge
B. Preserve for the record what excluded evidence would have shown
C. Cross-examine the judge
D. Pay the filing fee

UCCJEA

QUESTION 245 OF 405 · FL-236 · UCCJEA — PURPOSE

The UCCJEA primarily exists to:

A. Set child support amounts
B. Allocate jurisdiction among states for custody/APR and prevent conflicting orders
C. Divide marital property
D. Govern adoptions

QUESTION 246 OF 405 · FL-238 · UCCJEA — ONE HOME STATE

Under the UCCJEA, at any given time a child generally has:

A. Multiple home states
B. At most one home state
C. No home state ever
D. A home state chosen by the parents

UIFSA

QUESTION 247 OF 405 · FL-237 · UIFSA — PURPOSE

UIFSA primarily governs:

A. Custody jurisdiction
B. Establishment, enforcement, and modification of support orders across state lines
C. Property division
D. Name changes

Disclosure

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QUESTION 248 OF 405 · FL-239 · DISCLOSURE — CONTINUING DUTY

If a party's income changes significantly after initial disclosures but before the hearing, the party must:

A. Wait to be asked
B. Supplement disclosures promptly under the continuing duty
C. Amend only if the change exceeds 20% of income
D. Disclose only at the hearing

QUESTION 249 OF 405 · FL-246 · DISCLOSURE — SANCTIONS

A party who hides assets in violation of Rule 16.2 may face:

A. No consequence
B. Sanctions, reallocation of the asset within 5 years, and adverse credibility findings
C. A presumption the hidden asset is separate property
D. Dismissal of the other party's case

Evidence

QUESTION 250 OF 405 · FL-241 · EVIDENCE — BEST INTERESTS TESTIMONY

In an APR hearing, a CFI's report:

A. Binds the court
B. Is evidence the court considers but does not have to follow
C. Cannot be challenged
D. Is admissible only if both parties stipulate

Mixed

QUESTION 251 OF 405 · FL-251 · MIXED — DIVISIBLE DIVORCE

The concept that a court may dissolve a marriage even without personal jurisdiction to divide property is called:

A. Comity
B. Divisible divorce
C. Res judicata
D. Forum non conveniens

QUESTION 252 OF 405 · FL-252 · MIXED — CHILD SUPPORT AND MAINTENANCE ORDER

In a case with both awards, an error candidates make is:

A. Calculating maintenance first
B. Calculating child support before adjusting incomes for maintenance paid
C. Considering the guideline
D. Making findings

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QUESTION 253 OF 405 · FL-253 · MIXED — RELOCATION AND MODIFICATION STANDARDS

A parent with majority time moving out of state post-decree implicates:

A. Only best interests with no extra factors

B. The relocation factors of 14-10-129(2)(c) and, if changing the majority parent, the endangerment trigger

C. Section 14-10-113 only

D. No standards

QUESTION 254 OF 405 · FL-254 · MIXED — IMPUTATION EXCEPTION RECALL

Income is NOT imputed to a parent who is:

A. Underemployed by choice

B. Physically or mentally incapacitated, or caring for a child under 30 months for whom both owe support

C. Working part-time voluntarily

D. Recently promoted

QUESTION 255 OF 405 · FL-255 · MIXED — SHARED-CARE TRIGGER RECALL

Since March 1, 2026, how many overnights a year earn a parenting time credit?

A. 90

B. 1

C. 93

D. 182

QUESTION 256 OF 405 · FL-256 · MIXED — MAINTENANCE CAP RECALL

The advisory maintenance formula applies up to a combined annual adjusted gross income of:

A. $120,000

B. $240,000

C. $250,000

D. $500,000 or less

QUESTION 257 OF 405 · FL-257 · MIXED — PROPERTY APPRECIATION RECALL

A spouse's inheritance grows from $40,000 to $55,000 during the marriage. The marital portion is:

A. $15,500

B. $15,000

C. $40,000

D. $0

QUESTION 258 OF 405 · FL-258 · MIXED — MODIFICATION PRESUMPTION RECALL

A recalculation showing support should change by 12% creates:

A. A presumption of no change, because 12% is below the threshold

B. A rebuttable presumption of a substantial and continuing change

C. A mandatory denial of the modification request

D. A referral for criminal enforcement of the arrears

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QUESTION 259 OF 405 · FL-259 · MIXED — ENDANGERMENT RECALL

To restrict a parent's parenting time, the court must find that parenting time would:

A. Be inconvenient

B. Endanger the child's physical health or significantly impair emotional development

C. Cost too much

D. Reduce support

QUESTION 260 OF 405 · FL-260 · MIXED — DECREE FINALITY

After the decree, property division is:

A. Freely modifiable like support

B. Generally final and not modifiable absent fraud, nondisclosure, or other narrow grounds

C. Modifiable any time

D. Voidable within one year

QUESTION 261 OF 405 · FL-261 · MIXED — EMANCIPATION RECALL

Absent exceptions, child support ends when the child reaches:

A. 18

B. 19

C. 21

D. 16

QUESTION 262 OF 405 · FL-262 · MIXED — BEST INTERESTS VS. PARENTAL RIGHTS

In a contest between a fit parent and a non-parent, the law gives:

A. Equal footing

B. Special weight to the parent's constitutionally protected interest, with the non-parent facing a higher standard

C. Preference to the non-parent

D. No preference

QUESTION 263 OF 405 · FL-263 · MIXED — MAINTENANCE FINDINGS RECALL

Because the maintenance guideline is advisory, the court must:

A. Simply apply the formula

B. Make findings on the guideline amount/term and the statutory factors

C. Defer to the payor

D. Award nothing

QUESTION 264 OF 405 · FL-264 · MIXED — TAX EXEMPTION ALLOCATION

The dependency tax benefit may be allocated to the non-residential parent:

A. Only if the parents file a joint tax return

B. By court order, often conditioned on the obligor being current, with the residential parent executing IRS Form 8332

C. Automatically

D. Only by the IRS

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QUESTION 265 OF 405 · FL-265 · MIXED — COMMON-LAW MARRIAGE TEST

Colorado's refined test for common-law marriage (post-Hogsett) focuses on:

A. Cohabitation alone
B. The parties' mutual agreement to enter marriage, shown by conduct manifesting that agreement
C. A recorded declaration filed with the clerk
D. A 7-year cohabitation rule

QUESTION 266 OF 405 · FL-266 · MIXED — MODIFICATION RETROACTIVITY RECALL

A support modification is generally effective from:

A. The child's birth
B. The date the motion was filed
C. The hearing date only
D. One year before filing

QUESTION 267 OF 405 · FL-267 · MIXED — SCOPE-DRIVEN ADVICE

When a dissolution involves a contested prenup and a QDRO, a competent LLP should:

A. Handle everything
B. Continue on in-scope issues and advise the client to retain an attorney for the prenup dispute and QDRO
C. Withdraw entirely
D. Handle the QDRO but refer out the prenup dispute

QUESTION 268 OF 405 · FL-268 · MIXED — UCCJEA VS. UIFSA

Which pairing is correct?

A. UCCJEA = support; UIFSA = custody
B. UCCJEA = custody/APR jurisdiction; UIFSA = support jurisdiction
C. UCCJEA governs initial custody only; modifications run under UIFSA
D. UCCJEA applies only when a foreign country is involved

QUESTION 269 OF 405 · FL-269 · MIXED — DISCLOSURE REMEDY RECALL

The special remedy for a materially omitted or misstated asset due to nondisclosure allows reallocation within:

A. 1 year
B. 5 years
C. 6 years
D. 7 years

QUESTION 270 OF 405 · FL-270 · MIXED — PUTTING IT TOGETHER

A 12-year marriage, two minor children, combined income $150,000, a marital home, the husband's pension, and a disputed inheritance. Which issue is OUTSIDE an LLP's scope?

A. Calculating child support
B. Dividing the marital home
C. Preparing a QDRO for the pension
D. Drafting the parenting plan

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Ethics

QUESTION 271 OF 405 · ETH-001 · ETHICS — COMPETENCE

Under Colo. LLP RPC 1.1, an LLP must:

A. Take any case offered

B. Provide competent representation requiring legal knowledge, skill, thoroughness, and preparation reasonably necessary

C. Guarantee a result

D. Match an attorney's expertise in all fields

QUESTION 272 OF 405 · ETH-002 · ETHICS — COMPETENCE

An LLP asked to handle a dissolution issue requiring analysis of a complex trust should:

A. Obtain the client's informed consent, confirmed in writing, and handle the trust analysis

B. Advise the client to consult an attorney, because the issue is both a competence concern and a scope carve-out

C. Associate with a supervising attorney and continue handling the trust issue

D. Decline the entire case

QUESTION 273 OF 405 · ETH-003 · ETHICS — COMPETENCE

Maintaining competence requires an LLP to:

A. Limit practice to areas learned before licensure

B. Keep abreast of changes in the law and practice, including continuing education

C. Rely solely on past training

D. Maintain paper files as the system of record

QUESTION 274 OF 405 · ETH-015 · ETHICS — COMPETENCE

An LLP lacking competence in a discrete in-scope task may:

A. Decline it unless the client waives competence in writing

B. Acquire competence through reasonable preparation or associate with a competent LLP/attorney

C. Only refer it out

D. Handle it and disclose the inexperience afterward

QUESTION 275 OF 405 · ETH-020 · ETHICS — COMPETENCE

An LLP's duty of competence in technology includes:

A. Reasonable avoidance of technology in the practice

B. Reasonable understanding of relevant technology, including e-filing and protecting client data

C. Reasonable reliance on a vendor for all technology decisions

D. Reasonable refusal to use email with clients

QUESTION 276 OF 405 · ETH-004 · ETHICS — SCOPE/LIMITS

Under LLP RPC 1.2, an LLP may limit the scope of a representation if:

A. The client is unaware

B. The limitation is reasonable and the client gives informed consent

C. The LLP simply prefers it

D. A judge approves

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QUESTION 277 OF 405 · ETH-005 · ETHICS — SCOPE/LIMITS

A defining ethical duty unique to LLPs is to:

A. Advise clients that the LLP must maintain a trust account for client funds
B. Advise clients of the limitations on the LLP's license and authorized practice
C. Advise clients that the LLP must complete annual continuing legal education
D. Advise clients that the LLP must carry malpractice insurance and disclose coverage limits

QUESTION 278 OF 405 · ETH-006 · ETHICS — SCOPE/LIMITS

The client, not the LLP, generally decides:

A. Which witnesses to cross-examine
B. The objectives of the representation, such as whether to settle
C. Courtroom tactics
D. The wording of motions

QUESTION 279 OF 405 · ETH-007 · ETHICS — SCOPE/LIMITS

An LLP may NOT counsel or assist a client to:

A. Pursue a lawful but aggressive position
B. Engage in conduct the LLP knows is criminal or fraudulent
C. File a disclosed motion
D. Negotiate firmly

QUESTION 280 OF 405 · ETH-016 · ETHICS — SCOPE/LIMITS

Informed consent under the LLP rules requires:

A. A signature only
B. The client's agreement after the LLP communicates adequate information about the material risks and reasonable alternatives
C. No explanation
D. Court approval

QUESTION 281 OF 405 · ETH-019 · ETHICS — SCOPE/LIMITS

Limited-scope (unbundled) representation by an LLP is:

A. Permitted only in uncontested matters
B. Permitted if reasonable and with informed consent, with disclosure to the court as required
C. Always full-service only
D. Allowed without telling anyone

QUESTION 282 OF 405 · ETH-023 · ETHICS — SCOPE/LIMITS

If a client insists on pursuing an out-of-scope objective, the LLP should:

A. Pursue it anyway
B. Explain the scope limit, decline the out-of-scope work, and advise the client to consult an attorney
C. Hide the limitation
D. Sign an attorney's name

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QUESTION 283 OF 405 · ETH-008 · ETHICS — DILIGENCE

LLP RPC 1.3 requires an LLP to:

A. Act whenever convenient
B. Act with reasonable diligence and promptness in representing a client
C. Prioritize the highest-paying client
D. Delay to increase fees

QUESTION 284 OF 405 · ETH-009 · ETHICS — DILIGENCE

If an LLP's workload prevents diligent handling of a new matter, the LLP should:

A. Take it anyway
B. Decline or limit the workload so each client is served competently and diligently
C. Hand it to a non-licensed assistant
D. Delay indefinitely

QUESTION 285 OF 405 · ETH-010 · ETHICS — DILIGENCE

Upon completing or terminating a representation, diligence and related duties require the LLP to:

A. Take no steps, keeping the file permanently confidential
B. Take steps to protect the client's interests, such as returning the file and giving notice
C. Take on no further duty once the representation ends
D. Take the file out of storage and destroy it immediately

QUESTION 286 OF 405 · ETH-017 · ETHICS — DILIGENCE

Missing a filing deadline that harms the client most directly implicates:

A. Confidentiality
B. Diligence (and possibly competence)
C. Advertising rules
D. Trust accounting

QUESTION 287 OF 405 · ETH-022 · ETHICS — DILIGENCE

A single, isolated act of neglect versus a pattern:

A. Both are always disbarment
B. Either can violate diligence; a pattern is more serious and aggravating
C. Only a pattern matters
D. Neither matters

QUESTION 288 OF 405 · ETH-011 · ETHICS — COMMUNICATION

LLP RPC 1.4 requires an LLP to:

A. Communicate only in writing
B. Keep the client reasonably informed and promptly comply with reasonable requests for information
C. Communicate only at the end
D. Speak only to opposing counsel

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QUESTION 289 OF 405 · ETH-012 · ETHICS — COMMUNICATION

Explaining a matter so the client can make informed decisions includes:

A. Only legal jargon
B. Explaining the practical and legal options, including scope limits affecting the client
C. Withholding bad news
D. Deferring all decisions to the LLP

QUESTION 290 OF 405 · ETH-013 · ETHICS — COMMUNICATION

A settlement offer received from the opposing party should be:

A. Accepted by the LLP
B. Promptly communicated to the client, who decides whether to accept
C. Evaluated by the LLP and conveyed only if reasonable
D. Held for the next scheduled client meeting

QUESTION 291 OF 405 · ETH-014 · ETHICS — COMMUNICATION

If a client makes a decision the LLP disagrees with but that is lawful and within the client's authority, the LLP should:

A. Override the client
B. Abide by the client's lawful decision on objectives after advising them
C. Withdraw automatically
D. Report the client

QUESTION 292 OF 405 · ETH-018 · ETHICS — COMMUNICATION

How promptly must an LLP respond to a client's reasonable requests for information?

A. Within a year
B. Promptly, or with a reasonable explanation if a prompt substantive response is not feasible
C. Only after the case ends
D. Required only at 30-day intervals

QUESTION 293 OF 405 · ETH-021 · ETHICS — COMMUNICATION

When a matter involves a decision reserved to the client, the LLP must:

A. Decide for efficiency
B. Reasonably consult with the client about the means to accomplish the objectives
C. Consult only at the client's written request
D. Let opposing counsel decide

QUESTION 294 OF 405 · ETH-024 · ETHICS — COMMUNICATION

Communicating with a represented opposing party directly about the matter is:

A. Permitted if the LLP copies opposing counsel
B. Prohibited without the consent of that party's counsel (the no-contact rule)
C. Permitted if the represented party initiates the contact
D. Allowed by email only

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QUESTION 295 OF 405 · ETH-025 · ETHICS — COMMUNICATION

When dealing with an unrepresented person, an LLP must:

A. Give legal advice freely

B. Not state or imply disinterest, and avoid giving legal advice other than to secure counsel if the person's interests conflict

C. Pretend to represent them

D. Obtain their signature on a non-representation waiver

QUESTION 296 OF 405 · ETH-026 · ETHICS — FEES

Under LLP RPC 1.5, an LLP's fee must be:

A. The maximum the market allows

B. Reasonable

C. Set by the court

D. Equal to an attorney's fee

QUESTION 297 OF 405 · ETH-027 · ETHICS — FEES

Which is a factor in determining the reasonableness of a fee?

A. The client's astrological sign

B. The time and labor required, novelty and difficulty, customary fee, and results obtained

C. The LLP's mortgage

D. The opposing party's wealth

QUESTION 298 OF 405 · ETH-028 · ETHICS — FEES

The basis or rate of the fee should be communicated to the client:

A. Only in contingent-fee matters

B. Preferably in writing, before or within a reasonable time after commencing the representation

C. Only if asked

D. After the case ends

QUESTION 299 OF 405 · ETH-029 · ETHICS — FEES

Is there a cap on what an LLP may charge?

A. Yes, half an attorney's rate by rule

B. No statutory cap, but the fee must be reasonable

C. Yes, a flat $100/hour

D. Yes, set by the client's income

QUESTION 300 OF 405 · ETH-030 · ETHICS — FEES

A contingent fee in a domestic relations matter is:

A. Generally permitted in any domestic relations matter

B. Generally prohibited when contingent on securing a dissolution or on the amount of support/property

C. Generally permitted if the fee is capped at one-third

D. Generally permitted with the court's advance approval

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QUESTION 301 OF 405 · ETH-031 · ETHICS — FEES

Advance fees (retainers) paid by a client are generally:

A. The LLP's money immediately

B. Client funds held in trust until earned, subject to the safekeeping rules

C. Earned on receipt if labeled a 'retainer'

D. Nonrefundable always

QUESTION 302 OF 405 · ETH-032 · ETHICS — FEES

On termination of the representation, any unearned portion of a fee:

A. Is kept by the LLP

B. Must be refunded to the client

C. Is paid to the court

D. Is forfeited

QUESTION 303 OF 405 · ETH-033 · ETHICS — FEES

Fee splitting between an LLP and a lawyer not in the same firm is:

A. Permitted in all circumstances, without conditions

B. Permitted only under conditions (e.g., proportional to services or joint responsibility, client consent, reasonable total fee)

C. Permitted in no circumstances

D. Permitted without disclosure to the client

QUESTION 304 OF 405 · ETH-034 · ETHICS — FEES

Charging a client for a clearly excessive number of hours is:

A. Permissible if billed

B. A violation of the reasonableness requirement and potentially fraudulent

C. Permitted if the client pays without objection

D. A trust-accounting issue only

QUESTION 305 OF 405 · ETH-035 · ETHICS — FEES

If a fee dispute arises, the LLP should be aware that:

A. Fee disputes leave the client without recourse

B. Fee dispute resolution mechanisms exist and the LLP should handle disputed funds appropriately in trust

C. Fee amounts in dispute may be kept by the LLP

D. Fee disputes can be resolved only by litigation

QUESTION 306 OF 405 · ETH-047 · ETHICS — FEES

Commingling earned and unearned fees in one account is:

A. Permitted if the account is interest-bearing

B. Improper; unearned client funds must be held in trust separate from the LLP's operating funds

C. Permitted for flat fees under $2,000

D. A communication issue

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QUESTION 307 OF 405 · ETH-049 · ETHICS — FEES

An LLP serving low- and moderate-income clients:

A. Must charge the maximum
B. May serve clients regardless of income, with reasonable fees; there is no income restriction
C. Cannot serve wealthy clients
D. Must work for free

QUESTION 308 OF 405 · ETH-036 · ETHICS — CONFIDENTIALITY

LLP RPC 1.6 prohibits revealing:

A. Only privileged communications
B. Information relating to the representation of a client, absent informed consent or an exception
C. Only written information
D. Only information the client marks confidential

QUESTION 309 OF 405 · ETH-037 · ETHICS — CONFIDENTIALITY

Confidentiality under RPC 1.6 compared to the evidentiary privilege is:

A. Narrower
B. Broader, covering more than just privileged communications
C. Identical
D. Inapplicable to LLPs

QUESTION 310 OF 405 · ETH-038 · ETHICS — CONFIDENTIALITY

An LLP may reveal confidential information to:

A. Anyone who asks
B. Prevent reasonably certain death or substantial bodily harm
C. Gossip with colleagues
D. Promote the LLP's business

QUESTION 311 OF 405 · ETH-039 · ETHICS — CONFIDENTIALITY

Disclosure to comply with a court order is:

A. Permitted only after an in-camera review
B. Permitted, generally limited to the extent reasonably necessary
C. Mandatory in all respects
D. Only allowed with client consent

QUESTION 312 OF 405 · ETH-040 · ETHICS — CONFIDENTIALITY

The confidentiality duty continues:

A. Only during the case
B. After the representation ends and even after the client's death
C. Only until the first hearing
D. Until the fee is paid

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QUESTION 313 OF 405 · ETH-041 · ETHICS — CONFIDENTIALITY

An LLP must make reasonable efforts to:

A. Publicize client matters
B. Prevent inadvertent or unauthorized disclosure of, and unauthorized access to, client information
C. Store data publicly
D. Share files with marketers

QUESTION 314 OF 405 · ETH-042 · ETHICS — CONFIDENTIALITY

Discussing a client's case in a crowded elevator where others can hear:

A. Is protected by the attorney-client privilege
B. Risks an unauthorized disclosure of confidential information
C. Is required for transparency
D. Is only a competence issue

QUESTION 315 OF 405 · ETH-043 · ETHICS — CONFIDENTIALITY

Client consent to disclosure must be:

A. Implied from silence always
B. Informed consent (or impliedly authorized to carry out the representation)
C. Confirmed in writing within 7 days
D. Approved by the court

QUESTION 316 OF 405 · ETH-044 · ETHICS — CONFIDENTIALITY

An LLP learns the client intends to commit perjury at an upcoming hearing. Confidentiality:

A. Bars any action
B. May yield to the duty of candor to the tribunal, which can require remedial measures
C. Requires the LLP to assist
D. Is irrelevant

QUESTION 317 OF 405 · ETH-045 · ETHICS — CONFIDENTIALITY

Using a former client's confidential information to their disadvantage is:

A. Prohibited only while the representation is ongoing
B. Prohibited absent consent, except as the rules otherwise permit
C. Prohibited only until the file has been closed for 7 years
D. Prohibited only where a fee dispute is involved

QUESTION 318 OF 405 · ETH-046 · ETHICS — CONFIDENTIALITY

Confidentiality applies to information learned:

A. Only from the client directly
B. From any source, as long as it relates to the representation
C. Only from documents
D. Only in court

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QUESTION 319 OF 405 · ETH-048 · ETHICS — CONFIDENTIALITY

An LLP may disclose limited confidential information to:

A. Win an award

B. Secure legal advice about the LLP's compliance with the rules

C. Entertain friends

D. Build a marketing list

QUESTION 320 OF 405 · ETH-050 · ETHICS — CONFIDENTIALITY

Before disclosing under an exception, the LLP should disclose:

A. As much as possible

B. Only the information reasonably necessary to accomplish the permitted purpose

C. Everything to be safe

D. Only information already in the public record

QUESTION 321 OF 405 · ETH-051 · ETHICS — CONFLICTS

Under LLP RPC 1.7, a concurrent conflict exists when:

A. The clients are friends

B. The representation of one client is directly adverse to another, or there is a significant risk it will be materially limited

C. The fee charged is higher than customary

D. The case is complex

QUESTION 322 OF 405 · ETH-052 · ETHICS — CONFLICTS

Representing both spouses in their dissolution is:

A. Permitted with a flat fee

B. A non-consentable conflict because the parties are directly adverse in the same litigation

C. Encouraged for efficiency

D. Allowed if uncontested

QUESTION 323 OF 405 · ETH-053 · ETHICS — CONFLICTS

A concurrent conflict may sometimes be waived if:

A. The LLP maintains separate files for each client

B. The LLP reasonably believes it can provide competent and diligent representation, it is lawful, the clients are not directly adverse in the same litigation, and each gives informed written consent

C. The judge allows it

D. The fee is reduced

QUESTION 324 OF 405 · ETH-054 · ETHICS — CONFLICTS

Some conflicts are non-consentable, meaning:

A. Any conflict can be waived

B. Even with consent, the LLP may not proceed (e.g., suing one current client on behalf of another in the same case)

C. Consent is implied

D. The client decides unilaterally

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QUESTION 325 OF 405 · ETH-055 · ETHICS — CONFLICTS

LLP RPC 1.9 governs conflicts involving:

A. Only current clients

B. Former clients in the same or a substantially related matter

C. Only co-counsel

D. Only opposing counsel

QUESTION 326 OF 405 · ETH-056 · ETHICS — CONFLICTS

An LLP who represented the wife in a divorce is later asked by the husband to handle a post-decree modification. The LLP should:

A. Accept; the case is over

B. Decline absent the former client's informed written consent, as it is the same/substantially related matter and materially adverse

C. Accept if a year has passed

D. Accept if the wife does not object in writing within 10 days

QUESTION 327 OF 405 · ETH-057 · ETHICS — CONFLICTS

'Substantially related matters' under RPC 1.9 are those that:

A. Share a courthouse

B. Involve the same transaction or a substantial risk that confidential information from the prior representation would materially advance the new client's position

C. Have the same judge

D. Use the same forms

QUESTION 328 OF 405 · ETH-058 · ETHICS — CONFLICTS

Under RPC 1.10, when one LLP in a firm has a conflict:

A. Only that LLP is affected

B. The conflict is generally imputed to all LLPs/lawyers in the firm

C. Only conflicts arising in litigation are imputed

D. It applies only to staff

QUESTION 329 OF 405 · ETH-059 · ETHICS — CONFLICTS

An LLP's own financial or personal interests:

A. Are irrelevant to conflicts

B. Can create a conflict if there is a significant risk they will materially limit the representation

C. Always override the client's

D. Only matter in fee disputes

QUESTION 330 OF 405 · ETH-060 · ETHICS — CONFLICTS

Business transactions between an LLP and a client are:

A. Freely allowed

B. Permitted only if fair, fully disclosed in writing, the client is advised to seek independent counsel, and the client consents in writing

C. Always prohibited

D. Allowed if the client is sophisticated

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QUESTION 331 OF 405 · ETH-061 · ETHICS — CONFLICTS

Accepting a gift from a client:

A. Is always fine

B. Is restricted; an LLP generally may not solicit a substantial gift or prepare an instrument giving the LLP a substantial gift from a non-relative client

C. Requires court approval

D. Is encouraged

QUESTION 332 OF 405 · ETH-062 · ETHICS — CONFLICTS

An intimate or sexual relationship with a current client is:

A. Permitted with informed written consent

B. Prohibited unless a consensual relationship predated the representation

C. Prohibited only if the client objects

D. A fee matter

QUESTION 333 OF 405 · ETH-063 · ETHICS — CONFLICTS

Identifying conflicts requires an LLP to:

A. Rely on memory

B. Maintain a system to check for conflicts when taking on new clients and matters

C. Ask opposing counsel

D. Wait for a complaint

QUESTION 334 OF 405 · ETH-064 · ETHICS — CONFLICTS

A conflict that develops mid-representation requires the LLP to:

A. Continue regardless

B. Address it—obtain consent if consentable, or withdraw from one or both representations if not

C. Wait for the affected client to raise it

D. Tell only one client

QUESTION 335 OF 405 · ETH-065 · ETHICS — CONFLICTS

Consent to a conflict must be 'confirmed in writing,' which means:

A. A verbal nod is enough

B. A writing that confirms the client's informed consent, signed or made by the client or promptly transmitted by the LLP

C. Notarization

D. Court filing

QUESTION 336 OF 405 · ETH-066 · ETHICS — CONFLICTS

An LLP asked to represent two parties with potentially aligned but possibly diverging interests (e.g., joint clients) must:

A. Assume alignment

B. Evaluate the risk of material limitation, obtain informed written consent if consentable, and address what happens if interests diverge

C. Require separate fee agreements and proceed

D. Pick one secretly

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QUESTION 337 OF 405 · ETH-067 · ETHICS — CONFLICTS

Imputed conflicts under RPC 1.10 may sometimes be avoided by:

A. Timely assignment of the matter to another office of the same firm

B. Timely screening of the personally disqualified practitioner where the rules permit, plus notice

C. Timely notice to the client that the conflict will be disregarded

D. Timely renaming of the firm before the matter proceeds

QUESTION 338 OF 405 · ETH-068 · ETHICS — CONFLICTS

Representing a client against a current client in an unrelated matter is:

A. Always fine if unrelated

B. Still a concurrent conflict (direct adversity) requiring informed written consent

C. A conflict only if the two matters share facts

D. A former-client issue

QUESTION 339 OF 405 · ETH-069 · ETHICS — CONFLICTS

An LLP must not allow a person who recommends, employs, or pays the LLP to:

A. Pay the fee

B. Direct or regulate the LLP's professional judgment in rendering services to the client

C. Refer clients

D. Communicate with the client directly

QUESTION 340 OF 405 · ETH-070 · ETHICS — CONFLICTS

Third-party payment of an LLP's fee is permitted if:

A. The payor signs the fee agreement as guarantor

B. The client gives informed consent, there is no interference with the LLP's independence, and confidentiality is protected

C. The payor controls the case

D. It is secret

QUESTION 341 OF 405 · ETH-071 · ETHICS — CONFLICTS

A former-client conflict can be cured by:

A. The passage of 6 years under the discipline rules

B. The former client's informed consent, confirmed in writing

C. Screening the LLP from the new matter

D. The new client's consent only

QUESTION 342 OF 405 · ETH-072 · ETHICS — CONFLICTS

Where two prospective clients consult an LLP about opposing sides of the same dispute, the LLP:

A. May represent both

B. May represent at most one, and must protect the confidences of the prospective client not retained

C. Must represent neither ever

D. May share information between them

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QUESTION 343 OF 405 · ETH-073 · ETHICS — CONFLICTS

An LLP's duty of loyalty primarily protects:

A. The opposing party
B. The client's interests against competing loyalties and the LLP's self-interest
C. The integrity of the tribunal
D. The firm's collective interests

QUESTION 344 OF 405 · ETH-074 · ETHICS — CONFLICTS

If an LLP cannot reasonably believe they can competently and diligently represent each client, the conflict is:

A. Consentable
B. Non-consentable, so the LLP must decline or withdraw even if clients would consent
C. Waivable by the court
D. Cured by withdrawing from the smaller matter

QUESTION 345 OF 405 · ETH-075 · ETHICS — CONFLICTS

The safest practice when a potential conflict is unclear is to:

A. Proceed while researching the conflict in parallel
B. Analyze under RPC 1.7/1.9, document the analysis, and obtain informed written consent or decline
C. Ask the client to waive orally
D. Let the conflict resolve itself

QUESTION 346 OF 405 · ETH-076 · ETHICS — TRUST ACCOUNTING

Client funds an LLP holds must be:

A. Mixed with the LLP's funds
B. Kept in a separate trust account, not commingled with the LLP's own funds
C. Kept in cash in the office
D. Given to the court

QUESTION 347 OF 405 · ETH-077 · ETHICS — TRUST ACCOUNTING

Commingling occurs when an LLP:

A. Keeps client funds separate
B. Mixes client trust funds with the LLP's own operating or personal funds
C. Refunds unearned fees
D. Issues a receipt

QUESTION 348 OF 405 · ETH-078 · ETHICS — TRUST ACCOUNTING

Unearned advance fees should be:

A. Deposited in the operating account
B. Held in trust until earned, then transferred as earned
C. Spent immediately
D. Refunded only at the end

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QUESTION 349 OF 405 · ETH-079 · ETHICS — TRUST ACCOUNTING

An LLP must maintain trust-account records and:

A. Discard them yearly
B. Keep complete records and render appropriate accountings to clients
C. Share them publicly
D. Reconcile only when the client requests an accounting

QUESTION 350 OF 405 · ETH-080 · ETHICS — TRUST ACCOUNTING

When a client and a third party both claim trust funds the LLP holds, the LLP must:

A. Keep nothing back and pay the client immediately
B. Keep the disputed funds separate in trust until the dispute is resolved
C. Keep the funds as a fee
D. Keep the funds only until they can be sent to the state

QUESTION 351 OF 405 · ETH-081 · ETHICS — TRUST ACCOUNTING

Prompt delivery of funds the client is entitled to receive is:

A. Required only for amounts above $1,000
B. Required; the LLP must promptly deliver funds or property the client is entitled to and account for them
C. Delayed until year-end
D. The bank's job

QUESTION 352 OF 405 · ETH-082 · ETHICS — TRUST ACCOUNTING

An LLP's own funds may be placed in the trust account only:

A. Up to 10% of the account balance
B. In a limited amount necessary to pay bank service charges or fees, as permitted
C. Only with OARC's written approval
D. To hide income

QUESTION 353 OF 405 · ETH-083 · ETHICS — TRUST ACCOUNTING

Misappropriating client trust funds, even temporarily, is:

A. A minor recordkeeping issue
B. Among the most serious violations, often resulting in significant discipline up to disbarment
C. Permitted if repaid
D. Only a civil matter

QUESTION 354 OF 405 · ETH-084 · ETHICS — TRUST ACCOUNTING

COLTAF (interest-bearing pooled trust) accounts are used for:

A. Nominal amounts of the LLP's own profit
B. Nominal or short-term client funds, with interest directed to the foundation supporting legal services
C. Nominal filing-fee advances held longer than a year
D. Nominal fees the LLP has earned but not yet collected

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QUESTION 355 OF 405 · ETH-098 · ETHICS — TRUST ACCOUNTING

Failing to reconcile the trust account regularly:

A. Is acceptable
B. Violates recordkeeping duties and can mask shortages or commingling
C. Is the bank's responsibility
D. Only matters at audit

QUESTION 356 OF 405 · ETH-085 · ETHICS — CANDOR

Under LLP RPC 3.3, an LLP must not:

A. Make any argument
B. Knowingly make a false statement of fact or law to a tribunal or fail to correct one
C. Cite authority
D. Cite unpublished decisions

QUESTION 357 OF 405 · ETH-086 · ETHICS — CANDOR

An LLP must disclose to the tribunal:

A. Adverse facts known from any source
B. Legal authority in the controlling jurisdiction known to be directly adverse and not disclosed by opposing counsel
C. Only favorable authority
D. Opposing strategy

QUESTION 358 OF 405 · ETH-087 · ETHICS — CANDOR

If an LLP comes to know a client or witness offered material false evidence, the LLP must:

A. Preserve confidentiality and say nothing to the tribunal
B. Take reasonable remedial measures, including, if necessary, disclosure to the tribunal
C. Withdraw silently
D. Coach the witness

QUESTION 359 OF 405 · ETH-088 · ETHICS — CANDOR

In an ex parte proceeding, the LLP must:

A. Present only the client's side
B. Inform the tribunal of all material facts known, even adverse ones, to enable an informed decision
C. Hide adverse facts
D. Argue aggressively only

QUESTION 360 OF 405 · ETH-093 · ETHICS — CANDOR

The duty of candor under RPC 3.3 continues:

A. Only until a ruling
B. Until the conclusion of the proceeding, and applies even if compliance requires disclosing otherwise confidential information
C. Indefinitely after appeal
D. Only during opening statements

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QUESTION 361 OF 405 · ETH-100 · ETHICS — CANDOR

If correcting false evidence would reveal client confidences, the LLP:

A. Must stay silent
B. Must still take reasonable remedial measures, as candor to the tribunal can override confidentiality
C. Must withdraw and say nothing
D. May ignore the falsity

QUESTION 362 OF 405 · ETH-089 · ETHICS — FAIRNESS

Under LLP RPC 3.4, an LLP must not:

A. Object to evidence
B. Unlawfully obstruct access to or alter, destroy, or conceal evidence
C. Prepare witnesses lawfully
D. Make lawful discovery requests

QUESTION 363 OF 405 · ETH-090 · ETHICS — FAIRNESS

Falsifying evidence or assisting a witness to testify falsely:

A. Is zealous advocacy
B. Violates the fairness and candor rules
C. Is permitted if it helps the client
D. Is a fee issue

QUESTION 364 OF 405 · ETH-091 · ETHICS — FAIRNESS

Knowingly disobeying an obligation under the rules of a tribunal:

A. Is allowed if strategic
B. Violates RPC 3.4 unless based on an open, good-faith assertion that no valid obligation exists
C. Is encouraged
D. Is only a contempt issue

QUESTION 365 OF 405 · ETH-095 · ETHICS — FAIRNESS

In pretrial discovery, an LLP must not:

A. Respond to requests
B. Make a frivolous discovery request or fail to make a reasonably diligent effort to comply with a proper request
C. Object on valid grounds
D. Seek a protective order

QUESTION 366 OF 405 · ETH-099 · ETHICS — FAIRNESS

Requesting a third party (other than a client's relative or agent) to refrain from voluntarily giving relevant information to another party is:

A. Always allowed
B. Generally prohibited unless the person is a relative/employee/agent and their interests won't be harmed
C. Permitted for any witness the client identifies
D. A confidentiality duty

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QUESTION 367 OF 405 · ETH-092 · ETHICS — TRIBUNAL

During trial, an LLP must not:

A. Make objections

B. Allude to irrelevant or unsupported matters or assert personal knowledge of facts in issue (except when testifying)

C. Cross-examine

D. Argue inferences from evidence

QUESTION 368 OF 405 · ETH-094 · ETHICS — TRIBUNAL

Improperly influencing a judge, juror, or court official is:

A. Acceptable networking

B. Prohibited; an LLP must not seek to influence them by means prohibited by law

C. Required advocacy

D. A fee matter

QUESTION 369 OF 405 · ETH-096 · ETHICS — TRIBUNAL

Meritorious claims and contentions (RPC 3.1) require that:

A. Any claim may be filed

B. There be a non-frivolous basis in law and fact for the positions asserted

C. Claims always succeed

D. Only the client decides merit

QUESTION 370 OF 405 · ETH-097 · ETHICS — TRIBUNAL

Expediting litigation (RPC 3.2) requires the LLP to:

A. Delay for advantage

B. Make reasonable efforts to expedite litigation consistent with the client's interests

C. File endless motions

D. Oppose all continuance requests from either side

QUESTION 371 OF 405 · ETH-101 · ETHICS — ADVERTISING

Under LLP RPC 7.1, an LLP must not:

A. Advertise at all

B. Make a false or misleading communication about the LLP or the LLP's services

C. Use a website

D. List practice areas

QUESTION 372 OF 405 · ETH-102 · ETHICS — ADVERTISING

An LLP's advertising must:

A. Imply attorney status

B. Identify that the LLP holds a limited license

C. Hide the LLP designation

D. Promise outcomes

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QUESTION 373 OF 405 · ETH-109 · ETHICS — ADVERTISING

Claiming to be a specialist or 'certified' when not:

A. May be made freely if the claim appears only on social media
B. May be misleading unless the certification is from an approved organization and disclosed properly
C. May be required in any advertisement
D. May be treated as a fee issue rather than an advertising one

QUESTION 374 OF 405 · ETH-103 · ETHICS — FIRM NAME

An LLP-only firm (no lawyers) must:

A. Use any name it likes
B. Include the words 'Licensed Legal Paraprofessional(s)' in the firm name
C. Use 'and Associates'
D. Use 'Law Offices of'

QUESTION 375 OF 405 · ETH-104 · ETHICS — FIRM NAME

A solo LLP whose firm name suggests multiple practitioners:

A. Is always fine
B. May need to clarify, to avoid misleading the public about the number of practitioners
C. Must add 'Inc.'
D. Cannot practice solo

QUESTION 376 OF 405 · ETH-105 · ETHICS — FIRM NAME

The exact words 'Licensed Legal Paraprofessional(s)' must appear:

A. In the firm's URL and email
B. In the business/firm name, though not necessarily within the URL or email address
C. Only in engagement letters, not public materials
D. Only on business cards

QUESTION 377 OF 405 · ETH-106 · ETHICS — COURT FILINGS

In all court filings, an LLP must:

A. Omit their status
B. Use the LLP designation to identify themselves as a licensed legal paraprofessional
C. Sign as an attorney
D. Use only initials

QUESTION 378 OF 405 · ETH-107 · ETHICS — REGISTRATION NUMBERS

How can the public distinguish an LLP's registration number from an attorney's?

A. They are identical
B. LLPs have six-digit numbers beginning with 6; attorneys have five-digit numbers
C. LLPs have no number
D. Color coding

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QUESTION 379 OF 405 · ETH-108 · ETHICS — SOLICITATION

Live, in-person solicitation of a prospective client for pecuniary gain is:

A. Always permitted
B. Generally restricted, similar to the attorney solicitation rules
C. Permitted if the person first contacted the firm's website
D. Unregulated

QUESTION 380 OF 405 · ETH-110 · ETHICS — UPL

For an LLP, practicing beyond the authorized scope constitutes:

A. Zealous advocacy
B. Unauthorized practice and professional misconduct
C. A billing error
D. A civil matter between the LLP and the client only

QUESTION 381 OF 405 · ETH-111 · ETHICS — UPL

An LLP may assist on an out-of-scope matter only:

A. With the client's informed written consent
B. Under the supervision of a licensed attorney
C. If the client insists
D. If no one objects

QUESTION 382 OF 405 · ETH-112 · ETHICS — SUPERVISION

An LLP who employs non-licensed assistants must:

A. Let them practice law
B. Make reasonable efforts to ensure their conduct is compatible with the LLP's professional obligations
C. Answer only for conduct the LLP directed in writing
D. Delegate legal judgment to them

QUESTION 383 OF 405 · ETH-113 · ETHICS — DISCIPLINE

LLPs are subject to discipline through:

A. A separate, lenient system
B. The Office of Attorney Regulation Counsel using the attorney discipline and disability procedures
C. No oversight
D. Only client lawsuits

QUESTION 384 OF 405 · ETH-114 · ETHICS — DISCIPLINE

Sanctions for LLP misconduct can include:

A. Only a warning
B. A range up to suspension or disbarment/revocation, depending on severity
C. A fine paid to the client only
D. Restitution capped at the fee paid

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QUESTION 385 OF 405 · ETH-115 · ETHICS — MISCONDUCT

Under RPC 8.4, professional misconduct includes:

A. Winning cases
B. Engaging in dishonesty, fraud, deceit, or misrepresentation
C. Filing motions
D. Charging fees

QUESTION 386 OF 405 · ETH-117 · ETHICS — MISCONDUCT

Committing a crime involving dishonesty (e.g., theft, fraud):

A. Has no professional effect
B. Can be a basis for discipline as reflecting adversely on fitness
C. Is only a personal matter
D. Requires no reporting

QUESTION 387 OF 405 · ETH-116 · ETHICS — REPORTING

If an LLP knows another practitioner committed a serious rules violation raising a substantial question about honesty or fitness, the LLP:

A. Must stay silent
B. May have a duty to report to the appropriate authority
C. Must confront them only
D. Should ignore it

QUESTION 388 OF 405 · ETH-118 · ETHICS — BAR ADMISSION/REGISTRATION

Making a false statement on an LLP application or registration is:

A. Cured by amendment at the next renewal
B. Misconduct and grounds for denial or discipline
C. A matter for the character committee only
D. A fee issue

QUESTION 389 OF 405 · ETH-119 · ETHICS — REGISTRATION/CLE

To maintain licensure, an LLP must:

A. Retake the exam every 7 years
B. Complete annual registration and applicable continuing legal education, or face administrative suspension
C. Renew every 5 years only
D. Pass the exam again

QUESTION 390 OF 405 · ETH-120 · ETHICS — INDEPENDENCE

An LLP must not share legal fees with a nonlicensed person or let a nonlicensed person:

A. Receive a year-end bonus from firm profits
B. Own or control the LLP practice or direct professional judgment, except as the rules permit
C. Answer phones
D. Schedule clients

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QUESTION 391 OF 405 · ETH-121 · ETHICS — MALPRACTICE INSURANCE

Regarding malpractice insurance, LLPs must:

A. Publicly certify that they carry a policy at all times
B. Publicly disclose whether they carry it, as part of annual registration (it is not currently mandated)
C. Publicly disclose nothing, telling only clients who ask in writing
D. Publicly certify a minimum of $1 million in coverage

QUESTION 392 OF 405 · ETH-122 · ETHICS — WITHDRAWAL

An LLP must withdraw from a representation when:

A. The client is difficult
B. Continuing would violate the rules or law, or the LLP's condition materially impairs the representation
C. Fees are unpaid for a day
D. The case is hard

QUESTION 393 OF 405 · ETH-123 · ETHICS — WITHDRAWAL

On withdrawal, the LLP must:

A. Keep the file as leverage
B. Take steps to protect the client, including notice, returning the file/property, and refunding unearned fees
C. Destroy records
D. Disclose confidences

QUESTION 394 OF 405 · ETH-124 · ETHICS — UPL IDENTIFICATION

Holding oneself out as able to handle a matter clearly outside LLP scope (e.g., a criminal defense) is:

A. Permissible marketing
B. A misleading communication and potential unauthorized practice
C. Required disclosure
D. A trust issue

QUESTION 395 OF 405 · ETH-125 · ETHICS — SCOPE DISCLOSURE RECAP

The recurring ethical theme unique to LLP practice is:

A. Maximizing fees
B. Accurately disclosing the limited license and advising clients of scope limits
C. Avoiding court
D. Maintaining a lower fee schedule than attorneys

QUESTION 396 OF 405 · ETH-126 · ETHICS — MIXED

An LLP discovers mid-hearing that a discrete trust-valuation issue (a carve-out) has become central. The LLP should:

A. Argue the trust issue anyway
B. Advise the client to obtain an attorney for that issue and continue on in-scope matters
C. Withdraw entirely and keep the fee
D. Ask the judge to ignore it

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QUESTION 397 OF 405 · ETH-127 · ETHICS — MIXED

Both spouses, who are amicable, ask one LLP to prepare and file their uncontested divorce and split the fee. The LLP should:

A. Represent both to save them money

B. Represent at most one (with disclosure) or neither, because joint representation of opposing parties in the same litigation is barred

C. Represent both with a written waiver

D. Have them flip a coin

QUESTION 398 OF 405 · ETH-128 · ETHICS — MIXED

An LLP receives a $3,000 advance fee. The proper handling is to:

A. Deposit it in the operating account and spend it

B. Deposit it in the trust account and withdraw amounts only as earned

C. Treat it as a nonrefundable gift

D. Give it to the court

QUESTION 399 OF 405 · ETH-129 · ETHICS — MIXED

During a hearing, the LLP's client testifies to something the LLP knows is false and material. The LLP must:

A. Say nothing to preserve confidentiality

B. Take reasonable remedial measures, including disclosure to the court if necessary

C. Withdraw silently and keep the secret

D. Encourage more such testimony

QUESTION 400 OF 405 · ETH-130 · ETHICS — MIXED

An LLP's website states 'Smith Family Law' with no indication of license type. This is:

A. Compliant if the homepage footer links to OARC

B. Potentially misleading; an LLP-only firm must include 'Licensed Legal Paraprofessional(s)' in the name and disclose the limited license

C. Required wording

D. A trust issue

QUESTION 401 OF 405 · ETH-131 · ETHICS — MIXED

A client asks the LLP to register an out-of-state custody order and pursue punitive contempt. Both requests are:

A. Within scope

B. Outside scope (carve-outs); the LLP should refer them to an attorney while assisting with in-scope matters

C. Within scope if filed as a single combined motion

D. Trust-accounting issues

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QUESTION 402 OF 405 · ETH-132 · ETHICS — MIXED

An LLP wants to enter a business deal buying property from a client. The LLP must:

A. Proceed freely

B. Ensure fair terms fully disclosed in writing, advise the client in writing to seek independent counsel, and obtain informed written consent

C. Route the purchase through a third-party LLC

D. Use trust funds

QUESTION 403 OF 405 · ETH-133 · ETHICS — MIXED

An LLP suspects a paralegal in the office is signing the LLP's name to pleadings without review. The LLP must:

A. Report the paralegal to OARC before investigating

B. Supervise to ensure the assistant's conduct complies with the rules and stop the unauthorized conduct

C. Let it continue if efficient

D. Blame the client

QUESTION 404 OF 405 · ETH-134 · ETHICS — MIXED

A client demands the LLP pursue a frivolous motion to harass the other parent. The LLP should:

A. Comply with the client

B. Decline, because RPC 3.1 prohibits frivolous filings and the good-faith requirement applies to LLPs

C. File it under protest

D. Charge extra and file it

QUESTION 405 OF 405 · ETH-135 · ETHICS — MIXED

The unifying duty an LLP owes when any out-of-scope or competence limit appears is to:

A. Maximize billable hours

B. Advise the client of the limitation and the need for an attorney, and act within authorized scope

C. Handle it quietly and bill at a reduced rate

D. Refer the entire case out always

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Part II — Answers & Explanations

Every question re-printed with the correct answer marked, the full why, and the controlling authority.

Jurisdiction

QUESTION 1 OF 405 · FL-001 · JURISDICTION — GROUNDS · CORRECT: B

In Colorado, what is the sole legal ground a petitioner must establish to obtain a decree of dissolution of marriage?

✗ A. Adultery or other marital fault

✓ **B. That the marriage is irretrievably broken**

✗ C. One year of continuous separation

✗ D. Mutual written consent of both spouses

Why: Colorado is a pure no-fault state. The only ground for dissolution is that the marriage is irretrievably broken; fault such as adultery is irrelevant to whether the decree enters. A single spouse's testimony that the marriage is irretrievably broken is sufficient, and the court cannot deny the decree merely because the other spouse disagrees. Separation periods and mutual consent are not required grounds.

Authority: C.R.S. 14-10-106 [verify]; C.R.S. 14-10-110 [verify]

QUESTION 2 OF 405 · FL-002 · JURISDICTION — RESIDENCY · CORRECT: C

How long must a party be domiciled in Colorado before the court may enter a decree of dissolution?

✗ A. 90 days

✗ B. 181 days

✓ **C. 91 days**

✗ D. 182 days

Why: A party must be domiciled in Colorado for at least 91 days before commencement is effective for entry of a decree of dissolution or legal separation. Domicile requires physical presence plus intent to remain. This durational requirement is distinct from the 91-day waiting period that runs from service. Thirty and sixty days are distractors; 182 days is the period to convert a legal separation to dissolution.

Authority: C.R.S. 14-10-106(1)(a)(I) [verify]

QUESTION 3 OF 405 · FL-003 · JURISDICTION — WAITING PERIOD · CORRECT: B

A petition is served on the respondent on March 1. What is the earliest the court may enter a dissolution decree, assuming all other requirements are met?

✗ A. Immediately upon the respondent's default

✓ **B. After 91 days from service**

✗ C. After 90 days from service

✗ D. After 6 months from filing

Why: No decree may enter until at least 91 days after the later of service on the respondent or the respondent's appearance (or the filing of a co-petition). This waiting period cannot be waived even by agreement. It is independent of the 91-day domicile requirement, although both use the same number of days.

Authority: C.R.S. 14-10-106(1)(a)(III) [verify]

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QUESTION 4 OF 405 · FL-004 · JURISDICTION — PERSONAL JURISDICTION · CORRECT: C

A wife files for dissolution in Colorado. The husband lives out of state, was never married in Colorado, and has no contacts here. The court most clearly has jurisdiction to:

✗ A. Divide the husband's out-of-state pension

✗ B. Order the husband to pay maintenance

✓ **C. Dissolve the marital status**

✗ D. Enter a money judgment against the husband for marital debt

Why: A court may dissolve the marriage (a status determination) based on the petitioner's domicile alone. However, dividing property, ordering support, or entering a money judgment against the respondent requires personal jurisdiction over him, which needs minimum contacts or a long-arm basis. Status (divisible divorce) and in personam remedies are analyzed separately.

Authority: C.R.S. 14-10-106 [verify]; C.R.S. 13-1-124 (long-arm) [verify]

QUESTION 5 OF 405 · FL-005 · JURISDICTION — UCCJEA HOME STATE · CORRECT: B

Under the UCCJEA, the 'home state' of a 4-year-old child is generally where the child:

✗ A. Has lived since birth, where the child is under six months old

✓ **B. Has lived with a parent for at least 6 consecutive months before the case began**

✗ C. Has attended preschool for at least 6 consecutive months

✗ D. Has lived nearest the child's extended family

Why: The UCCJEA defines home state as the state where the child lived with a parent (or person acting as a parent) for at least 6 consecutive months immediately before commencement of the proceeding. For a child under 6 months, it is the state where the child has lived since birth. Home-state jurisdiction is the primary basis for initial child-custody (APR) jurisdiction.

Authority: C.R.S. 14-13-102(7) [verify]; C.R.S. 14-13-201 [verify]

QUESTION 6 OF 405 · FL-006 · JURISDICTION — UCCJEA PRIORITY · CORRECT: B

The UCCJEA gives initial child-custody jurisdiction priority to:

✗ A. The state with the most evidence about the child

✓ **B. The home state of the child**

✗ C. Whichever state the petitioner chooses

✗ D. The state where the marriage occurred

Why: Under the UCCJEA's prioritized scheme, the child's home state has first priority for making an initial custody determination. Significant-connection jurisdiction applies only when there is no home state or the home state declines. This hierarchy prevents competing custody orders across states.

Authority: C.R.S. 14-13-201 [verify]

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QUESTION 7 OF 405 · FL-007 · JURISDICTION — LEGAL SEPARATION CONVERSION · CORRECT: C

A decree of legal separation may be converted to a decree of dissolution on motion after the decree of legal separation has been in effect for at least:

✗ A. 91 days

✗ B. 180 days

✓ **C. 182 days**

✗ D. One year, unless the parties stipulate otherwise

Why: Either party may move to convert a decree of legal separation into a decree of dissolution after 182 days from entry of the separation decree. Legal separation otherwise uses the same procedure and addresses the same issues (property, support, APR) but leaves the marriage legally intact.

Authority: C.R.S. 14-10-120(2) [verify]

QUESTION 8 OF 405 · FL-008 · JURISDICTION — INVALIDITY · CORRECT: B

A declaration of invalidity (annulment) in Colorado is available on grounds such as:

✗ A. Irretrievable breakdown

✓ **B. Lack of capacity to consent due to age, duress, fraud, or incapacity**

✗ C. Incompatibility after a long marriage

✗ D. One spouse's relocation

Why: A declaration of invalidity addresses defects in the formation of the marriage—e.g., underage without consent, duress, fraud going to the essentials, mental incapacity, intoxication, or a prohibited/bigamous marriage. Several grounds carry short limitation periods. Irretrievable breakdown is the ground for dissolution, not invalidity. Invalidity matters are within LLP scope.

Authority: C.R.S. 14-10-111 [verify]

QUESTION 9 OF 405 · FL-009 · JURISDICTION — VENUE · CORRECT: B

Venue for a Colorado dissolution is generally proper in the county where:

✗ A. Either party obtained the marriage license

✓ **B. Either party resides**

✗ C. Either party's attorney maintains an office

✗ D. Either party last resided during the marriage

Why: Venue is generally proper in the county where either the petitioner or respondent resides. Venue is a matter of convenience and can be waived or transferred; it is not jurisdictional in the subject-matter sense. The place the license was issued is irrelevant.

Authority: C.R.C.P. 98 [verify]

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QUESTION 10 OF 405 · FL-010 · JURISDICTION — COMMENCEMENT DOCUMENTS · CORRECT: B

A Colorado dissolution is typically commenced by filing a:

✗ A. Complaint and answer

✓ **B. Petition (and summons if not a co-petition)**

✗ C. Motion for decree

✗ D. Notice of separation

Why: A dissolution is commenced by filing a Petition for Dissolution of Marriage; if filed by one party, a Summons issues and must be served. Parties may also file jointly as co-petitioners, which dispenses with service. The matter proceeds under the domestic relations rules, not ordinary civil pleading labels like 'complaint/answer.'

Authority: C.R.C.P. 16.2 [verify]; C.R.S. 14-10-107 [verify]

QUESTION 11 OF 405 · FL-011 · JURISDICTION — TEMPORARY ORDERS · CORRECT: B

During a pending dissolution, a party who needs interim support or a parenting schedule should seek:

✗ A. A permanent decree

✓ **B. Temporary orders under Section 14-10-108**

✗ C. A protection order only

✗ D. Summary judgment

Why: Temporary orders provide interim relief—temporary maintenance, child support, parenting time, possession of the home, and conduct restraints—while the case is pending. They are designed to maintain the status quo and meet immediate needs and are superseded by the final decree. LLPs may handle temporary orders within their scope.

Authority: C.R.S. 14-10-108 [verify]

QUESTION 12 OF 405 · FL-012 · JURISDICTION — AUTOMATIC INJUNCTION · CORRECT: B

Upon filing and service of a dissolution petition, the automatic temporary injunction generally restrains the parties from:

✗ A. Speaking to each other

✓ **B. Transferring marital property except in the usual course of business or for necessities, and from molesting or disturbing the other**

✗ C. Leaving the state

✗ D. Selling property either party owned separately before the marriage

Why: The statutory automatic injunction takes effect against the petitioner on filing and against the respondent on service. It restrains transferring, encumbering, or disposing of marital property without consent or court order (except in the usual course of business or for the necessities of life), molesting or disturbing the peace of the other party, removing the children from the state without consent, and canceling insurance. It is not about communication or retaining counsel.

Authority: C.R.S. 14-10-107(4)(b) [verify]

Procedure

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QUESTION 13 OF 405 · FL-013 · PROCEDURE — RULE 16.2 DUTY · CORRECT: B

C.R.C.P. 16.2 imposes on each party in a domestic relations case a duty of:

✗ A. Disclosure only if requested

✓ **B. Full and honest disclosure of all material financial information**

✗ C. Disclosure limited to tax returns

✗ D. Disclosure only after temporary orders

Why: Rule 16.2(e) imposes an affirmative duty of full and honest disclosure of all information material to the resolution of the case, without awaiting a discovery request. The duty is continuing throughout the litigation. It reflects the fiduciary-like relationship between spouses regarding marital finances.

Authority: C.R.C.P. 16.2(e) [verify]

QUESTION 14 OF 405 · FL-014 · PROCEDURE — RULE 16.2 REALLOCATION · CORRECT: B

If a party fails to disclose a material asset, C.R.C.P. 16.2(e) allows the court to reallocate that asset on a motion filed within:

✗ A. 1 year of the decree

✓ **B. 5 years of the decree**

✗ C. 6 months of the decree

✗ D. 4 years of the decree

Why: Rule 16.2(e)(10) allows the court to reallocate a misstated or omitted material asset or liability on a motion brought within 5 years after the decree, even though that is longer than the usual relief-from-judgment deadlines. This remedy enforces the disclosure duty and deters hiding assets.

Authority: C.R.C.P. 16.2(e)(10) [verify]

QUESTION 15 OF 405 · FL-015 · PROCEDURE — SWORN FINANCIAL STATEMENT · CORRECT: A

The form used to disclose a party's income, expenses, assets, and debts in a Colorado domestic case is the:

✓ **A. Sworn Financial Statement (JDF 1111)**

✗ B. Petition (JDF 1101)

✗ C. Parenting Plan (JDF 1113)

✗ D. Separation Agreement (JDF 1115)

Why: The Sworn Financial Statement (JDF 1111) is the core mandatory financial disclosure, signed under oath, listing income, monthly expenses, assets, and liabilities. A supporting/long form may be required for complex finances. The other forms serve different functions—initiating the case, allocating parenting, or memorializing agreements.

Authority: C.R.C.P. 16.2(e) [verify]; JDF 1111 [verify]

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QUESTION 16 OF 405 · FL-016 · PROCEDURE — MANDATORY DISCLOSURE TIMING · CORRECT: C

Mandatory financial disclosures and the Sworn Financial Statement are generally due within how many days after service or first appearance?

✗ A. 41 days

✗ B. 45 days

✓ **C. 42 days**

✗ D. 91 days

Why: Initial mandatory disclosures, including the Sworn Financial Statement and listed supporting documents, are generally due within 42 days after service of the petition or the respondent's appearance. Local rules and case management orders may adjust deadlines, and the duty to supplement continues.

Authority: C.R.C.P. 16.2(e) [verify]

QUESTION 17 OF 405 · FL-017 · PROCEDURE — MEDIATION · CORRECT: B

In many Colorado domestic relations cases, before a contested hearing the parties are typically required to:

✗ A. Waive their right to counsel

✓ **B. Attend mediation or another form of alternative dispute resolution**

✗ C. Submit to binding arbitration

✗ D. Post a bond securing the other party's attorney fees

Why: Courts frequently order mediation before a contested permanent orders hearing to encourage settlement of parenting and financial issues. Mediation is non-binding; the parties retain the right to a hearing if they cannot agree. LLPs may assist clients in preparing for and participating in mediation within their scope.

Authority: C.R.S. 13-22-311 [verify]; C.R.C.P. 16.2 [verify]

QUESTION 18 OF 405 · FL-018 · PROCEDURE — PARENTING PLAN · CORRECT: B

A written document allocating parenting time and decision-making that the parties submit (or the court orders) is called a:

✗ A. Sworn Financial Statement

✓ **B. Parenting Plan**

✗ C. Separation Agreement

✗ D. Decree of Invalidity

Why: A Parenting Plan (JDF 1113) sets out the allocation of parental responsibilities—the parenting-time schedule and decision-making authority. If parents agree, they submit a plan; if they do not, each may submit one and the court determines APR in the child's best interests. It can be incorporated into the decree.

Authority: C.R.S. 14-10-124(7) [verify]; JDF 1113 [verify]

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QUESTION 19 OF 405 · FL-019 · PROCEDURE — SEPARATION AGREEMENT · CORRECT: B

A separation agreement resolving property and maintenance is binding on the court unless the court finds it:

✗ A. Unfair to the party who signed without counsel

✓ **B. Unconscionable**

✗ C. Unrecorded, because it was never filed with the decree

✗ D. Unsupported by the mandatory financial disclosures

Why: Under Section 14-10-112, the terms of a separation agreement (except those relating to children) are binding on the court unless it finds, after considering the parties' economic circumstances, that the agreement is unconscionable. Provisions concerning child support and APR are always subject to the court's independent best-interests review.

Authority: C.R.S. 14-10-112 [verify]

QUESTION 20 OF 405 · FL-020 · PROCEDURE — DEFAULT · CORRECT: B

If a properly served respondent fails to respond or appear, the petitioner may seek:

✗ A. Summary judgment under C.R.C.P. 56

✓ **B. A decree by default after the waiting period**

✗ C. Criminal contempt

✗ D. An automatic appeal

Why: When a respondent defaults, the petitioner may proceed to a decree by default once the 91-day waiting period has run and the required disclosures and proposed orders are in place. The court still must have a basis for any financial and parenting orders entered.

Authority: C.R.S. 14-10-106 [verify]; C.R.C.P. 16.2 [verify]

QUESTION 21 OF 405 · FL-021 · PROCEDURE — SERVICE · CORRECT: B

Personal service of a dissolution summons and petition on an in-state respondent is generally accomplished by:

✗ A. Email from the petitioner

✓ **B. Delivery by a process server or sheriff, or by the respondent's waiver/acceptance**

✗ C. Posting at the courthouse

✗ D. Publication in all cases

Why: Service is ordinarily made by personal delivery through a sheriff or private process server, or the respondent may waive service or sign an acceptance/waiver. Service by publication or mail is available only when personal service cannot be accomplished and the court authorizes it. Email by the petitioner is not valid service.

Authority: C.R.C.P. 4 [verify]

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QUESTION 22 OF 405 · FL-022 · PROCEDURE — INITIAL STATUS CONFERENCE · CORRECT: B

Many districts hold an early hearing to set deadlines and identify issues, called the:

✗ A. Permanent orders hearing

✓ **B. Initial status conference**

✗ C. Sentencing hearing

✗ D. Pretrial readiness conference only

Why: The Initial Status Conference (ISC) is an early case-management event where the court or a family court facilitator sets disclosure deadlines, addresses temporary needs, and identifies contested issues. It helps move the case efficiently toward resolution.

Authority: C.R.C.P. 16.2(c) [verify]

QUESTION 23 OF 405 · FL-023 · PROCEDURE — TRIAL MANAGEMENT CERTIFICATE · CORRECT: A

Before a contested permanent orders hearing, parties commonly file a document identifying witnesses, exhibits, and issues, known as a:

✓ **A. Trial Management Certificate**

✗ B. Notice of Appeal

✗ C. Writ of Garnishment

✗ D. Bill of Particulars

Why: A Trial Management Certificate (or similar pretrial submission) lists witnesses, exhibits, stipulations, and contested issues so the court can manage the hearing. LLPs are expressly authorized to prepare such pretrial submissions within their scope of practice.

Authority: C.R.C.P. 16.2 [verify]; C.R.C.P. 207.1(g)(iv) [verify]

QUESTION 24 OF 405 · FL-024 · PROCEDURE — LLP FILING FORMS · CORRECT: B

Under C.R.C.P. 207.1, an LLP preparing pleadings may:

✗ A. Use only JDF forms

✓ **B. Use JDF forms or templates generally accepted by the court**

✗ C. File documents only after review by the clerk's self-help center

✗ D. Draft only if an attorney signs

Why: C.R.C.P. 207.1(g)(iv) authorizes an LLP to prepare and complete documents using forms or templates approved by the Judicial Department or Supreme Court or generally accepted by Colorado courts. While using JDF forms is good practice for acceptance, an LLP may also rely on accepted templates with the necessary elements.

Authority: C.R.C.P. 207.1(g)(iv) [verify]

QUESTION 25 OF 405 · FL-025 · PROCEDURE — DECREE CONTENTS · CORRECT: D

A final decree of dissolution typically incorporates all of the following EXCEPT:

✗ A. The parenting plan

✗ B. The property division

✗ C. The maintenance and child support orders

✓ **D. A finding of marital fault**

Why: A Colorado decree resolves status, property/debt division, maintenance, child support, and APR, and incorporates the parties' agreements or the court's orders. Because Colorado is no-fault, the decree contains no finding of marital fault. The only required status finding is that the marriage is irretrievably broken.

Authority: C.R.S. 14-10-106 [verify]; C.R.S. 14-10-124 [verify]

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QUESTION 26 OF 405 · FL-243 · PROCEDURE — MAGISTRATES · CORRECT: B

Many domestic relations matters are heard by:

✗ A. Only Supreme Court justices

✓ **B. District court judges or magistrates**

✗ C. Juries of six, on timely demand

✗ D. Arbitrators only

Why: Domestic relations cases are heard in district court (or Denver Juvenile/Probate as applicable), often before magistrates for many matters. A party may have rights to review of a magistrate's order. LLPs appear in these proceedings within scope.

Authority: C.R.M. 6 [verify]

QUESTION 27 OF 405 · FL-244 · PROCEDURE — REVIEW OF MAGISTRATE ORDER · CORRECT: B

A party dissatisfied with a magistrate's order may generally seek:

✗ A. Immediate appeal to the Supreme Court

✓ **B. A petition for review by the district court judge**

✗ C. An immediate certiorari petition to the court of appeals

✗ D. A new trial automatically

Why: A magistrate's order is typically reviewable by petition to the district court judge before any appeal, under the Colorado Rules for Magistrates. Deadlines are short, so prompt action is essential. An LLP should calendar these deadlines carefully.

Authority: C.R.M. 7 [verify]

QUESTION 28 OF 405 · FL-247 · PROCEDURE — DEFAULT AFTER SERVICE · CORRECT: B

If a respondent is properly served and does not appear, the petitioner may:

✗ A. Re-serve the respondent and wait a second 35-day period

✓ **B. Proceed to default orders after the waiting period, with required disclosures and proposed orders**

✗ C. Have the petition dismissed for failure to prosecute

✗ D. Proceed only after a court-ordered mediation session

Why: On a respondent's default, the petitioner may obtain orders by default after the 91-day waiting period, provided the necessary disclosures and proposed orders support the relief. The court still needs a basis for financial and parenting orders.

Authority: C.R.S. 14-10-106 [verify]; C.R.C.P. 16.2 [verify]

QUESTION 29 OF 405 · FL-249 · PROCEDURE — PARENTING CLASS · CORRECT: B

In cases involving children, many Colorado courts require parents to:

✗ A. Deposit anticipated child support into the court registry

✓ **B. Complete an approved parenting/co-parenting education class**

✗ C. Submit to a custody evaluation in every case

✗ D. Attend criminal court

Why: Courts commonly require parents in dissolution or APR cases involving minor children to complete an approved parenting education program addressing the effects of separation on children. Completion is often a prerequisite to final orders.

Authority: C.R.S. 14-10-123.7 [verify]

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APR

QUESTION 30 OF 405 · FL-026 · APR — TERMINOLOGY · CORRECT: B

Colorado law replaced the terms 'custody' and 'visitation' with:

✗ A. 'Guardianship' and 'access'

✓ **B. 'Decision-making responsibility' and 'parenting time'**

✗ C. 'Care' and 'control'

✗ D. 'Residence' and 'contact'

Why: Colorado allocates 'parental responsibilities,' which consist of decision-making responsibility (major decisions about education, health, religion) and parenting time (the schedule of time with each parent). The old custody/visitation labels were abolished to reduce a winner/loser framing. The two components are allocated separately.

Authority: C.R.S. 14-10-124 [verify]

QUESTION 31 OF 405 · FL-027 · APR — STANDARD · CORRECT: B

The governing standard for an initial allocation of parental responsibilities is:

✗ A. The tender-years doctrine

✓ **B. The best interests of the child**

✗ C. The maternal preference

✗ D. Equal time in all cases

Why: Section 14-10-124 requires the court to determine APR according to the best interests of the child, giving paramount consideration to the child's safety and physical, mental, and emotional needs. There is no presumption favoring either parent based on sex, and no automatic 50/50 rule.

Authority: C.R.S. 14-10-124(1.5) [verify]

QUESTION 32 OF 405 · FL-028 · APR — BEST INTERESTS FACTORS · CORRECT: B

Which of the following is a statutory best-interests factor for parenting time?

✗ A. The wealth of each parent

✓ **B. The ability of each parent to encourage a loving relationship between the child and the other parent**

✗ C. The parents' religion

✗ D. Which parent filed first

Why: Among the parenting-time best-interests factors is each party's ability to place the child's needs ahead of their own and to encourage the sharing of love, affection, and contact with the other parent. Wealth, religion, and filing order are not themselves best-interests factors (though related practical effects can matter).

Authority: C.R.S. 14-10-124(1.5)(a) [verify]

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QUESTION 33 OF 405 · FL-029 · APR — CHILD'S WISHES · CORRECT: B

A child's wishes regarding parenting time are considered:

✗ A. Always controlling at any age

✓ **B. If the child is sufficiently mature to express reasoned and independent preferences**

✗ C. Only if the child is at least 16

✗ D. Only when presented through a guardian ad litem

Why: The court considers the child's wishes if the child is sufficiently mature to express reasoned and independent preferences. The child's preference is one factor, not controlling, and there is no fixed statutory age. The court weighs it together with all best-interests factors.

Authority: C.R.S. 14-10-124(1.5)(a)(II) [verify]

QUESTION 34 OF 405 · FL-030 · APR — DECISION-MAKING · CORRECT: B

Allocation of decision-making responsibility concerns:

✗ A. The day-to-day schedule

✓ **B. Major decisions such as education, health care, and religious upbringing**

✗ C. Who claims the child on taxes

✗ D. Child support amount

Why: Decision-making responsibility governs significant decisions about the child's education, health care, and religious upbringing. It may be allocated jointly or to one parent, and may be divided by subject area. It is analyzed separately from parenting time and from financial issues like the tax exemption.

Authority: C.R.S. 14-10-124(1.5)(b) [verify]

QUESTION 35 OF 405 · FL-031 · APR — JOINT DECISION-MAKING FACTORS · CORRECT: B

In deciding whether to order joint decision-making, the court additionally considers:

✗ A. Whether the parties can cooperate and make shared decisions

✓ **B. The parents' incomes**

✗ C. Who owns the marital home

✗ D. The child's grades only

Why: When mutual decision-making is at issue, the court also considers the parties' ability to cooperate and make decisions jointly, whether a pattern of cooperation exists, and whether mutual decision-making on any issue would promote more frequent contact. Evidence of domestic violence weighs heavily against joint decision-making.

Authority: C.R.S. 14-10-124(1.5)(b) [verify]

QUESTION 36 OF 405 · FL-032 · APR — DOMESTIC VIOLENCE · CORRECT: B

Credible evidence that one parent committed domestic violence:

✗ A. Is irrelevant to APR

✓ **B. Must be considered and may rebut the appropriateness of joint decision-making**

✗ C. Automatically terminates parental rights

✗ D. Only matters in criminal court

Why: The court must consider credible evidence of spousal abuse or child abuse, and such abuse is a factor that can make joint decision-making and unsupervised parenting time inappropriate. Safety of the child and the abused party is the paramount concern; the court can impose protective conditions.

Authority: C.R.S. 14-10-124(4) [verify]

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QUESTION 37 OF 405 · FL-033 · APR — RESTRICTION STANDARD · CORRECT: B

A court may impose a substantial restriction on a parent's parenting time only if it finds that parenting time would:

✗ A. Be inconvenient for the other parent

✓ B. Endanger the child's physical health or significantly impair the child's emotional development

✗ C. Reduce child support

✗ D. Cause the child to miss extracurriculars

Why: Under Section 14-10-129(1)(b)(I), parenting time may be restricted only upon a finding that the parenting time would endanger the child's physical health or significantly impair the child's emotional development. This 'endangerment' standard is a high bar protecting the parent-child relationship from unjustified restriction.

Authority: C.R.S. 14-10-129(1)(b)(I) [verify]

QUESTION 38 OF 405 · FL-034 · APR — PARENTING TIME VS. DECISION-MAKING · CORRECT: B

Which statement is correct?

✗ A. Parenting time and decision-making must always be allocated to the same parent

✓ B. Parenting time and decision-making are allocated separately and may differ

✗ C. Decision-making automatically follows the majority-time parent

✗ D. Only one parent may ever have decision-making

Why: Parenting time and decision-making are distinct allocations. A parent may have the majority of parenting time while the parties share decision-making, or vice versa. Conflating the two is a common error; each is decided under the applicable best-interests analysis.

Authority: C.R.S. 14-10-124 [verify]

QUESTION 39 OF 405 · FL-035 · APR — PARENTING COORDINATOR · CORRECT: B

To assist high-conflict parents in implementing a parenting plan, a court may appoint a:

✗ A. Special prosecutor

✓ B. Parenting coordinator

✗ C. Special master appointed to decide the disputed issues

✗ D. Guardian of the estate

Why: In high-conflict cases the court may appoint a parenting coordinator to help parents implement and comply with the parenting plan, and (with consent or by statute) a decision-maker to resolve disputes. These tools reduce repeated litigation over day-to-day disagreements.

Authority: C.R.S. 14-10-128.1 [verify]; C.R.S. 14-10-128.3 [verify]

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QUESTION 40 OF 405 · FL-036 · APR — CFI/PRE · CORRECT: A

To investigate and make recommendations about the child's best interests, the court may appoint a:

✓ **A. Child and Family Investigator (CFI) or Parental Responsibilities Evaluator (PRE)**

✗ B. Probation officer

✗ C. Court reporter to document the parenting exchanges

✗ D. Magistrate's clerk

Why: A Child and Family Investigator (CFI) or a more in-depth Parental Responsibilities Evaluator (PRE) investigates and reports recommendations on parenting issues. The PRE is typically a mental-health professional conducting a fuller evaluation. Their reports inform, but do not bind, the court.

Authority: C.R.S. 14-10-116.5 [verify]; C.R.S. 14-10-127 [verify]

QUESTION 41 OF 405 · FL-037 · APR — RELOCATION PRE-DECREE · CORRECT: B

When parents live in different cities and an initial APR determination is being made (no prior order), the court:

✗ A. Applies a presumption against the out-of-town parent

✓ **B. Applies the best-interests factors without a presumption and without requiring either parent to stay**

✗ C. Requires the moving parent to prove necessity

✗ D. Automatically awards majority time to the in-state parent

Why: In an initial determination where parents already live apart (the Spahmer situation), the court determines the child's best interests and may not order a parent to live in a particular location; it allocates parenting time based on where each parent actually lives. No relocation 'necessity' burden applies because there is no existing order to modify.

Authority: C.R.S. 14-10-124 [verify]; In re Marriage of Spahmer [verify]

QUESTION 42 OF 405 · FL-038 · APR — ALLOCATION NOT BASED ON SEX · CORRECT: B

In allocating parental responsibilities, the court:

✗ A. Shall presume the mother is the better caregiver for a young child

✓ **B. Shall not presume any person is better able to serve the child's interests because of that person's sex**

✗ C. Shall favor the parent with the higher income

✗ D. Shall favor the parent who remains in the marital home

Why: The statute expressly prohibits a presumption favoring one parent based on sex. Allocation rests on the individualized best-interests factors. The maternal-preference and tender-years doctrines are abolished.

Authority: C.R.S. 14-10-124(3) [verify]

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QUESTION 43 OF 405 · FL-039 · APR — FREQUENT CONTACT POLICY · CORRECT: B

Colorado's APR statute reflects a policy of:

✗ A. Minimizing contact with both parents

✓ **B. Encouraging frequent and continuing contact with both parents where safe**

✗ C. Always awarding sole decision-making

✗ D. Limiting parenting time to weekends

Why: The legislative declaration favors encouraging frequent and continuing contact between each parent and the child after separation, when consistent with the child's best interests and safety. This policy informs, but does not override, the safety-focused best-interests analysis.

Authority: C.R.S. 14-10-124(1) [verify]

QUESTION 44 OF 405 · FL-040 · APR — STEP-UP PLANS · CORRECT: B

Where a parent has had limited contact, a court may order a:

✗ A. Graduated no-contact order that becomes permanent without findings

✓ **B. Graduated 'step-up' parenting schedule that increases contact over time**

✗ C. Graduated termination of the parent's rights over six months

✗ D. Graduated 50/50 schedule imposed automatically

Why: Courts can order a graduated or 'step-up' parenting plan that increases a parent's time as trust and stability build, especially after estrangement or where there were safety concerns now being addressed. Any restriction must still meet the endangerment standard.

Authority: C.R.S. 14-10-124 [verify]; C.R.S. 14-10-129 [verify]

QUESTION 45 OF 405 · FL-041 · APR — SUPERVISED PARENTING TIME · CORRECT: B

Supervised parenting time is appropriate when:

✗ A. The parents simply dislike each other

✓ **B. There is a safety concern that nonetheless does not justify denying all contact**

✗ C. One parent earns less

✗ D. The child prefers it for convenience

Why: Supervised parenting time is a tailored restriction used when unsupervised contact would endanger the child but some contact serves the child's interests. It requires findings under the endangerment standard and should be the least restrictive means of protecting the child.

Authority: C.R.S. 14-10-129(1)(b) [verify]

QUESTION 46 OF 405 · FL-042 · APR — MODIFYING A PARENTING PLAN BY AGREEMENT · CORRECT: B

Parents who agree to change their parenting schedule should:

✗ A. Simply act on the change without court involvement

✓ **B. Submit a stipulated modification for the court to approve**

✗ C. Wait two years regardless

✗ D. File a new dissolution

Why: Even agreed changes to a parenting plan should be reduced to a stipulation and submitted for court approval so the new schedule is enforceable. Informal changes are unenforceable and can create confusion if a dispute later arises. LLPs may prepare such stipulations.

Authority: C.R.S. 14-10-129 [verify]

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QUESTION 47 OF 405 · FL-043 · APR — RELIGIOUS UPBRINGING · CORRECT: B

Decision-making about the child's religious upbringing:

✗ A. Is never within the court's allocation

✓ **B. Is part of decision-making responsibility that can be allocated**

✗ C. Always goes to the majority-time parent

✗ D. Is decided by the child alone

Why: Religious upbringing falls within decision-making responsibility and can be allocated jointly or to one parent. Courts are cautious about entangling themselves in doctrinal disputes but may allocate authority to decide and may enforce a parent's allocated decision-making in this area.

Authority: C.R.S. 14-10-124(1.5)(b) [verify]

QUESTION 48 OF 405 · FL-044 · APR — SIBLINGS · CORRECT: B

In allocating parenting time among multiple children, courts generally:

✗ A. Split siblings between households as a default

✓ **B. Consider keeping siblings together as part of best interests**

✗ C. Always keep all children with the mother

✗ D. Weigh sibling placement only for children over 12

Why: While not a rigid rule, courts consider the child's relationships with siblings within the best-interests analysis and often favor keeping siblings together absent good reason to separate them. Sibling bonds are part of the child's adjustment and emotional needs.

Authority: C.R.S. 14-10-124(1.5)(a) [verify]

QUESTION 49 OF 405 · FL-045 · APR — NON-PARENT STANDING · CORRECT: B

A non-parent (e.g., grandparent) may seek allocation of parental responsibilities when:

✗ A. Only after both parents are deceased

✓ **B. The child is not in the physical care of a parent, or the non-parent has had the child in their care for the statutory period**

✗ C. Only with both parents' consent

✗ D. Only after adoption

Why: A non-parent may petition for APR if the child is not in the physical care of one of the child's parents, or if the non-parent has had physical care of the child for 182 days or more. Parental rights receive constitutional weight, so non-parent claims face additional standards.

Authority: C.R.S. 14-10-123(1) [verify]

QUESTION 50 OF 405 · FL-046 · APR — BEST INTERESTS PARAMOUNT CONCERN · CORRECT: B

Under the 2018+ amendments, the court's determination of parenting time gives paramount consideration to:

✗ A. Parental convenience

✓ **B. The child's safety and the child's physical, mental, and emotional needs**

✗ C. Equalizing the parents' time exactly

✗ D. The parents' employment schedules

Why: The statute directs that the child's safety and physical, mental, and emotional conditions and needs are the paramount consideration. All other factors are weighed in service of that overriding concern.

Authority: C.R.S. 14-10-124(1.5) [verify]

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QUESTION 51 OF 405 · FL-047 · APR — DOMESTIC VIOLENCE AND JOINT DECISION-MAKING · CORRECT: B

Where one parent has committed domestic violence against the other, joint decision-making:

✗ A. Is required to promote cooperation

✓ **B. Is generally not appropriate, and the court must consider the safety of the child and abused party**

✗ C. Must still be ordered if the abuser requests it

✗ D. Is mandatory after counseling

Why: When spousal abuse is established, the court should be skeptical of joint decision-making because it can perpetuate control and endanger the abused parent and child. The statute requires consideration of the parties' and child's safety and whether shared decision-making would expose them to harm.

Authority: C.R.S. 14-10-124(4) [verify]

QUESTION 52 OF 405 · FL-048 · APR — GENETIC/PARENTAGE PREREQUISITE · CORRECT: B

Before allocating parental responsibilities to an alleged father whose parentage is disputed, the court generally must:

✗ A. Proceed while genetic testing is pending

✓ **B. Resolve parentage (e.g., via the Uniform Parentage Act) first**

✗ C. Award him equal time immediately

✗ D. Refer the matter to criminal court

Why: Legal parentage is a prerequisite to a parent's APR claim; where contested, parentage must be established under the Uniform Parentage Act before parental responsibilities are allocated to that person. A two-party parentage determination is within LLP scope, but multi-party disputes are a carve-out.

Authority: C.R.S. 19-4-101 et seq. [verify]; C.R.C.P. 207.1 [verify]

QUESTION 53 OF 405 · FL-049 · APR — MODIFICATION PENDING · CORRECT: B

While a motion to modify parenting time is pending, the existing order:

✗ A. Is automatically suspended

✓ **B. Remains in effect until modified**

✗ C. Is stayed pending the hearing

✗ D. Converts to 50/50

Why: An existing parenting order remains in full force and effect until the court enters a modification. Parties must continue to comply; self-help deviation can expose a parent to contempt. Temporary modifications require a separate motion and findings.

Authority: C.R.S. 14-10-129 [verify]

QUESTION 54 OF 405 · FL-050 · APR — CHILD'S SAFETY VS. CONTACT POLICY · CORRECT: B

If the frequent-contact policy conflicts with the child's safety, the court must:

✗ A. Prioritize contact

✓ **B. Prioritize the child's safety and needs**

✗ C. Order equal time anyway

✗ D. Defer to the parents' agreement regardless of safety

Why: Although the statute encourages contact with both parents, safety is paramount. Where contact would endanger the child, the court restricts or conditions parenting time under the endangerment standard rather than enforcing the general contact policy.

Authority: C.R.S. 14-10-124(1.5) [verify]; C.R.S. 14-10-129(1)(b) [verify]

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QUESTION 55 OF 405 · FL-069 · APR — UCCJEA CONTINUING JURISDICTION · CORRECT: B

After Colorado makes an initial APR determination, it generally retains exclusive, continuing jurisdiction until:

✗ A. The child turns 12

✓ B. Neither the child nor a parent has a significant connection to Colorado and substantial evidence is no longer available here, or all have left the state

✗ C. The other parent objects

✗ D. Five years pass

Why: Under the UCCJEA, the decree state retains exclusive, continuing jurisdiction over modification until a court determines that neither the child nor a parent has a significant connection with the state and substantial evidence is no longer available there, or until a court determines that the child and parents no longer reside in the state.

Authority: C.R.S. 14-13-202 [verify]

QUESTION 56 OF 405 · FL-070 · APR — EMERGENCY JURISDICTION · CORRECT: B

A Colorado court may exercise temporary emergency jurisdiction under the UCCJEA when:

✗ A. The petitioner prefers Colorado

✓ B. The child is present in Colorado and has been abandoned or emergency protection is needed because of threatened mistreatment or abuse

✗ C. The other state is far away

✗ D. The parents were married in Colorado

Why: Temporary emergency jurisdiction exists when the child is present in the state and has been abandoned, or it is necessary in an emergency to protect the child because the child (or a sibling or parent) is subjected to or threatened with mistreatment or abuse. It is temporary and yields to the home state's jurisdiction.

Authority: C.R.S. 14-13-204 [verify]

QUESTION 57 OF 405 · FL-075 · APR — MODIFICATION SCOPE FOR LLPS · CORRECT: B

Which best describes an LLP's authorized scope as to parental responsibilities?

✗ A. Initial APR and modification, but only when uncontested

✓ B. Both the initial allocation and modification of parental responsibilities, within the rule's limits

✗ C. Parenting time only, with decision-making reserved to attorneys

✗ D. No APR work at all

Why: C.R.C.P. 207.1 authorizes an LLP to handle both the initial allocation and the modification of parental responsibilities in the covered family law matters, subject to the rule's carve-outs (e.g., disputed multi-party parentage, certain ICWA situations). The LLP may advise, draft, file, and appear at hearings on these issues.

Authority: C.R.C.P. 207.1 [verify]

APR Modification

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QUESTION 58 OF 405 · FL-051 · APR MODIFICATION — GENERAL STANDARD · CORRECT: B

A motion to modify parenting time (not changing the majority residential parent) is generally decided under:

✗ A. The endangerment standard only

✓ **B. The best interests of the child**

✗ C. Clear and convincing evidence of unfitness

✗ D. A presumption against any change

Why: A modification of parenting time that does not change the party with whom the child resides a majority of the time is decided in the child's best interests under Section 14-10-129(2). Minor schedule adjustments use this best-interests test rather than the heightened standards reserved for changing the primary residence.

Authority: C.R.S. 14-10-129(2) [verify]

QUESTION 59 OF 405 · FL-052 · APR MODIFICATION — CHANGING MAJORITY PARENT · CORRECT: B

To change the parent with whom the child resides a majority of the time over objection, the moving party generally must show best interests PLUS:

✗ A. A six-month waiting period since the last order

✓ **B. A statutory trigger such as the present environment endangers the child or the parties agree**

✗ C. A showing that the other parent earns less

✗ D. A two-year waiting period only

Why: Modifying the majority residential parent over objection requires best interests and one of the 14-10-129(2) triggers—e.g., the parties agree, the child has been integrated into the moving party's home with consent, or the child's present environment endangers physical health or significantly impairs emotional development. The endangerment trigger is the most litigated.

Authority: C.R.S. 14-10-129(2) [verify]

QUESTION 60 OF 405 · FL-053 · APR MODIFICATION — DECISION-MAKING · CORRECT: A

Modification of decision-making responsibility is governed by which statute?

✓ **A. Section 14-10-131**

✗ B. Section 14-10-115

✗ C. Section 14-10-114

✗ D. Section 14-10-108

Why: Modification of decision-making responsibility is governed by Section 14-10-131, which requires a change in circumstances and that modification serve the child's best interests, with heightened protection for the existing primary decision-maker. Section 14-10-115 is child support, 14-10-114 is maintenance, and 14-10-108 is temporary orders.

Authority: C.R.S. 14-10-131 [verify]

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QUESTION 61 OF 405 · FL-054 · APR MODIFICATION — DECISION-MAKING STANDARD · CORRECT: B

Under Section 14-10-131, to modify decision-making the court must find a change in circumstances and that modification is in the child's best interests; to change the primary decision-maker's authority over objection, it generally requires:

✗ A. Mere convenience

✓ **B. A showing that retaining the arrangement endangers the child and the harm of change is outweighed by its advantages**

✗ C. The child's consent only

✗ D. A 10% income change

Why: Section 14-10-131 protects stability: modifying decision-making requires changed circumstances and best interests, and to change the allocation over objection the court must generally find that the current arrangement endangers the child's health or development and that the benefit of modification outweighs the harm of change (unless an exception like agreement or integration applies).

Authority: C.R.S. 14-10-131(2) [verify]

QUESTION 62 OF 405 · FL-061 · APR MODIFICATION — TWO-YEAR LIMIT · CORRECT: B

After a contested decision-making order, a party generally may not file a motion to modify decision-making for:

✗ A. 1 year

✓ **B. 2 years, absent endangerment or the child's integration**

✗ C. 5 years

✗ D. 6 months

Why: To promote stability, Section 14-10-131 generally bars motions to modify decision-making within 2 years of a prior contested order, unless there is reason to believe the child's present environment may endanger the child's physical health or significantly impair emotional development (or another exception applies).

Authority: C.R.S. 14-10-131(1) [verify]

QUESTION 63 OF 405 · FL-062 · APR MODIFICATION — INTEGRATION EXCEPTION · CORRECT: B

One trigger to change the majority residential parent is that the child has been:

✗ A. Enrolled in a new school

✓ **B. Integrated into the moving party's family with the consent of the other party**

✗ C. Old enough to drive

✗ D. Receiving better grades

Why: Section 14-10-129(2)(b) allows modification of the residential schedule where the child has been integrated into the petitioning party's family with the consent of the other party. Consent is key; a parent cannot manufacture integration unilaterally and then claim the exception.

Authority: C.R.S. 14-10-129(2)(b) [verify]

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QUESTION 64 OF 405 · FL-063 · APR MODIFICATION — AGREEMENT TRIGGER · CORRECT: B

If both parents agree to change the majority residential parent, the court:

✗ A. Cannot approve it

✓ **B. May modify if the change is in the child's best interests and the parties agree**

✗ C. Must hold a contested hearing anyway

✗ D. Must wait two years

Why: Where the parties agree to the modification, the court may modify the residential schedule if doing so serves the child's best interests. Agreement removes the need for an endangerment finding, but the court still independently reviews the best interests of the child.

Authority: C.R.S. 14-10-129(2)(a) [verify]

QUESTION 65 OF 405 · FL-064 · APR MODIFICATION — ENDANGERMENT TRIGGER · CORRECT: B

The 'endangerment' trigger for changing the majority residential parent requires the present environment to:

✗ A. Be merely suboptimal

✓ **B. Endanger the child's physical health or significantly impair the child's emotional development, with the harm of change outweighed by its advantages**

✗ C. Cause inconvenience

✗ D. Reduce parenting time slightly

Why: To change the primary residence over objection on endangerment grounds, the court must find that the child's present environment endangers physical health or significantly impairs emotional development AND that the advantages of the change outweigh the harm likely caused by changing the child's environment. It is a demanding standard.

Authority: C.R.S. 14-10-129(2)(d) [verify]

QUESTION 66 OF 405 · FL-065 · APR MODIFICATION — MINOR ADJUSTMENTS · CORRECT: B

A parent seeking a modest change to weeknight exchange times should expect the court to apply:

✗ A. The endangerment standard

✓ **B. The best-interests standard for a minor modification**

✗ C. A criminal standard

✗ D. No standard; it is automatic

Why: Minor adjustments to parenting time that do not change the majority residential parent are evaluated under best interests, a more flexible standard than endangerment. Courts routinely fine-tune schedules to fit the child's needs and the parents' logistics.

Authority: C.R.S. 14-10-129(2) [verify]

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QUESTION 67 OF 405 · FL-068 · APR MODIFICATION — BURDEN OF PROOF · CORRECT: B

In a contested modification, the moving party generally bears the burden to show:

✗ A. Beyond a reasonable doubt

✓ **B. By a preponderance that the statutory standard is met**

✗ C. Probable cause supported by affidavit

✗ D. Clear and convincing in all cases

Why: Civil modification motions are generally decided by a preponderance of the evidence, with the moving party bearing the burden to establish the applicable statutory standard (best interests or endangerment, depending on the relief sought). Some heightened findings are required for endangerment-based changes.

Authority: C.R.S. 14-10-129 [verify]; C.R.S. 14-10-131 [verify]

QUESTION 68 OF 405 · FL-072 · APR MODIFICATION — RELOCATION VS. MINOR MOVE · CORRECT: B

A within-town move that does not substantially change geography:

✗ A. Triggers the full relocation analysis

✓ **B. Generally does not trigger the heightened relocation factors**

✗ C. Requires a new dissolution

✗ D. Automatically changes the majority parent

Why: The relocation factors and notice provisions apply to moves that substantially change the geography of the child's relationship with a parent. A short, within-community move generally does not invoke the heightened relocation analysis, though the parties may still adjust logistics.

Authority: C.R.S. 14-10-129(1)(a)(II) [verify]

QUESTION 69 OF 405 · FL-073 · APR MODIFICATION — BEST INTERESTS RE-EXAMINED · CORRECT: B

On any APR modification, the ultimate touchstone remains:

✗ A. The parents' preferences

✓ **B. The best interests of the child**

✗ C. Equalizing time

✗ D. Minimizing support

Why: Whatever the procedural standard, the substantive lodestar is always the child's best interests. The heightened standards (endangerment, two-year bar) are stability safeguards layered on top of, not replacements for, the best-interests inquiry.

Authority: C.R.S. 14-10-124 [verify]

Relocation

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QUESTION 70 OF 405 · FL-055 · RELOCATION — POST-DECREE FACTORS · CORRECT: B

When a majority-time parent seeks to relocate post-decree with the child to a distant location, the court applies the best-interests factors PLUS the additional relocation factors found in:

✗ A. Section 14-10-124 only

✓ **B. Section 14-10-129(2)(c)**

✗ C. Section 14-10-115

✗ D. Section 14-10-131

Why: For post-decree relocation that substantially changes geography, Section 14-10-129(2)(c) supplies additional factors—reasons for and against the move, the educational and emotional advantages, the impact on the child's relationship with each parent, and the feasibility of preserving the relationship through revised parenting time. These supplement the 14-10-124 best-interests factors.

Authority: C.R.S. 14-10-129(2)(c) [verify]

QUESTION 71 OF 405 · FL-056 · RELOCATION — NO PRESUMPTION · CORRECT: B

In a contested post-decree relocation, the burden allocation is best described as:

✗ A. The relocating parent must prove the move is necessary

✓ **B. Neither parent bears a presumption; the court weighs all factors for the child's best interests**

✗ C. The objecting parent must prove the child will be harmed

✗ D. The relocating parent automatically wins if employed

Why: Under Ciesluk, neither parent bears a presumption and the relocating parent need not prove the move is 'necessary.' The court considers the disputed relocation factors and best-interests factors together and crafts the arrangement that serves the child, which may mean allowing the move with a long-distance plan or designating the non-moving parent as the majority-time parent.

Authority: In re Marriage of Ciesluk [verify]; C.R.S. 14-10-129(2)(c) [verify]

QUESTION 72 OF 405 · FL-057 · RELOCATION — CONSTITUTIONAL BACKDROP · CORRECT: B

The Ciesluk framework reflects the tension between:

✗ A. Two non-constitutional statutes

✓ **B. Each parent's competing constitutional interests (the right to travel and the right to parent) and the child's best interests**

✗ C. Two competing statutory presumptions, one favoring each parent

✗ D. Contract and tort law

Why: Ciesluk recognized that a relocating parent has a constitutional right to travel while the objecting parent has a constitutional interest in parenting; neither interest is paramount, so the court must balance them through the statutory factors with the child's best interests as the touchstone, without a thumb on the scale for either side.

Authority: In re Marriage of Ciesluk [verify]

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QUESTION 73 OF 405 · FL-058 · RELOCATION — PRE-DECREE DISTINCTION · CORRECT: B

The key difference between Spahmer (pre-decree) and Ciesluk (post-decree) relocation is that:

✗ A. Spahmer applies a presumption against moving

✓ B. In a pre-decree initial determination the court cannot order a parent to live somewhere and simply allocates based on where parents will live, while post-decree adds the 129(2)(c) relocation factors

✗ C. Both require proof of necessity

✗ D. Ciesluk applies only to interstate moves

Why: In an initial determination (Spahmer), there is no existing order to 'modify' and the court cannot dictate where a parent lives; it allocates parenting time based on each parent's actual location and the child's best interests. Post-decree relocation (Ciesluk) involves modifying an existing order and triggers the additional 14-10-129(2)(c) factors.

Authority: In re Marriage of Spahmer [verify]; In re Marriage of Ciesluk [verify]

QUESTION 74 OF 405 · FL-059 · RELOCATION — NOTICE · CORRECT: B

A parent intending to relocate with the child to a residence that substantially changes geography should:

✗ A. Move first and notify later

✓ B. Provide advance written notice to the other parent as soon as practicable

✗ C. Notify only the school

✗ D. Notify the court but not the other parent

Why: Section 14-10-129(1)(a)(II) requires a party intending to relocate to provide written notice to the other parent as soon as practicable, including the location and reasons, so the other parent can respond and the court can address parenting time before the move. Failure to give notice can affect the court's view.

Authority: C.R.S. 14-10-129(1)(a)(II) [verify]

QUESTION 75 OF 405 · FL-060 · RELOCATION — TEMPORARY ORDERS LIMIT · CORRECT: B

In a relocation dispute, the court may NOT:

✗ A. Modify the parenting plan to accommodate the move

✓ B. Enter temporary orders allowing the child to relocate before a full hearing in a contested case (it must hold a hearing)

✗ C. Consider the child's best interests

✗ D. Appoint a CFI to investigate the proposed relocation

Why: Because relocation can effectively decide the case if the child moves before a hearing, the statute restricts entering temporary orders that permit relocation of the child prior to a final hearing in contested matters; the court should hold a hearing on the merits. This protects the status quo and the objecting parent's relationship.

Authority: C.R.S. 14-10-129(2)(c) [verify]

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QUESTION 76 OF 405 · FL-066 · RELOCATION — LONG-DISTANCE PLANS · CORRECT: B

If a court permits a child's relocation, it commonly:

✗ A. Eliminates the other parent's time

✓ **B. Fashions a long-distance parenting plan (e.g., extended summers, holidays, virtual contact)**

✗ C. Orders the moving parent to pay all of the other parent's travel forever

✗ D. Terminates decision-making

Why: When relocation is allowed, courts craft long-distance parenting plans to preserve the non-moving parent's relationship—extended summer and holiday blocks, defined travel arrangements and cost-sharing, and electronic/virtual contact. The goal is continuity of the relationship despite distance.

Authority: C.R.S. 14-10-129(2)(c) [verify]

QUESTION 77 OF 405 · FL-067 · RELOCATION — CHILD'S ADJUSTMENT FACTOR · CORRECT: B

Among the relocation factors, the court weighs:

✗ A. The moving parent's new partner's income

✓ **B. The anticipated impact of the move on the child and the child's present and future relationships with both parents**

✗ C. The cost of the moving truck

✗ D. The objecting parent's hobbies

Why: Relocation analysis considers the anticipated impact of the move on the child, the quality of the child's relationships with each parent, the educational and emotional advantages of the move, and whether a realistic plan can preserve the relationship with the non-moving parent. The focus stays on the child.

Authority: C.R.S. 14-10-129(2)(c) [verify]

QUESTION 78 OF 405 · FL-071 · RELOCATION — EFFECT OF UNILATERAL MOVE · CORRECT: B

A majority-time parent who relocates with the child without notice or consent risks:

✗ A. No consequence if the move stays within Colorado

✓ **B. An order to return the child, modification, or other remedies, and the move being weighed against them**

✗ C. Automatic approval

✗ D. Criminal immunity

Why: A unilateral relocation in violation of the notice requirement or an existing order can lead to an order returning the child, a modification of parenting time, contempt, and the court weighing the parent's conduct in the best-interests analysis. Following the statutory notice-and-hearing process is essential.

Authority: C.R.S. 14-10-129 [verify]

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QUESTION 79 OF 405 · FL-074 · RELOCATION — DOMICILE OF YOUNGER CHILD · CORRECT: B

For relocation involving a very young child with limited school ties, courts:

✗ A. Still apply a presumption favoring the primary caregiver's move

✓ **B. Still apply the relocation factors, weighing the child's developmental needs and bonding with each parent**

✗ C. Still allow the move automatically, given the limited school ties

✗ D. Still deny the move automatically until the child starts school

Why: Even for young children, the relocation factors apply; the court weighs the child's developmental needs, attachment to each parent, and the realistic ability to maintain bonds across distance. Age affects how factors are weighed, not whether the analysis applies.

Authority: C.R.S. 14-10-129(2)(c) [verify]

Child Support

QUESTION 80 OF 405 · FL-076 · CHILD SUPPORT — MODEL · CORRECT: B

Colorado calculates child support using which model?

✗ A. Percentage-of-obligor-income model

✓ **B. Income shares model**

✗ C. The Melson formula used in some other states

✗ D. Flat statutory amount

Why: Colorado uses the income shares model: the court combines both parents' adjusted gross incomes, finds the basic support obligation on the statutory schedule for that combined income and number of children, then prorates the obligation between the parents in proportion to their incomes and adjusts for overnights. The model approximates the share of income the child would have received if the household were intact.

Authority: C.R.S. 14-10-115 [verify]

QUESTION 81 OF 405 · FL-077 · CHILD SUPPORT — GROSS INCOME DEFINITION · CORRECT: B

Which is generally included in 'gross income' for child support?

✗ A. TANF public assistance

✓ **B. Salary, wages, commissions, bonuses, and self-employment income**

✗ C. Child support received for a different child

✗ D. SNAP and other means-tested public benefits

Why: Gross income is broadly defined to include income from nearly all sources—salary, wages, tips, commissions, bonuses, dividends, pensions, rents, and net self-employment income. It excludes means-tested public assistance such as TANF and SNAP, and certain child support received for other children. The breadth of the definition is heavily tested.

Authority: C.R.S. 14-10-115(5)(a) [verify]

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QUESTION 82 OF 405 · FL-078 · CHILD SUPPORT — SELF-EMPLOYMENT INCOME · CORRECT: B

For a self-employed parent, gross income equals gross receipts minus:

✗ A. All claimed business deductions on the tax return

✓ **B. Ordinary and necessary expenses required to produce income (not all tax deductions)**

✗ C. One-half of self-employment tax only

✗ D. Personal living expenses

Why: For self-employment, income means gross receipts minus ordinary and necessary expenses required to produce that income. Certain accelerated depreciation and other paper deductions allowed for tax purposes are added back, because they do not reflect actual reduced cash available for support. This often diverges from the figure on a tax return.

Authority: C.R.S. 14-10-115(5)(a)(III) [verify]

QUESTION 83 OF 405 · FL-079 · CHILD SUPPORT — IMPUTATION · CORRECT: B

Income may be imputed to a parent who is:

✗ A. Working full time

✓ **B. Voluntarily unemployed or underemployed, absent an exception**

✗ C. Disabled and unable to work

✗ D. Caring for an infant under 30 months in some cases

Why: If a parent is voluntarily unemployed or underemployed, the court may impute potential income based on the parent's recent work history, education, and the prevailing job opportunities and earnings in the community. Imputation does not apply when the parent is physically or mentally incapacitated or, in defined circumstances, is caring for a child under 30 months for whom the parents share responsibility.

Authority: C.R.S. 14-10-115(5)(b) [verify]

QUESTION 84 OF 405 · FL-080 · CHILD SUPPORT — UNDER-30-MONTHS EXCEPTION · CORRECT: B

The under-30-months caregiver exception to imputation applies when a parent:

✗ A. Cares for any child

✓ **B. Is caring for a child under 30 months of age for whom the parents owe a joint legal duty of support**

✗ C. Has any preschooler

✗ D. Simply prefers not to work

Why: Potential income generally is not imputed to a parent who is caring for a child under 30 months of age for whom the parents share a joint legal responsibility, recognizing the value and cost of infant care. The exception is specific to the parties' shared child and the age threshold.

Authority: C.R.S. 14-10-115(5)(b)(I) [verify]

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QUESTION 85 OF 405 · FL-081 · CHILD SUPPORT — SHARED-CARE THRESHOLD · CORRECT: B

Since March 1, 2026, a parent's overnights earn the shared parenting time credit once that parent has at least:

✗ A. 92 overnights

✓ **B. 1 overnight per year**

✗ C. 182 overnights

✗ D. 93 overnights

Why: HB25-1159 redefined shared physical care, effective March 1, 2026: each parent keeps the children at least one overnight a year and both contribute to expenses. The old 92/93-overnight Worksheet A/B cliff is repealed; every overnight now earns credit.

Authority: C.R.S. 14-10-115(3)(h), as amended by HB25-1159 (eff. Mar. 1, 2026)

QUESTION 86 OF 405 · FL-082 · CHILD SUPPORT — PARENTING TIME CREDIT · CORRECT: B

Under the March 1, 2026 guidelines, shared overnight parenting time is handled by:

✗ A. Multiplying the basic obligation by 1.5 before allocation

✓ **B. Deducting a credit: total basic obligation × that parent's Parenting Time Table percentage**

✗ C. Multiplying the basic obligation by zero when overnights are equal

✗ D. Multiplying each parent's income by two before the calculation

Why: Each parent's credit is the total basic obligation multiplied by that parent's percentage on the statutory Parenting Time Table, based on overnights, and is deducted from that parent's share. The parent owing more pays the difference, capped at what that parent would owe with no overnights. The old 1.5 factor is repealed.

Authority: C.R.S. 14-10-115(8)(b), (8)(h), as amended by HB25-1159 (eff. Mar. 1, 2026)

QUESTION 87 OF 405 · FL-083 · CHILD SUPPORT — ADJUSTMENTS · CORRECT: B

Which is a permitted adjustment added to the basic obligation?

✗ A. The obligor's car payment

✓ **B. Work-related child care costs, the child's health insurance premium, and extraordinary medical expenses**

✗ C. The obligor's student loans

✗ D. Vacation and travel costs the parents agree to share

Why: Specific add-ons adjust the basic obligation: work- or education-related child care costs, the portion of health insurance premiums attributable to the child, and extraordinary medical expenses (unreimbursed costs above a statutory threshold per child per year). These are shared in proportion to income.

Authority: C.R.S. 14-10-115(9)-(11) [verify]

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QUESTION 88 OF 405 · FL-084 · CHILD SUPPORT — HEALTH INSURANCE CREDIT · CORRECT: B

A parent who pays the child's health insurance premium:

✗ A. Receives no credit unless the decree says so expressly

✓ **B. Receives credit on the worksheet for the child's share of the premium**

✗ C. Must pay double

✗ D. Loses parenting time

Why: The cost of the child's portion of health insurance is added to the basic obligation and apportioned between the parents; the parent who actually pays the premium receives a credit on the worksheet for the amount paid. This prevents that parent from bearing the full cost alone.

Authority: C.R.S. 14-10-115(10) [verify]

QUESTION 89 OF 405 · FL-085 · CHILD SUPPORT — EXTRAORDINARY MEDICAL · CORRECT: B

Unreimbursed medical expenses become 'extraordinary' (shared as an add-on) when they exceed:

✗ A. $200 per child per year

✓ **B. $250 per child per year**

✗ C. $240 per child per year

✗ D. $300 per child per year

Why: Uninsured or unreimbursed medical expenses exceeding $250 per child per year are treated as extraordinary medical expenses and shared by the parents in proportion to their incomes. Routine uninsured costs below that threshold are generally absorbed by the parent incurring them. [Confirm the current threshold.]

Authority: C.R.S. 14-10-115(11) [verify]

QUESTION 90 OF 405 · FL-086 · CHILD SUPPORT — INCOME PRORATION · CORRECT: B

After determining the adjusted basic obligation, the court allocates it:

✗ A. In equal shares regardless of income

✓ **B. In proportion to each parent's share of combined adjusted gross income**

✗ C. In full to the higher earner

✗ D. In proportion to overnights only, ignoring income

Why: Each parent's share of the total obligation is set by that parent's percentage of the combined adjusted gross income. For example, if one parent earns 60% of the combined income, that parent is responsible for 60% of the obligation, subject to overnight and credit adjustments.

Authority: C.R.S. 14-10-115(8) [verify]

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QUESTION 91 OF 405 · FL-087 · CHILD SUPPORT — LOW-INCOME ADJUSTMENT · CORRECT: B

For very low-income obligors, Colorado's guideline provides:

✗ A. No support is ever ordered

✓ **B. A low-income adjustment and self-support reserve so the obligor retains a minimum subsistence amount**

✗ C. A flat $500 minimum

✗ D. Triple the obligation as a statutory penalty

Why: The schedule includes a low-income adjustment and self-support reserve designed to leave the obligor with enough income for basic subsistence while still providing some support. There is also a minimum order in many cases. The goal is realistic, payable orders.

Authority: C.R.S. 14-10-115(7) [verify]

QUESTION 92 OF 405 · FL-088 · CHILD SUPPORT — NUMBER OF OVERNIGHTS COUNTING · CORRECT: B

For the parenting-time adjustment, the court counts:

✗ A. Hours of contact

✓ **B. The number of overnights each parent has with the child per year**

✗ C. Weekend days only

✗ D. School days only

Why: The guideline measures parenting time by annual overnights, which set each parent's credit percentage on the statutory Parenting Time Table. When two or more children have different overnights, the overnights are averaged across the children.

Authority: C.R.S. 14-10-115(8)(b), (8)(h), as amended by HB25-1159 (eff. Mar. 1, 2026)

QUESTION 93 OF 405 · FL-089 · CHILD SUPPORT — IMPUTATION FACTORS · CORRECT: B

When imputing potential income, the court considers:

✗ A. Only the minimum wage

✓ **B. Employment potential and probable earnings based on work history, education, skills, and job opportunities**

✗ C. The other parent's income only

✗ D. A flat statewide average

Why: Imputation is based on the parent's employment potential and probable earnings level, considering recent work history, occupational qualifications, and prevailing job opportunities and earnings in the community. It is individualized, not a flat figure, and not applied where an exception (incapacity, infant care) governs.

Authority: C.R.S. 14-10-115(5)(b) [verify]

QUESTION 94 OF 405 · FL-090 · CHILD SUPPORT — MULTIPLE CHILDREN ADJUSTMENT · CORRECT: B

A parent supporting children from another relationship may receive:

✗ A. No consideration

✓ **B. An adjustment/deduction for other children the parent has a legal duty to support**

✗ C. Double the deduction for each additional child

✗ D. An exemption from all support

Why: The guideline allows an adjustment for a parent's other children for whom the parent has a legal responsibility, whether through an existing order or by deduction for children living with the parent. This prevents the formula from ignoring the parent's other support duties.

Authority: C.R.S. 14-10-115(6) [verify]

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QUESTION 95 OF 405 · FL-091 · CHILD SUPPORT — MAINTENANCE INTERACTION · CORRECT: B

When maintenance is ordered in the same case, for the child support calculation:

✗ A. Maintenance is ignored

✓ **B. Maintenance actually paid is deducted from the payor's income and added to the recipient's income**

✗ C. Maintenance is added to both incomes

✗ D. Maintenance doubles the obligation

Why: Maintenance actually paid is subtracted from the payor's gross income and added to the recipient's gross income before computing child support, because it shifts available income between the households. The order of operations (maintenance first, then child support) matters to the result.

Authority: C.R.S. 14-10-115(5)(a)(I) [verify]

QUESTION 96 OF 405 · FL-092 · CHILD SUPPORT — DEVIATION · CORRECT: B

A court may deviate from the guideline amount if:

✗ A. A parent simply asks

✓ **B. Application would be inequitable, unjust, or inappropriate, with specific findings**

✗ C. The obligor dislikes the amount

✗ D. Only if both parties stipulate to the deviation

Why: The guideline amount is rebuttably presumed correct, but the court may deviate when its application would be inequitable, unjust, or inappropriate in the particular case. Any deviation must be supported by specific findings explaining the basis and the amount that would otherwise apply.

Authority: C.R.S. 14-10-115(8)(e) [verify]

QUESTION 97 OF 405 · FL-093 · CHILD SUPPORT — DURATION · CORRECT: B

Child support generally continues until the child reaches the age of emancipation, which in Colorado is presumptively:

✗ A. 18

✓ **B. 19**

✗ C. 21

✗ D. 16

Why: The presumptive age of emancipation for child support is 19. Support may extend if the child is still in high school (until graduation or 19, with limited extension) or is physically or mentally disabled, and parties may agree to post-secondary support. It ends earlier on emancipating events like marriage or active military duty.

Authority: C.R.S. 14-10-115(13) [verify]

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QUESTION 98 OF 405 · FL-094 · CHILD SUPPORT — POST-SECONDARY · CORRECT: B

Court-ordered payment of college expenses:

✗ A. Is mandatory in all cases

✓ **B. Is generally not required absent the parties' agreement**

✗ C. Is automatic until age 25

✗ D. Is required for public colleges only

Why: Colorado courts generally cannot order post-secondary educational support absent the parties' agreement; the statutory duty ends at emancipation. Parents may, however, contractually agree to share college costs, and such an agreement can be enforced. This contrasts with some other states.

Authority: C.R.S. 14-10-115(13) [verify]

QUESTION 99 OF 405 · FL-095 · CHILD SUPPORT — DISABLED CHILD · CORRECT: B

Support for a child who is physically or mentally disabled:

✗ A. Always ends at 19

✓ **B. May continue past 19 where the disability arose before emancipation and the child cannot be self-supporting**

✗ C. Requires a conservatorship before support may continue

✗ D. Ends at 18

Why: Where a child is incapable of self-support due to a physical or mental disability that existed before emancipation, support may continue beyond the usual age. The court examines the child's needs and the parents' ability to provide. This is an exception to the age-19 default.

Authority: C.R.S. 14-10-115(13) [verify]

QUESTION 100 OF 405 · FL-096 · CHILD SUPPORT — HIGH SCHOOL EXTENSION · CORRECT: B

If a 19-year-old is still enrolled in high school, support:

✗ A. Ends immediately at 19

✓ **B. May continue until the end of the month following graduation, up to age 21 in some cases**

✗ C. Continues until age 21 regardless of enrollment

✗ D. Continues only if the child is disabled

Why: If the child is still in high school or an equivalent program at 19, support continues until the end of the month following graduation, with an outer limit defined by statute. The policy is to support the child through completion of secondary education.

Authority: C.R.S. 14-10-115(13)(a)(I) [verify]

QUESTION 101 OF 405 · FL-097 · CHILD SUPPORT — IMPUTATION AND INCARCERATION · CORRECT: B

For a parent who is incarcerated, courts generally:

✗ A. Do impute the income the parent earned before incarceration

✓ **B. Do not treat incarceration as voluntary unemployment justifying imputation in most circumstances**

✗ C. Do terminate support automatically for the term of incarceration

✗ D. Do double the obligation as a penalty for the conviction

Why: Recent Colorado law and policy generally do not treat incarceration as voluntary unemployment for purposes of imputing income, recognizing that an incarcerated parent typically lacks earning ability. Practices have shifted away from accruing unrealistic arrears during incarceration. [Confirm current statute/rule.]

Authority: C.R.S. 14-10-115(5)(b) [verify]

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QUESTION 102 OF 405 · FL-098 · CHILD SUPPORT — CREDIT AT 70 OVERNIGHTS · CORRECT: B

Father has 70 overnights a year; mother has 295. Under the March 1, 2026 guidelines, the father:

✗ A. Gets no credit because he is below 93 overnights

✓ **B. Gets a parenting time credit of 8.28% of the total basic obligation**

✗ C. Pays no support

✗ D. Uses neither the schedule nor the Parenting Time Table

Why: The 93-overnight cliff was repealed effective March 1, 2026, so every overnight counts. The statutory Parenting Time Table assigns 70 overnights a credit of 8.28%, so 8.28% of the total basic obligation is deducted from the father's share.

Authority: C.R.S. 14-10-115(3)(h), (8)(b), (8)(h), as amended by HB25-1159

QUESTION 103 OF 405 · FL-099 · CHILD SUPPORT — TAX EXEMPTION · CORRECT: B

Allocation of the federal dependency tax benefit between parents:

✗ A. Is forbidden, because the federal benefit is not divisible

✓ **B. May be allocated by the court as part of the orders, often to maximize the family's overall benefit**

✗ C. Always goes to the mother

✗ D. Is decided by the IRS only

Why: Colorado courts may allocate the dependency tax benefit between the parents, often to the parent who will derive the greater benefit or in proportion to support contributions, typically conditioned on the obligor being current. Allocation requires the custodial parent to release the exemption via IRS Form 8332 when assigned to the other parent.

Authority: C.R.S. 14-10-115(14) [verify]

QUESTION 104 OF 405 · FL-100 · CHILD SUPPORT — PRESUMPTIVE CORRECTNESS · CORRECT: B

The amount produced by the guideline is:

✗ A. Merely a suggestion

✓ **B. Rebuttably presumed to be the correct amount of child support**

✗ C. Always a maximum

✗ D. Only advisory like maintenance

Why: Unlike the advisory maintenance guideline, the child support guideline amount is rebuttably presumed correct. A court must order that amount unless it makes specific findings justifying a deviation. This presumption is a key distinction between child support and maintenance.

Authority: C.R.S. 14-10-115(8)(e) [verify]

CS Modification

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QUESTION 105 OF 405 · FL-101 · CS MODIFICATION — STANDARD · CORRECT: B

A child support order may be modified upon a showing of:

✗ A. A 5% change in the guideline amount

✓ **B. A substantial and continuing change of circumstances**

✗ C. Fraud in the original proceeding, within 5 years

✗ D. The obligor's request alone

Why: Child support is modifiable on a showing of a substantial and continuing change in circumstances that makes the existing order inequitable. The change might involve income, the parenting schedule, or the child's needs. Modification is prospective and does not disturb already-accrued installments.

Authority: C.R.S. 14-10-122(1)(a) [verify]

QUESTION 106 OF 405 · FL-102 · CS MODIFICATION — 10% PRESUMPTION · CORRECT: B

There is a presumption of a substantial and continuing change if applying the guideline to current circumstances would change the support obligation by at least:

✗ A. 5%

✓ **B. 10%**

✗ C. 12%

✗ D. 9%

Why: A change of 10% or more in the amount of support due under the guideline (based on current circumstances) creates a rebuttable presumption that a substantial and continuing change has occurred. This bright-line test simplifies many modification motions. Smaller changes may still qualify if substantial and continuing.

Authority: C.R.S. 14-10-122(1)(b) [verify]

QUESTION 107 OF 405 · FL-103 · CS MODIFICATION — EFFECTIVE DATE · CORRECT: B

A child support modification is generally effective:

✗ A. Back to the child's birth

✓ **B. Retroactive to the date the motion to modify was filed**

✗ C. Only prospectively from the order date

✗ D. Back five years

Why: Modification ordinarily takes effect as of the date the motion to modify was filed, not earlier, absent specific exceptions (e.g., a change in physical custody). Payments that accrued before filing are vested and generally not subject to retroactive reduction.

Authority: C.R.S. 14-10-122(1)(d) [verify]

QUESTION 108 OF 405 · FL-114 · CS MODIFICATION — CHANGE IN CUSTODY · CORRECT: B

When physical care of the child changes, support modification may be effective:

✗ A. Only from the new order

✓ **B. As of the date the change in physical care occurred, in defined circumstances**

✗ C. Only prospectively from the filing of the motion

✗ D. Five years later

Why: Where there is a change in the parent with whom the child resides, the statute allows modification to be effective as of the date the physical care actually changed, an exception to the usual file-date rule. This prevents support from continuing to run to a parent who no longer has the child.

Authority: C.R.S. 14-10-122(5) [verify]

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CS Enforcement

QUESTION 109 OF 405 · FL-104 · CS ENFORCEMENT — VESTED ARREARS · CORRECT: B

Past-due child support installments:

✗ A. Can be retroactively forgiven by the court at will

✓ **B. Become vested judgments as they accrue and are not subject to retroactive modification**

✗ C. Disappear after one year

✗ D. Lapse if not reduced to judgment within 6 months

Why: Each unpaid installment becomes a vested money judgment as it comes due, accruing interest, and the court generally cannot retroactively reduce or forgive accrued arrears. This protects the child's right to support that already came due. Only prospective modification is allowed.

Authority: C.R.S. 14-10-122(1)(c) [verify]

QUESTION 110 OF 405 · FL-105 · CS ENFORCEMENT — INCOME ASSIGNMENT · CORRECT: B

A common automatic enforcement tool for child support is:

✗ A. Wage garnishment by income assignment (withholding)

✓ **B. Criminal indictment in all cases**

✗ C. Property seizure without notice

✗ D. License revocation without findings

Why: Child support orders are typically enforced by an income assignment (automatic wage withholding) directing the obligor's employer to deduct support. Income withholding is the default enforcement mechanism and can issue without returning to court. Other tools supplement it.

Authority: C.R.S. 14-14-111.5 [verify]

QUESTION 111 OF 405 · FL-106 · CS ENFORCEMENT — INTEREST · CORRECT: B

Unpaid child support generally accrues statutory interest at:

✗ A. No interest, because support judgments are exempt

✓ **B. A statutory rate (commonly 12% per year, compounded monthly) on arrears**

✗ C. 10% per year, simple

✗ D. 8% per year, the general judgment rate

Why: Child support arrears accrue interest at the statutory rate (historically 12% per annum, compounded monthly), substantially increasing the amount owed over time. The interest is part of the enforceable judgment. [Confirm current rate.]

Authority: C.R.S. 14-14-106 [verify]

QUESTION 112 OF 405 · FL-107 · CS ENFORCEMENT — LICENSE SUSPENSION · CORRECT: B

For significant nonpayment, the state may:

✗ A. Only report the arrears to credit bureaus

✓ **B. Suspend the obligor's driver's, professional, or recreational licenses**

✗ C. Imprison without process

✗ D. Garnish 100% of wages

Why: Persistent nonpayment can lead to administrative suspension of driver's, professional, occupational, and recreational licenses as an enforcement lever, subject to due process. Other tools include tax refund intercepts, liens, and credit reporting. These coercive measures aim to compel payment.

Authority: C.R.S. 26-13-126 [verify]

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QUESTION 113 OF 405 · FL-108 · CS ENFORCEMENT — REMEDIAL CONTEMPT · CORRECT: B

Remedial contempt for nonpayment of child support is characterized by:

✗ A. A fixed punitive jail term

✓ **B. A coercive sanction the obligor can purge by complying (the 'keys to the cell')**

✗ C. A sanction imposed without any findings

✗ D. A mandatory suspension of the obligor's professional licence

Why: Remedial contempt is coercive: it compels compliance and allows the contemnor to purge the sanction by paying or complying, holding the 'keys to the cell.' It requires findings of a lawful order, knowledge, the ability to comply, and willful noncompliance. Remedial contempt is within an LLP's scope.

Authority: C.R.C.P. 107 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 114 OF 405 · FL-109 · CS ENFORCEMENT — PUNITIVE CONTEMPT (SCOPE) · CORRECT: B

Punitive contempt under C.R.C.P. 107:

✗ A. Is within an LLP's scope

✓ **B. Is outside an LLP's scope and requires an attorney**

✗ C. Is the same as remedial contempt

✗ D. Is never available in family cases

Why: Punitive contempt—imposing a fixed, non-purgeable sanction to punish past misconduct and vindicate the court's authority—is expressly outside an LLP's authorized scope. An LLP may pursue remedial contempt but must refer punitive contempt to an attorney. This remedial/punitive line is a frequently tested scope point.

Authority: C.R.C.P. 107 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 115 OF 405 · FL-111 · CS ENFORCEMENT — TAX INTERCEPT · CORRECT: B

Past-due support may be collected through:

✗ A. Voluntary payments the obligor chooses to make out of tips

✓ **B. Interception of state and federal tax refunds through the IV-D program**

✗ C. Seizure of exempt benefits

✗ D. Only the remedies the parties wrote into the decree

Why: State child support enforcement can intercept state and federal income tax refunds to satisfy arrears, among other administrative remedies. These intercepts are coordinated through the IV-D child support program. Certain exempt funds remain protected.

Authority: C.R.S. 26-13-111 [verify]

CS Contempt

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QUESTION 116 OF 405 · FL-110 · CS CONTEMPT — ABILITY TO COMPLY · CORRECT: B

A key element the movant must establish in a remedial contempt for nonpayment is that the obligor:

✗ A. Has a high income

✓ **B. Had the present ability to comply and willfully failed to do so**

✗ C. Was once employed

✗ D. Lives in Colorado

Why: Remedial contempt requires proof of a valid order, the contemnor's knowledge of it, the present ability to comply, and willful refusal. Present ability to pay is essential; a genuinely indigent obligor who cannot pay is not in contempt, though arrears still accrue as a judgment.

Authority: C.R.C.P. 107 [verify]

CS

QUESTION 117 OF 405 · FL-112 · CS — UIFSA · CORRECT: B

Interstate establishment and enforcement of support orders is governed by:

✗ A. The UCCJEA

✓ **B. The Uniform Interstate Family Support Act (UIFSA)**

✗ C. The Hague Convention only

✗ D. State contract law

Why: UIFSA governs the establishment, enforcement, and modification of support orders across state lines, including continuing exclusive jurisdiction and registration of out-of-state orders. (UCCJEA governs custody/APR, not support.) Registration of a foreign support order is itself an LLP scope carve-out.

Authority: C.R.S. 14-5-101 et seq. [verify]

QUESTION 118 OF 405 · FL-113 · CS — FOREIGN ORDER REGISTRATION (SCOPE) · CORRECT: B

Registration of a foreign (out-of-state) support order for enforcement in Colorado is:

✗ A. Within an LLP's scope

✓ **B. Outside an LLP's scope (a carve-out)**

✗ C. Prohibited entirely

✗ D. Within scope only if no contempt is sought

Why: Registration of foreign orders is one of the discrete matters expressly excluded from an LLP's authorized scope of practice under C.R.C.P. 207.1. An LLP encountering a need to register an out-of-state order should refer the client to an attorney for that task.

Authority: C.R.C.P. 207.1 [verify]

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QUESTION 119 OF 405 · FL-115 · CS — EMANCIPATION EVENT · CORRECT: B

Which event generally emancipates a child for support purposes before 19?

✗ A. Getting a part-time job

✓ **B. Marriage or entry into active military duty**

✗ C. Starting high school

✗ D. Moving to a new school district

Why: A child may be emancipated before 19 by marriage, entry into active military service, or otherwise ceasing to be dependent, terminating the support obligation for that child. A part-time job or changing schools does not emancipate the child.

Authority: C.R.S. 14-10-115(13) [verify]

QUESTION 120 OF 405 · FL-116 · CS — MULTIPLE FAMILY ADJUSTMENT · CORRECT: B

A subsequent child born to the obligor in a new relationship:

✗ A. Increases the existing order automatically

✓ **B. May be considered as an adjustment but does not automatically reduce an existing order**

✗ C. Has no possible relevance

✗ D. Terminates the existing order

Why: A parent's duty to later-born children can be considered through the other-children adjustment, but it does not automatically reduce an existing order; the obligor must seek modification and the court weighs it under the guideline. The first child's support is not simply cut to fund a new family.

Authority: C.R.S. 14-10-115(6) [verify]

QUESTION 121 OF 405 · FL-117 · CS — RETROACTIVE SUPPORT · CORRECT: B

In an initial determination, the court may order child support retroactive to:

✗ A. The date the petition was filed, at the earliest

✓ **B. The date of physical separation or the child's birth in a parentage case, as provided by statute**

✗ C. Only the hearing date

✗ D. Ten years prior

Why: In an initial case, support can be ordered retroactive to the date the parties separated, or in parentage matters back to the child's birth (subject to limits), recognizing the duty existed before the order. This differs from modification, which generally runs from the filing date.

Authority: C.R.S. 14-10-115(3) [verify]; C.R.S. 19-4-116 [verify]

QUESTION 122 OF 405 · FL-118 · CS — VOLUNTARY OVERPAYMENT · CORRECT: B

Voluntary payments a parent makes beyond the ordered amount:

✗ A. Always count as a credit against future support

✓ **B. Generally do not create a credit against future support absent agreement or order**

✗ C. Double the obligation

✗ D. Terminate support

Why: Voluntary extra payments or gifts generally are not credited against future periodic support obligations unless the parties agree or the court orders it, because support is owed as ordered each period. This prevents an obligor from prepaying and then withholding later support.

Authority: C.R.S. 14-10-122 [verify]

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QUESTION 123 OF 405 · FL-119 · CS — SELF-SUPPORT RESERVE · CORRECT: B

The self-support reserve in the guideline functions to:

✗ A. Maximize the obligation

✓ **B. Ensure the obligor retains a minimum income for basic needs**

✗ C. Eliminate support for high earners

✗ D. Increase interest on arrears

Why: The self-support reserve adjusts the obligation for low-income obligors so they retain enough income to meet basic subsistence needs, improving the realism and payability of orders. It works together with the low-income adjustment at the bottom of the schedule.

Authority: C.R.S. 14-10-115(7) [verify]

QUESTION 124 OF 405 · FL-120 · CS — IMPUTATION REBUTTAL · CORRECT: B

A parent facing imputation can rebut it by showing:

✗ A. Only a doctor's certification of total disability

✓ **B. That the unemployment/underemployment is not voluntary or that an exception (incapacity, infant care, good-faith career change) applies**

✗ C. That they dislike working

✗ D. That the other parent earns more

Why: Imputation is rebuttable: the parent may show the situation is not voluntary, that a statutory exception applies, or in some cases that a good-faith career change or education will increase future earnings. The court weighs the evidence on employment potential.

Authority: C.R.S. 14-10-115(5)(b) [verify]

QUESTION 125 OF 405 · FL-121 · CS — CHILD SUPPORT AND BANKRUPTCY · CORRECT: B

Child support obligations in bankruptcy are:

✗ A. Fully dischargeable

✓ **B. Non-dischargeable domestic support obligations entitled to priority**

✗ C. Discharged after 7 years

✗ D. Reduced automatically

Why: Child support is a 'domestic support obligation' that is non-dischargeable in bankruptcy and holds priority status. A bankruptcy filing does not erase support arrears. (Bankruptcy advice itself is outside an LLP's scope as a collateral issue.)

Authority: 11 U.S.C. 523(a)(5) [verify]; C.R.C.P. 207.1 [verify]

QUESTION 126 OF 405 · FL-122 · CS — DIRECT PAY VS. REGISTRY · CORRECT: B

Courts often direct child support to be paid through:

✗ A. Cash with no record

✓ **B. The Family Support Registry to create a payment record**

✗ C. A friend of the family

✗ D. The child directly

Why: Payment through the Family Support Registry (FSR) creates an official record of payments, reducing disputes about what was paid. Direct payments can create proof problems; an obligor claiming credit for direct payments bears the burden of proving them.

Authority: C.R.S. 26-13-114 [verify]

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QUESTION 127 OF 405 · FL-123 · CS — MODIFICATION NOT AUTOMATIC · CORRECT: B

If an obligor loses a job, the support obligation:

✗ A. Automatically drops to zero

✓ **B. Continues at the ordered amount until the court modifies it**

✗ C. Is forgiven for any month the obligor is unemployed

✗ D. Is abated automatically after 30 days of unemployment

Why: Support continues at the existing amount and accrues until the court enters a modification; job loss does not self-execute a reduction. The obligor should promptly file a motion to modify, since relief generally runs only from the filing date. Delay causes arrears to mount.

Authority: C.R.S. 14-10-122 [verify]

QUESTION 128 OF 405 · FL-124 · CS — HEALTH INSURANCE ORDER · CORRECT: B

Child support orders must address:

✗ A. Only cash support

✓ **B. Provision of the child's medical support (health insurance and/or cash medical)**

✗ C. Only parenting time

✗ D. College savings

Why: Support orders must include a provision for the child's medical support, requiring one or both parents to provide health insurance when available at reasonable cost or to contribute to cash medical support. This ensures the child's health coverage is addressed in every order.

Authority: C.R.S. 14-10-115(10) [verify]

QUESTION 129 OF 405 · FL-125 · CS — SCOPE SUMMARY · CORRECT: A

Which child support task is within an LLP's authorized scope?

✓ **A. Establishing, enforcing, and modifying child support, including remedial contempt**

✗ B. Punitive contempt

✗ C. Registering a foreign support order

✗ D. Preparing a QDRO

Why: An LLP may establish, enforce, and modify child support and pursue remedial contempt within that scope. Punitive contempt, registration of foreign orders, and QDROs are carve-outs requiring an attorney. Knowing which enforcement tools are in vs. out of scope is essential.

Authority: C.R.C.P. 207.1 [verify]

Maintenance

QUESTION 130 OF 405 · FL-126 · MAINTENANCE — AUTHORITY · CORRECT: B

Spousal maintenance in Colorado is governed primarily by:

✗ A. Section 14-10-115

✓ **B. Section 14-10-114**

✗ C. Section 14-10-113

✗ D. Section 14-10-124

Why: Maintenance (alimony) is governed by Section 14-10-114, which sets out an advisory guideline and the factors the court must consider. Section 14-10-115 is child support, 14-10-113 is property division, and 14-10-124 is allocation of parental responsibilities.

Authority: C.R.S. 14-10-114 [verify]

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QUESTION 131 OF 405 · FL-127 · MAINTENANCE — ADVISORY GUIDELINE · CORRECT: B

The statutory maintenance guideline is best described as:

✗ A. Mandatory and binding

✓ **B. Advisory; the court must consider it but make findings and may deviate**

✗ C. A maximum cap only

✗ D. Applicable only to short marriages

Why: Unlike the child support guideline (which is presumptively correct), the maintenance guideline is advisory. The court calculates the guideline amount and term, considers the statutory factors, and makes findings supporting the award it enters, which may differ from the guideline.

Authority: C.R.S. 14-10-114(3) [verify]

QUESTION 132 OF 405 · FL-128 · MAINTENANCE — AMOUNT FORMULA · CORRECT: B

Under the advisory guideline, the monthly maintenance amount equals:

✗ A. 50% of the higher income

✓ **B. 40% of the higher earner's monthly adjusted gross income minus 50% of the lower earner's**

✗ C. 30% of combined income

✗ D. The difference in the parties' incomes

Why: The advisory amount is 40% of the higher earner's monthly adjusted gross income minus 50% of the lower earner's monthly adjusted gross income; if the result is negative, the guideline amount is zero. This applies when the parties' combined annual adjusted gross income does not exceed the statutory cap.

Authority: C.R.S. 14-10-114(3)(a)(I)(A) [verify]

QUESTION 133 OF 405 · FL-129 · MAINTENANCE — INCOME CAP · CORRECT: B

The advisory maintenance formula applies when the parties' combined annual adjusted gross income is:

✗ A. $120,000 or less

✓ **B. $240,000 or less**

✗ C. $250,000 or less

✗ D. $360,000 or less

Why: The guideline formula applies when combined annual adjusted gross income is $240,000 or less. Above that threshold, the formula does not control and the court determines maintenance based on the statutory factors and the recipient's reasonable need and the payor's ability to pay. [Confirm current cap.]

Authority: C.R.S. 14-10-114(3)(a) [verify]

QUESTION 134 OF 405 · FL-130 · MAINTENANCE — DURATION · CORRECT: B

The advisory guideline term of maintenance is determined by:

✗ A. A flat 5 years

✓ **B. A percentage of the length of the marriage on a statutory schedule**

✗ C. The recipient's age only

✗ D. The number of children

Why: The guideline term is a percentage of the number of months the parties were married, increasing with the length of the marriage on the statutory schedule. The schedule generally begins at marriages of at least 3 years (36 months). Longer marriages yield longer guideline terms.

Authority: C.R.S. 14-10-114(3)(b) [verify]

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QUESTION 135 OF 405 · FL-131 · MAINTENANCE — MINIMUM MARRIAGE LENGTH · CORRECT: B

The advisory maintenance term schedule generally begins to apply at marriages of at least:

✗ A. 2 years (24 months)

✓ **B. 3 years (36 months)**

✗ C. 7 years (84 months)

✗ D. 10 years (120 months)

Why: The guideline duration schedule generally starts at marriages of at least 36 months; below that, the court has discretion but the guideline term table does not assign a percentage. The percentage of marriage length awarded increases as the marriage lengthens.

Authority: C.R.S. 14-10-114(3)(b) [verify]

QUESTION 136 OF 405 · FL-132 · MAINTENANCE — FACTORS · CORRECT: B

In setting maintenance, the court must consider factors including:

✗ A. Only the recipient's income

✓ **B. The financial resources of each party, lifestyle during the marriage, distribution of marital property, income, employment, age, and health**

✗ C. Marital fault, weighed against the requesting spouse

✗ D. Which party filed first

Why: The statutory factors include each party's financial resources and ability to meet needs independently, the lifestyle during the marriage, the distribution of marital property (including any awarded to meet needs), the parties' incomes and employment/employability, and their age and health. Colorado is no-fault, so misconduct is not a factor.

Authority: C.R.S. 14-10-114(3)(c) [verify]

QUESTION 137 OF 405 · FL-133 · MAINTENANCE — TEMPORARY · CORRECT: B

Temporary maintenance during the pending case:

✗ A. Cannot be ordered

✓ **B. May be ordered to maintain the status quo and meet needs until final orders**

✗ C. Is always permanent

✗ D. Requires a 3-year marriage

Why: The court may order temporary maintenance during the proceeding to address interim needs and preserve the status quo. The same advisory guideline can inform temporary awards. Temporary maintenance ends at the decree and is replaced by any final maintenance order.

Authority: C.R.S. 14-10-114(2) [verify]; C.R.S. 14-10-108 [verify]

QUESTION 138 OF 405 · FL-134 · MAINTENANCE — MODIFIABILITY · CORRECT: B

Post-decree maintenance is generally:

✗ A. Modifiable only within 6 months of the decree

✓ **B. Modifiable on a substantial and continuing change, unless the parties agreed it is non-modifiable**

✗ C. Modifiable only upward

✗ D. Modifiable only by the payor

Why: Maintenance is modifiable upon a substantial and continuing change of circumstances that makes the terms unfair, unless the parties contractually agreed the amount or term is non-modifiable. Parties often negotiate non-modifiable, sometimes 'contractual,' maintenance to ensure certainty.

Authority: C.R.S. 14-10-122 [verify]; C.R.S. 14-10-114(6) [verify]

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QUESTION 139 OF 405 · FL-135 · MAINTENANCE — TERMINATION · CORRECT: B

Absent contrary agreement, maintenance ordinarily terminates upon:

✗ A. The payor's retirement automatically

✓ **B. The death of either party or the remarriage of the recipient**

✗ C. The recipient getting any job

✗ D. Five years regardless of the order

Why: Unless the parties agree otherwise, maintenance terminates on the death of either party or the remarriage of the recipient. Cohabitation may be a basis to seek modification depending on the agreement and circumstances but does not automatically terminate statutory maintenance.

Authority: C.R.S. 14-10-114(6) [verify]

QUESTION 140 OF 405 · FL-136 · MAINTENANCE — TAX TREATMENT · CORRECT: B

For maintenance orders entered after 2018, the federal tax treatment is:

✗ A. Deductible to payor, taxable to recipient

✓ **B. Not deductible to the payor and not taxable to the recipient**

✗ C. Taxable to both

✗ D. A credit to the payor

Why: Under the 2017 Tax Cuts and Jobs Act, for divorce or separation instruments executed after December 31, 2018, maintenance is neither deductible by the payor nor included in the recipient's income for federal tax purposes. This reversed the prior decades-long treatment and affects how parties value awards.

Authority: 26 U.S.C. 71/215 (repealed for post-2018) [verify]

QUESTION 141 OF 405 · FL-137 · MAINTENANCE — ADJUSTED GROSS INCOME · CORRECT: B

For the maintenance formula, 'adjusted gross income' generally means gross income less:

✗ A. All household expenses

✓ **B. Pre-existing child support and maintenance obligations actually paid for other relationships**

✗ C. Rent and utilities

✗ D. Discretionary spending

Why: For the guideline, each party's adjusted gross income is gross income reduced by amounts actually paid for pre-existing child support and maintenance obligations from other relationships. This prevents double-counting income already committed to prior support duties.

Authority: C.R.S. 14-10-114(8) [verify]

QUESTION 142 OF 405 · FL-138 · MAINTENANCE — ABOVE THE CAP · CORRECT: B

Where combined income exceeds the guideline cap, the court:

✗ A. Must award the formula amount anyway

✓ **B. Determines maintenance based on the statutory factors, reasonable need, and ability to pay**

✗ C. Cannot award maintenance

✗ D. Awards exactly 40% of the higher income

Why: When combined adjusted gross income exceeds the statutory cap, the formula does not apply and the court exercises discretion using the statutory factors, focusing on the recipient's reasonable needs and the payor's ability to pay. The guideline can still serve as a reference point but does not control.

Authority: C.R.S. 14-10-114(3)(a) [verify]

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QUESTION 143 OF 405 · FL-139 · MAINTENANCE — PROPERTY INTERPLAY · CORRECT: B

In deciding maintenance, the court considers the property division because:

✗ A. Property is irrelevant to maintenance

✓ **B. Income-producing or liquid property awarded to a spouse affects that spouse's ability to meet needs independently**

✗ C. Property always eliminates maintenance

✗ D. Maintenance must equal the property award

Why: The court considers the marital property apportioned to the party seeking maintenance, including any income it produces and whether it is sufficient to meet that party's reasonable needs. A larger property award may reduce or eliminate the need for maintenance. The two issues are interrelated.

Authority: C.R.S. 14-10-114(3)(c) [verify]

QUESTION 144 OF 405 · FL-140 · MAINTENANCE — FINDINGS REQUIREMENT · CORRECT: B

When the court awards maintenance, it must:

✗ A. Make a bare statement of the amount, without findings

✓ **B. Make findings concerning the amount and term, including the guideline calculation and the statutory factors**

✗ C. Make the award the parties agreed to, without independent findings

✗ D. Make the guideline award without explaining the statutory factors

Why: Because the guideline is advisory, the court must make specific findings about the parties' incomes, the guideline amount and term, the factors considered, and the reasons for the award (including any deviation). Adequate findings are essential for appellate review.

Authority: C.R.S. 14-10-114(3) [verify]

QUESTION 145 OF 405 · FL-141 · MAINTENANCE — VOCATIONAL CONSIDERATIONS · CORRECT: B

A recipient's earning capacity and need for education or training:

✗ A. Are irrelevant once the guideline figure is calculated

✓ **B. Are considered, and rehabilitative maintenance may support a transition to self-sufficiency**

✗ C. Bar any maintenance

✗ D. Require a vocational degree

Why: The court considers the recipient's employability and any need for education or training to become self-supporting. Maintenance can be structured to be rehabilitative—supporting a defined period of retraining or reentry into the workforce—consistent with the factors and guideline term.

Authority: C.R.S. 14-10-114(3)(c) [verify]

QUESTION 146 OF 405 · FL-142 · MAINTENANCE — LUMP SUM · CORRECT: B

Maintenance may sometimes be structured as:

✗ A. A monthly payment only, never in another form

✓ **B. A lump sum or property transfer in lieu of periodic maintenance, by agreement or order**

✗ C. A quarterly payment, but only if the payor is self-employed

✗ D. A payment made by the parties' adult children

Why: Parties may agree, or a court may order, maintenance paid as a lump sum or through a property transfer in lieu of periodic payments, which can provide finality and avoid ongoing entanglement. The structure affects modifiability and tax/financial planning.

Authority: C.R.S. 14-10-114 [verify]; C.R.S. 14-10-112 [verify]

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QUESTION 147 OF 405 · FL-143 · MAINTENANCE — COHABITATION · CORRECT: B

Absent a specific agreement, the recipient's cohabitation with a new partner:

✗ A. Automatically terminates maintenance

✓ **B. May support a modification motion based on changed circumstances but does not automatically terminate statutory maintenance**

✗ C. Increases maintenance

✗ D. Has no possible relevance

Why: Unlike remarriage, cohabitation does not automatically end statutory maintenance, but it may be evidence of a substantial and continuing change in the recipient's financial circumstances supporting a modification. Parties frequently address cohabitation expressly in their agreements.

Authority: C.R.S. 14-10-114(6) [verify]; C.R.S. 14-10-122 [verify]

QUESTION 148 OF 405 · FL-144 · MAINTENANCE — NON-MODIFIABLE AGREEMENTS · CORRECT: B

If the parties agree maintenance is contractual and non-modifiable:

✗ A. The court can still modify it freely

✓ **B. Neither party may later obtain a modification, providing certainty**

✗ C. Only the payor can modify

✗ D. It must be reviewed annually

Why: When parties agree to non-modifiable (contractual) maintenance and the court approves it, the amount and term generally cannot later be modified by either party, even on changed circumstances. This trades flexibility for certainty and should be entered knowingly.

Authority: C.R.S. 14-10-122(1) [verify]

QUESTION 149 OF 405 · FL-145 · MAINTENANCE — SCOPE FOR LLPS · CORRECT: B

Handling a maintenance claim within a dissolution is:

✗ A. Within an attorney's scope only, never an LLP's

✓ **B. Within an LLP's scope as part of dissolution/legal separation matters**

✗ C. Within an LLP's scope only with attorney co-counsel

✗ D. Within scope only below the advisory-formula income cap

Why: Maintenance is part of dissolution and legal separation matters within an LLP's authorized scope. The LLP may advise on, calculate, negotiate, and present maintenance claims, subject to competence and the general carve-outs (e.g., complex trust income issues affecting ability to pay).

Authority: C.R.C.P. 207.1 [verify]

QUESTION 150 OF 405 · FL-146 · MAINTENANCE — COMPUTATION EXAMPLE · CORRECT: A

Higher earner: $8,000/month AGI; lower earner: $3,000/month AGI; combined under cap. The advisory amount is:

✓ **A. $1,700/month**

✗ B. $3,200/month

✗ C. $2,800/month

✗ D. $0

Why: Applying the formula: (40% x $8,000) - (50% x $3,000) = $3,200 - $1,500 = $1,700 per month (advisory). The court would then consider the statutory factors and the guideline term before entering an award.

Authority: C.R.S. 14-10-114(3)(a)(I)(A) [verify]

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QUESTION 151 OF 405 · FL-147 · MAINTENANCE — ZERO RESULT · CORRECT: B

If both spouses earn $6,000/month AGI, the advisory maintenance amount is:

✗ A. $2,400/month

✓ **B. $0**

✗ C. $3,000/month

✗ D. $120/month

Why: (40% x $6,000) - (50% x $6,000) = $2,400 - $3,000 = -$600, which is floored at $0. Roughly equal incomes typically produce no guideline maintenance, reflecting comparable abilities to meet needs.

Authority: C.R.S. 14-10-114(3)(a) [verify]

QUESTION 152 OF 405 · FL-148 · MAINTENANCE — ORDER OF OPERATIONS · CORRECT: B

When both maintenance and child support are ordered, the court calculates:

✗ A. Child support first

✓ **B. Maintenance first, then adjusts incomes before calculating child support**

✗ C. Both simultaneously and independently

✗ D. Only one of the two

Why: Maintenance is determined first; the maintenance actually paid is then subtracted from the payor's income and added to the recipient's income for the child support worksheet. Doing it in this order produces the correct child support figure.

Authority: C.R.S. 14-10-115(5)(a)(I) [verify]; C.R.S. 14-10-114 [verify]

QUESTION 153 OF 405 · FL-149 · MAINTENANCE — SELF-SUFFICIENCY GOAL · CORRECT: B

A central policy underlying maintenance is to:

✗ A. Punish the higher earner

✓ **B. Address economic disparity and support the recipient's reasonable needs and transition toward self-sufficiency**

✗ C. Equalize the parties' incomes permanently

✗ D. Reward the longer-married spouse

Why: Maintenance is intended to address economic unfairness arising from the marriage and dissolution, supporting the recipient's reasonable needs and, where appropriate, a transition to self-support. It is needs- and ability-based, not punitive, consistent with no-fault principles.

Authority: C.R.S. 14-10-114(3) [verify]

QUESTION 154 OF 405 · FL-150 · MAINTENANCE — RESERVED JURISDICTION · CORRECT: B

A court may sometimes 'reserve' the issue of maintenance, meaning:

✗ A. Maintenance is denied forever

✓ **B. The court declines to award now but retains authority to consider maintenance later within the permissible period**

✗ C. Maintenance is automatically granted later

✗ D. The parties cannot raise it again

Why: Reserving maintenance allows the court to decline a present award while preserving jurisdiction to consider it later if circumstances warrant, within statutory limits. This can be appropriate where future need is uncertain. The reservation must be reflected in the decree.

Authority: C.R.S. 14-10-114 [verify]

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Property

QUESTION 155 OF 405 · FL-151 · PROPERTY — SYSTEM · CORRECT: B

Colorado divides marital property under which system?

✗ A. Community property (equal split)

✓ **B. Equitable distribution**

✗ C. Title-based ownership

✗ D. Forfeiture to the innocent spouse

Why: Colorado is an equitable distribution state: the court divides marital property in proportions it deems just after considering the relevant factors, not necessarily 50/50. Title alone does not control, and there is no community-property presumption of an equal split.

Authority: C.R.S. 14-10-113 [verify]

QUESTION 156 OF 405 · FL-152 · PROPERTY — MARITAL PROPERTY DEFINITION · CORRECT: B

Marital property generally includes:

✗ A. Only property titled in both names

✓ **B. All property acquired by either spouse during the marriage, with limited exceptions**

✗ C. Only the marital home

✗ D. Property acquired before the marriage

Why: Marital property is all property acquired by either spouse subsequent to the marriage, regardless of title, except property excluded by statute. The presumption is that property acquired during the marriage is marital, which the party claiming otherwise must rebut.

Authority: C.R.S. 14-10-113(2)-(3) [verify]

QUESTION 157 OF 405 · FL-153 · PROPERTY — SEPARATE PROPERTY · CORRECT: B

Which is generally separate (non-marital) property?

✗ A. A bonus earned during the marriage

✓ **B. Property acquired by gift, bequest, devise, or descent**

✗ C. Wages earned during the marriage

✗ D. A home purchased during the marriage with marital funds

Why: Property acquired by gift, bequest, devise, or descent is separate, as is property acquired in exchange for separate property, property acquired after a decree of legal separation, and property excluded by valid agreement. Earnings during the marriage are marital.

Authority: C.R.S. 14-10-113(2) [verify]

QUESTION 158 OF 405 · FL-154 · PROPERTY — APPRECIATION OF SEPARATE PROPERTY · CORRECT: B

The increase in value of one spouse's separate property during the marriage is:

✗ A. Always separate

✓ **B. Marital property subject to division**

✗ C. Ignored entirely

✗ D. Returned to the donor

Why: While the separate property itself remains separate, the increase in its value during the marriage is marital property subject to division. This appreciation rule is heavily tested: the corpus stays separate, but the growth during the marriage is shared.

Authority: C.R.S. 14-10-113(4) [verify]

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QUESTION 159 OF 405 · FL-155 · PROPERTY — COMMINGLING · CORRECT: B

When separate funds are commingled with marital funds so they cannot be traced:

✗ A. They remain separate automatically

✓ **B. They may lose their separate character and be treated as marital**

✗ C. They become the bank's property

✗ D. They are split with the donor

Why: Commingling separate property with marital property can transmute it into marital property if it can no longer be traced to its separate source. The spouse claiming a separate interest bears the burden of tracing. Careful records are needed to preserve a separate claim.

Authority: C.R.S. 14-10-113 [verify]

QUESTION 160 OF 405 · FL-156 · PROPERTY — VALUATION DATE · CORRECT: B

Marital property is generally valued as of:

✗ A. The date of marriage

✓ **B. The date of the decree or the hearing on property division**

✗ C. The date of separation

✗ D. The date of filing

Why: Colorado values marital assets as of the date of the decree or the date of the hearing on disposition of property, not the date of separation or filing. This means market changes between separation and trial are generally shared. Some assets require expert valuation.

Authority: C.R.S. 14-10-113(5) [verify]

QUESTION 161 OF 405 · FL-157 · PROPERTY — FACTORS · CORRECT: B

In dividing marital property, the court considers factors including:

✗ A. Marital fault in causing the breakdown of the marriage

✓ **B. Each spouse's contribution (including as homemaker), the value of separate property set apart, economic circumstances, and changes in separate property value**

✗ C. Which spouse filed first

✗ D. The length of the engagement

Why: The statutory factors include each spouse's contribution to acquisition of marital property (including a homemaker's contributions), the value of the property set apart to each, the economic circumstances at the time of division (e.g., desirability of awarding the home to the custodial parent), and any increase or decrease in separate property value. Fault is not a factor.

Authority: C.R.S. 14-10-113(1) [verify]

QUESTION 162 OF 405 · FL-158 · PROPERTY — MARITAL DEBT · CORRECT: B

Marital debts are:

✗ A. Always assigned to the higher earner

✓ **B. Allocated equitably along with marital assets**

✗ C. Ignored by the court

✗ D. Assigned to whoever incurred them in all cases

Why: The court allocates marital debts equitably as part of the overall property division, considering who benefited, ability to pay, and fairness. As with assets, equitable does not necessarily mean equal. Debts incurred for the family are typically marital regardless of whose name is on them.

Authority: C.R.S. 14-10-113 [verify]

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QUESTION 163 OF 405 · FL-159 · PROPERTY — RETIREMENT ACCOUNTS · CORRECT: B

The marital portion of a spouse's pension or 401(k) earned during the marriage is:

✗ A. Separate property

✓ **B. Marital property subject to division**

✗ C. Exempt from division

✗ D. The employer's property

Why: Retirement benefits accrued during the marriage are marital property subject to equitable division, even though they may be titled in one spouse's name. Dividing certain qualified plans requires a QDRO—preparation of which is a carve-out outside an LLP's scope.

Authority: C.R.S. 14-10-113 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 164 OF 405 · FL-160 · PROPERTY — QDRO CARVE-OUT · CORRECT: B

Preparing the qualified domestic relations order (QDRO) needed to divide a 401(k) is:

✗ A. Within an LLP's scope

✓ **B. Outside an LLP's scope (a collateral-issue carve-out)**

✗ C. Unnecessary for any plan

✗ D. The judge's personal task

Why: Preparing a QDRO or similar order implementing the division of retirement assets is expressly a collateral-issue carve-out outside an LLP's authorized scope. The LLP can address the underlying agreement to divide the asset but must refer the QDRO drafting to an attorney or specialist.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 165 OF 405 · FL-161 · PROPERTY — MARITAL HOME · CORRECT: B

Awarding the marital home to the parent with majority parenting time:

✗ A. Is prohibited unless a court approves it in advance

✓ **B. May be appropriate as an economic-circumstances factor, considering the children's stability**

✗ C. Is required by statute

✗ D. Eliminates child support

Why: The court may consider the desirability of awarding the family home, or the right to live there for a period, to the spouse with whom the children reside most of the time, as part of the economic circumstances factor. It is discretionary and weighed against the overall equitable division.

Authority: C.R.S. 14-10-113(1)(c) [verify]

QUESTION 166 OF 405 · FL-162 · PROPERTY — PRENUPTIAL AGREEMENT CARVE-OUT · CORRECT: B

If a valid premarital agreement governs property, an LLP:

✗ A. May litigate its enforceability

✓ **B. May not prepare or litigate pre- or post-nuptial agreements (a carve-out)**

✗ C. Must draft a new one

✗ D. May ignore it if the client instructs the LLP to do so

Why: Preparation of, or litigation regarding, pre- or post-nuptial (marital) agreements is outside an LLP's authorized scope. Where such an agreement is disputed or central, the LLP must refer that issue to an attorney, though it may continue on in-scope portions of the case.

Authority: C.R.C.P. 207.1 [verify]; C.R.S. 14-2-301 et seq. [verify]

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QUESTION 167 OF 405 · FL-163 · PROPERTY — MARITAL AGREEMENTS ACT · CORRECT: B

Colorado's enforceability standards for premarital and marital agreements are set by the:

✗ A. Uniform Commercial Code

✓ **B. Colorado Marital Agreement Act / Uniform Premarital and Marital Agreements Act**

✗ C. Restatement (Second) of Contracts

✗ D. Probate Code

Why: Colorado has adopted the Uniform Premarital and Marital Agreements Act, which governs the formation and enforceability of such agreements, including requirements of voluntariness and financial disclosure. Because these agreements are a scope carve-out, an LLP must involve an attorney when they are at issue.

Authority: C.R.S. 14-2-301 et seq. [verify]

QUESTION 168 OF 405 · FL-164 · PROPERTY — TRUST BENEFICIARY CARVE-OUT · CORRECT: B

If a spouse is a trust beneficiary and trust information is relevant to the division, an LLP:

✗ A. Should value the trust themselves

✓ **B. Must treat it as a carve-out outside scope and involve an attorney**

✗ C. May ignore the trust

✗ D. Can subpoena the trustee alone

Why: Matters in which a party is a beneficiary of a trust and information about the trust is relevant, or disputes about a trust's value or income, are outside an LLP's authorized scope. The complexity and the carve-out require attorney involvement for the trust issues.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 169 OF 405 · FL-165 · PROPERTY — BUSINESS VALUATION · CORRECT: B

Where a marital estate includes a closely held business, valuation:

✗ A. Is unnecessary

✓ **B. Often requires expert valuation, and preparing documents to sell/distribute a business entity is a carve-out**

✗ C. Is the judge's job alone

✗ D. Is prohibited

Why: Closely held businesses usually require expert valuation to determine the marital value. While an LLP may address an agreement on the underlying property division, preparing documents to effectuate the sale or distribution of a business entity or commercial property is outside scope.

Authority: C.R.C.P. 207.1 [verify]; C.R.S. 14-10-113 [verify]

QUESTION 170 OF 405 · FL-166 · PROPERTY — DISSIPATION · CORRECT: B

If a spouse wastes marital assets (e.g., on an affair or gambling) in contemplation of divorce, the court may:

✗ A. Sanction the spouse only through attorney-fee awards

✓ **B. Consider the dissipation/economic fault in making an equitable division**

✗ C. Award the wasting spouse more

✗ D. Order criminal charges

Why: Although Colorado is no-fault as to the decision to divorce, the court may consider economic misconduct or dissipation of marital assets when dividing property equitably, effectively charging the wasted amount against the dissipating spouse's share. This is economic, not moral, fault.

Authority: C.R.S. 14-10-113(1) [verify]

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QUESTION 171 OF 405 · FL-167 · PROPERTY — GIFTS BETWEEN SPOUSES · CORRECT: B

A gift from one spouse to the other during the marriage is generally:

✗ A. Separate property of the recipient

✓ **B. Marital property subject to division**

✗ C. Returned to the donor

✗ D. Voidable at the donor's election

Why: Interspousal gifts during the marriage are generally treated as marital property subject to equitable division, rather than the recipient's separate property. This differs from gifts received from third parties, which are separate.

Authority: C.R.S. 14-10-113(2) [verify]

QUESTION 172 OF 405 · FL-168 · PROPERTY — TRACING BURDEN · CORRECT: B

A spouse claiming an asset is separate bears the burden to:

✗ A. Show acquisition before the marriage by clear and convincing evidence

✓ **B. Trace and prove the separate source of the property by a preponderance**

✗ C. Prove it beyond a reasonable doubt

✗ D. Obtain the other spouse's consent

Why: Property acquired during the marriage is presumed marital; the spouse asserting a separate interest must rebut the presumption by tracing the property to a separate source (e.g., premarital funds, gift, or inheritance). Failure to trace results in marital treatment.

Authority: C.R.S. 14-10-113(3) [verify]

QUESTION 173 OF 405 · FL-169 · PROPERTY — POST-DECREE OMITTED ASSETS · CORRECT: B

If an asset was not divided and was not disclosed, the remedy may include:

✗ A. Quiet title in a separate civil action only

✓ **B. Reopening to divide the omitted asset, including under Rule 16.2(e) within 5 years for nondisclosure**

✗ C. Automatic 50/50 of all assets

✗ D. Criminal restitution only

Why: An omitted asset may be divided in a later proceeding; where the omission resulted from a party's failure to disclose, Rule 16.2(e) allows reallocation on a motion within 5 years of the decree. Honest mistakes may also be addressed under post-judgment relief rules.

Authority: C.R.C.P. 16.2(e)(10) [verify]

QUESTION 174 OF 405 · FL-170 · PROPERTY — SEPARATE PROPERTY INCOME · CORRECT: B

Income generated by separate property during the marriage (e.g., rent, interest) is:

✗ A. Always separate

✓ **B. Often treated as marital, like appreciation, depending on the circumstances**

✗ C. The donor's property

✗ D. Separate, unless deposited into a joint account

Why: Income produced by separate property during the marriage is generally treated as marital, similar to the appreciation rule, because it accrues during the marriage. The analysis can be fact-specific, but the default leans toward marital treatment of in-marriage income.

Authority: C.R.S. 14-10-113(4) [verify]

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QUESTION 175 OF 405 · FL-171 · PROPERTY — EQUITABLE NOT EQUAL · CORRECT: B

A 60/40 division of marital property in favor of one spouse is:

✗ A. Per se improper

✓ **B. Permissible if the court finds it equitable under the factors**

✗ C. Required in all cases

✗ D. Only allowed by agreement

Why: Because the standard is equitable distribution, an unequal division can be proper when supported by the statutory factors (e.g., disparate economic circumstances, contributions, or separate property set aside). The court need not divide assets equally so long as the division is just.

Authority: C.R.S. 14-10-113(1) [verify]

QUESTION 176 OF 405 · FL-172 · PROPERTY — DEBT INCURRED AFTER SEPARATION · CORRECT: B

Debt one spouse incurs after separation but before the decree is:

✗ A. Always marital

✓ **B. Analyzed for whether it benefited the marriage or is separate; not automatically marital**

✗ C. Always the other spouse's

✗ D. Presumed nonmarital by statute

Why: Post-separation debt is examined to determine whether it was incurred for marital purposes or is properly the incurring spouse's separate responsibility. The court allocates it equitably based on its purpose and the parties' circumstances rather than by a fixed rule.

Authority: C.R.S. 14-10-113 [verify]

QUESTION 177 OF 405 · FL-173 · PROPERTY — MARITAL PORTION OF SEPARATE ASSET · CORRECT: B

For a home one spouse owned before marriage but paid down with marital funds, the court may recognize:

✗ A. A separate-property interest only, with no marital component

✓ **B. A marital interest in the appreciation and in equity built with marital funds during the marriage**

✗ C. A full marital ownership interest in the entire home

✗ D. A marital interest limited to the original down payment

Why: The home's premarital equity remains separate, but the appreciation during the marriage and the equity built with marital funds create a marital interest subject to division. Tracing and valuation determine the separate versus marital shares.

Authority: C.R.S. 14-10-113(4) [verify]

QUESTION 178 OF 405 · FL-174 · PROPERTY — AGREEMENTS ON DIVISION · CORRECT: B

Parties may resolve property division by:

✗ A. Court order only

✓ **B. A separation agreement, which binds the court unless unconscionable**

✗ C. Oral handshake only

✗ D. The children's preference

Why: Spouses may divide property by separation agreement; the property and maintenance terms bind the court unless found unconscionable under Section 14-10-112. An LLP may prepare the agreement addressing the underlying property division within scope (excluding carve-outs like business-sale documents or QDROs).

Authority: C.R.S. 14-10-112 [verify]; C.R.C.P. 207.1 [verify]

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QUESTION 179 OF 405 · FL-175 · PROPERTY — SCOPE RECAP · CORRECT: B

Which property-related task is within an LLP's scope?

✗ A. Drafting a QDRO

✓ **B. Negotiating and drafting the agreement dividing the marital home and ordinary accounts**

✗ C. Litigating a prenuptial agreement

✗ D. Preparing business-sale documents

Why: An LLP may handle ordinary marital property division, including agreements dividing the home and standard accounts. QDROs, prenuptial/marital agreements, trust valuation disputes, and business-entity sale documents are carve-outs requiring an attorney. Recognizing the line is essential.

Authority: C.R.C.P. 207.1 [verify]

Protection Orders

QUESTION 180 OF 405 · FL-176 · PROTECTION ORDERS — AUTHORITY · CORRECT: B

Civil protection orders in Colorado are governed primarily by:

✗ A. Title 14, Article 10

✓ **B. Title 13, Article 14**

✗ C. Title 19, Article 4

✗ D. Title 15

Why: Civil protection orders are governed by Title 13, Article 14 (C.R.S. 13-14-101 et seq.). These orders protect against domestic abuse, stalking, sexual assault, and similar conduct. They are within an LLP's authorized scope.

Authority: C.R.S. 13-14-101 et seq. [verify]

QUESTION 181 OF 405 · FL-177 · PROTECTION ORDERS — TWO-STEP STRUCTURE · CORRECT: B

The typical structure of a civil protection order proceeding is:

✗ A. A single permanent order with no hearing

✓ **B. A temporary (ex parte) protection order followed by a hearing on a permanent order**

✗ C. Only a criminal charge

✗ D. An automatic lifetime ban

Why: A petitioner may obtain a temporary protection order (TPO) ex parte on a finding of a risk or threat of physical harm or a threat of psychological or emotional harm, after which the court sets a hearing—commonly within 14 days—to determine whether to enter a permanent protection order (PPO) after notice to the respondent.

Authority: C.R.S. 13-14-104.5(7)(a), as amended by HB24-1122; C.R.S. 13-14-106 [verify]

QUESTION 182 OF 405 · FL-178 · PROTECTION ORDERS — TPO STANDARD · CORRECT: B

A temporary protection order may issue when the petitioner shows:

✗ A. Mere dislike

✓ **B. A risk or threat of physical harm, or a threat of psychological or emotional harm**

✗ C. A prior breakup

✗ D. A property dispute

Why: HB24-1122 replaced the old imminent-danger standard, effective January 1, 2025. A TPO may issue when the court finds a risk or threat of physical harm or a threat of psychological or emotional harm to the person seeking protection.

Authority: C.R.S. 13-14-104.5(7)(a), as amended by HB24-1122 (eff. Jan. 1, 2025)

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QUESTION 183 OF 405 · FL-179 · PROTECTION ORDERS — PPO BURDEN · CORRECT: B

At the hearing to make a protection order permanent, the petitioner must generally prove the grounds by:

✗ A. Beyond a reasonable doubt

✓ **B. A preponderance of the evidence**

✗ C. Clear and convincing evidence

✗ D. No proof is needed

Why: To make a protection order permanent, the petitioner must establish by a preponderance of the evidence that the respondent committed the acts and that unless restrained will continue or resume the conduct. The civil standard applies, unlike criminal proceedings.

Authority: C.R.S. 13-14-106 [verify]

QUESTION 184 OF 405 · FL-180 · PROTECTION ORDERS — TIMING OF HEARING · CORRECT: B

After a TPO issues, the return hearing on a permanent order is typically set within:

✗ A. 24 hours

✓ **B. 14 days**

✗ C. 15 days

✗ D. 35 days

Why: The court generally sets the hearing on whether to make the order permanent within 14 days of issuing the TPO, providing the respondent notice and an opportunity to be heard. The TPO remains in effect until the hearing.

Authority: C.R.S. 13-14-104.5 [verify]

QUESTION 185 OF 405 · FL-181 · PROTECTION ORDERS — SCOPE OF RELIEF · CORRECT: B

A protection order may include provisions such as:

✗ A. Only a no-contact term

✓ **B. No-contact, stay-away, exclusion from a shared residence, and temporary care/parenting provisions**

✗ C. A property sale order

✗ D. A criminal sentence

Why: Protection orders can restrain contact, order the respondent to stay away from the petitioner's home, work, or school, exclude the respondent from a shared residence, and address temporary care and protection of children and pets. The relief is tailored to safety.

Authority: C.R.S. 13-14-105 [verify]

QUESTION 186 OF 405 · FL-182 · PROTECTION ORDERS — MUTUAL ORDERS · CORRECT: B

Mutual protection orders (against both parties):

✗ A. Are favored

✓ **B. Are disfavored absent separate petitions and independent findings against each party**

✗ C. Are automatic

✗ D. Are required in every case

Why: Courts disfavor mutual protection orders unless each party has filed a separate petition and the court makes independent findings that each committed the requisite acts. This prevents reflexive cross-orders that obscure who is the predominant aggressor.

Authority: C.R.S. 13-14-104.5 [verify]

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QUESTION 187 OF 405 · FL-183 · PROTECTION ORDERS — RELATIONSHIP TO CRIMINAL · CORRECT: B

A civil protection order is:

✗ A. The same as a criminal case

✓ **B. Separate from any criminal case arising out of the same conduct**

✗ C. A substitute for prosecution

✗ D. Only available after a conviction

Why: A civil protection order is independent of any criminal proceeding; a petitioner may obtain civil protection regardless of whether criminal charges are filed, and the standards and forums differ. A mandatory criminal protection order may also exist in a related criminal case.

Authority: C.R.S. 13-14-101 [verify]

QUESTION 188 OF 405 · FL-184 · PROTECTION ORDERS — FIREARMS · CORRECT: B

A permanent protection order for domestic abuse commonly triggers:

✗ A. No firearm consequences

✓ **B. Federal and state restrictions on the respondent's possession of firearms**

✗ C. An automatic firearm permit

✗ D. Increased gun rights

Why: A qualifying domestic-violence protection order can trigger federal and state prohibitions on the respondent's possession of firearms, and the court may order relinquishment. These collateral consequences are significant and should be explained to the parties.

Authority: 18 U.S.C. 922(g)(8) [verify]; C.R.S. 13-14-105.5 [verify]

QUESTION 189 OF 405 · FL-185 · PROTECTION ORDERS — DURATION/MODIFICATION · CORRECT: B

A permanent protection order:

✗ A. Expires in one year automatically

✓ **B. Remains in effect until modified or dismissed, and the restrained party may later seek modification**

✗ C. Cannot ever be changed

✗ D. Must be renewed monthly

Why: A permanent protection order generally continues indefinitely until modified or dismissed by the court. The protected party may seek to modify or dismiss, and the restrained party may move to modify after the statutory waiting period, with the court considering safety.

Authority: C.R.S. 13-14-108 [verify]; C.R.S. 13-14-107 [verify]

QUESTION 190 OF 405 · FL-186 · PROTECTION ORDERS — STANDING · CORRECT: B

A protection order may be sought by:

✗ A. Only married petitioners

✓ **B. A person who alleges abuse, stalking, or threats, including in non-marital relationships**

✗ C. Only parents

✗ D. Only employers

Why: Civil protection orders are available to persons subjected to domestic abuse, stalking, sexual assault, or unlawful threats, regardless of marital status; they cover dating and household relationships. Standing is based on the conduct and relationship, not marriage.

Authority: C.R.S. 13-14-101 [verify]

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QUESTION 191 OF 405 · FL-187 · PROTECTION ORDERS — CHILDREN · CORRECT: B

A protection order proceeding may include temporary provisions for children when:

✗ A. Only if a dissolution is already pending

✓ **B. Necessary for the children's safety, subject to the domestic relations court's authority over APR**

✗ C. Always, permanently

✗ D. Only if the children testify

Why: A protection order may include temporary provisions allocating care of children for their safety, but lasting parenting determinations are made under the domestic relations APR statutes. Coordination between the protection order and any APR case is important.

Authority: C.R.S. 13-14-105 [verify]; C.R.S. 14-10-124 [verify]

QUESTION 192 OF 405 · FL-188 · PROTECTION ORDERS — VIOLATION · CORRECT: B

Violating a protection order can result in:

✗ A. No consequence

✓ **B. Criminal charges and/or contempt**

✗ C. Only a fine paid to the respondent

✗ D. Automatic dismissal of the order

Why: Knowing violation of a protection order is a crime and may also be enforced through contempt. The enforceability of the order is what gives it protective force; violations are taken seriously by law enforcement and courts.

Authority: C.R.S. 18-6-803.5 [verify]

QUESTION 193 OF 405 · FL-189 · PROTECTION ORDERS — SCOPE FOR LLPS · CORRECT: B

Representing a client in a civil protection order matter is:

✗ A. Outside an LLP's scope

✓ **B. Within an LLP's authorized scope**

✗ C. Allowed only for the respondent

✗ D. Within scope for temporary orders but not permanent orders

Why: Protective orders are expressly within an LLP's authorized scope of practice. An LLP may advise the client, prepare and file the petition, and represent the client at the hearing, subject to competence and the general carve-outs.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 194 OF 405 · FL-190 · PROTECTION ORDERS — EMERGENCY PROTECTION ORDER · CORRECT: B

When courts are closed, law enforcement may obtain from an on-call judge an:

✗ A. Permanent protection order

✓ **B. Emergency protection order (EPO) of short duration**

✗ C. Automatic divorce

✗ D. Arrest warrant only

Why: An emergency protection order (EPO) is a very short-term order available outside normal court hours, typically obtained by law enforcement, to provide immediate protection until the petitioner can seek a TPO during regular hours. It bridges the gap in emergencies.

Authority: C.R.S. 13-14-103 [verify]

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Name Change

QUESTION 195 OF 405 · FL-191 · NAME CHANGE — ADULT AUTHORITY · CORRECT: B

An adult legal name change in Colorado is governed by:

✗ A. C.R.S. 14-10-101, the dissolution article

✓ **B. C.R.S. 13-15-101**

✗ C. C.R.S. 19-1-101, the Children's Code

✗ D. C.R.S. 15-10-101, the Colorado Probate Code

Why: An adult name change is governed by C.R.S. 13-15-101, which sets out the petition process. Name changes are within an LLP's authorized scope. The court may grant a change absent fraudulent or unlawful purpose.

Authority: C.R.S. 13-15-101 [verify]

QUESTION 196 OF 405 · FL-192 · NAME CHANGE — REQUIREMENTS · CORRECT: B

An adult petitioner for a name change typically must provide:

✗ A. Only a driver's license and a filing fee

✓ **B. A petition, and (depending on circumstances) a fingerprint-based criminal history check and publication, unless waived for safety**

✗ C. A jury trial

✗ D. A doctor's note

Why: Adult name-change petitions generally require the petition and, in many cases, a fingerprint-based background check and publication of notice. Courts may waive publication where publication would endanger the petitioner (e.g., domestic violence survivors). Requirements have evolved—confirm current law.

Authority: C.R.S. 13-15-101 [verify]

QUESTION 197 OF 405 · FL-193 · NAME CHANGE — MINOR · CORRECT: B

A name change for a minor generally requires:

✗ A. Only the petitioning parent's consent

✓ **B. Notice to and often consent of both parents (or good cause), with the child's best interests considered**

✗ C. No notice to the other parent

✗ D. The minor's sole decision

Why: Changing a minor's name typically requires notice to both parents and often their consent, or a showing of good cause, with the court considering the child's best interests. A non-consenting parent has a right to object and be heard.

Authority: C.R.S. 13-15-101 [verify]

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QUESTION 198 OF 405 · FL-194 · NAME CHANGE — PURPOSE LIMITS · CORRECT: B

A court may deny a name change if it is sought:

✗ A. To take a spouse's surname

✓ **B. For a fraudulent or unlawful purpose, such as evading creditors or law enforcement**

✗ C. After divorce

✗ D. For religious reasons

Why: Name changes are generally granted unless sought for a fraudulent, unlawful, or improper purpose (e.g., to evade debts, criminal liability, or sex-offender registration). Restoring a former name after divorce or adopting a spouse's surname are routine, proper purposes.

Authority: C.R.S. 13-15-101 [verify]

QUESTION 199 OF 405 · FL-195 · NAME CHANGE — RESTORATION IN DISSOLUTION · CORRECT: B

A party may have a former name restored:

✗ A. Only in a separate action

✓ **B. As part of the dissolution decree on request**

✗ C. Only by separate petition under Title 13

✗ D. Only with the other spouse's consent

Why: The dissolution court may, on request, restore a party's prior or maiden name as part of the decree, providing a simple route without a separate name-change action. This is commonly handled within the dissolution itself.

Authority: C.R.S. 14-10-120.3 [verify]

QUESTION 200 OF 405 · FL-196 · NAME CHANGE — SAFETY WAIVERS · CORRECT: B

For a survivor of domestic violence, the court may:

✗ A. Require publication always

✓ **B. Waive publication and seal records to protect the petitioner's safety**

✗ C. Deny the change

✗ D. Notify the abuser

Why: To protect petitioners whose safety could be jeopardized by publicizing a name change (e.g., domestic violence or stalking survivors), courts may waive publication requirements and seal the file. This balances the public-notice purpose against safety.

Authority: C.R.S. 13-15-101 [verify]

QUESTION 201 OF 405 · FL-197 · NAME CHANGE — EFFECT · CORRECT: B

A granted legal name change:

✗ A. Erases the person's history

✓ **B. Changes the person's legal name going forward; the person should update records and IDs**

✗ C. Requires re-doing for each agency by court

✗ D. Is temporary

Why: A court order changing a name establishes the new legal name; the person then updates identification and records (Social Security, DMV, etc.) using the certified order. It does not erase the person's legal history or obligations.

Authority: C.R.S. 13-15-101 [verify]

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QUESTION 202 OF 405 · FL-198 · NAME CHANGE — SCOPE FOR LLPS · CORRECT: B

Handling an adult or minor name change is:

✗ A. Outside an LLP's scope

✓ **B. Within an LLP's authorized scope**

✗ C. Allowed only with attorney supervision

✗ D. Prohibited for minors

Why: Name changes (including for minors within family matters) are within an LLP's authorized scope. The LLP may prepare the petition, address publication/waiver issues, and appear at any hearing, subject to competence.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 203 OF 405 · FL-199 · NAME CHANGE — CRIMINAL HISTORY · CORRECT: B

A required fingerprint-based criminal history check for an adult name change is intended to:

✗ A. Punish the petitioner

✓ **B. Ensure the change is not sought to evade law enforcement or registration obligations**

✗ C. Generate revenue

✗ D. Delay the case

Why: The background check screens for improper purposes, such as evading outstanding warrants or sex-offender registration. It supports the court's gatekeeping role while still allowing legitimate changes to proceed. Confirm current requirements, which have been amended over time.

Authority: C.R.S. 13-15-101 [verify]

QUESTION 204 OF 405 · FL-200 · NAME CHANGE — BOTH PARENTS DISAGREE (MINOR) · CORRECT: B

If one parent objects to a minor's name change, the court:

✗ A. Must deny it

✓ **B. Decides based on the child's best interests after a hearing**

✗ C. Must grant it

✗ D. Defers to the child only

Why: When parents disagree about a minor's name change, the court holds a hearing and decides according to the child's best interests, weighing factors such as the child's identity, relationships, and any potential harm. Parental objection does not automatically defeat the petition.

Authority: C.R.S. 13-15-101 [verify]

Gender Designation

QUESTION 205 OF 405 · FL-201 · GENDER DESIGNATION — SCOPE · CORRECT: B

Assisting an adult with a legal gender-designation change is:

✗ A. Outside an LLP's scope

✓ **B. Within an LLP's authorized scope**

✗ C. Allowed only in juvenile court

✗ D. Within scope only with a supervising attorney's signature

Why: Adult gender-designation changes are expressly within an LLP's authorized scope of practice. The LLP may prepare and file the petition or application and assist with the supporting documentation, subject to competence.

Authority: C.R.C.P. 207.1 [verify]

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QUESTION 206 OF 405 · FL-202 · GENDER DESIGNATION — BIRTH CERTIFICATE · CORRECT: B

Colorado permits a change of the sex designation on a birth certificate:

✗ A. Through a probate court petition, as with a change of name

✓ **B. Through a statutory process, generally without requiring surgery**

✗ C. Through a court order, but only after gender-confirming surgery

✗ D. Through a process available only to minors

Why: Colorado law allows a person to change the sex designation on a Colorado birth certificate through a statutory administrative process and, depending on circumstances, without proof of surgery. Requirements differ for adults and minors—confirm current statute and rules.

Authority: C.R.S. 25-2-115 [verify]

QUESTION 207 OF 405 · FL-203 · GENDER DESIGNATION — NAME TOGETHER · CORRECT: B

A person changing gender designation often simultaneously seeks:

✗ A. An amended Colorado birth certificate only, with no name change

✓ **B. A legal name change, which an LLP may also handle**

✗ C. A criminal record change

✗ D. A new birthdate

Why: Gender-designation changes frequently accompany a legal name change; both are within an LLP's scope. Coordinating the two streamlines updating identity documents. The LLP should address publication waivers where safety is a concern.

Authority: C.R.C.P. 207.1 [verify]; C.R.S. 13-15-101 [verify]

QUESTION 208 OF 405 · FL-204 · GENDER DESIGNATION — MINORS · CORRECT: B

For a minor's gender-designation change, the process:

✗ A. Is identical to an adult's

✓ **B. May require parental consent or court involvement and additional documentation**

✗ C. Is prohibited

✗ D. Requires a jury

Why: A minor's gender-designation change typically involves parental consent and/or court involvement and additional documentation compared to an adult's. The specifics are statutory and have evolved; confirm the current requirements before advising.

Authority: C.R.S. 25-2-115 [verify]

QUESTION 209 OF 405 · FL-205 · GENDER DESIGNATION — CONFIDENTIALITY · CORRECT: B

In handling identity-change matters, an LLP should be attentive to:

✗ A. Publicizing the change widely

✓ **B. Protecting the client's privacy and safety, including seeking record sealing or publication waivers where appropriate**

✗ C. Ignoring confidentiality

✗ D. Notifying the public

Why: Identity-change matters implicate privacy and safety; the LLP should consider record sealing and publication waivers and handle the client's information with care under the confidentiality rules. Sensitivity to the client's circumstances is part of competent representation.

Authority: C.R.S. 13-15-101 [verify]; Colo. LLP RPC 1.6 [verify]

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Parentage

QUESTION 210 OF 405 · FL-206 · PARENTAGE — GOVERNING ACT · CORRECT: B

Parentage in Colorado is determined under the:

✗ A. Uniform Commercial Code

✓ **B. Uniform Parentage Act (Title 19, Article 4)**

✗ C. UCCJEA

✗ D. Probate Code

Why: Parentage is governed by the Colorado Uniform Parentage Act, C.R.S. Title 19, Article 4. It addresses presumptions of parentage, acknowledgments, genetic testing, and establishment of the parent-child relationship. Two-party parentage cases are within an LLP's scope.

Authority: C.R.S. 19-4-101 et seq. [verify]

QUESTION 211 OF 405 · FL-207 · PARENTAGE — PRESUMPTION (MARRIAGE) · CORRECT: B

A man is presumed to be the father if:

✗ A. He pays support

✓ **B. He and the child's mother are married (or were within 300 days before birth) or he holds the child out as his own**

✗ C. He requests it

✗ D. He is older than the mother

Why: Presumptions of parentage arise when the person and the mother are married (or the marriage ended within 300 days before birth), or when the person receives the child into their home and openly holds the child out as their own, among other bases. Presumptions may be rebutted in appropriate cases.

Authority: C.R.S. 19-4-105 [verify]

QUESTION 212 OF 405 · FL-208 · PARENTAGE — ACKNOWLEDGMENT · CORRECT: B

Parentage may be established without court action by:

✗ A. A verbal statement

✓ **B. A voluntary acknowledgment of parentage signed by both parents**

✗ C. A birth announcement

✗ D. Naming the child

Why: Unmarried parents may establish legal parentage by signing a voluntary acknowledgment of parentage, which has the effect of a judgment if not timely rescinded or challenged. This avoids the need for a contested action where parentage is not disputed.

Authority: C.R.S. 19-4-105 [verify]; C.R.S. 19-4-105.5 [verify]

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QUESTION 213 OF 405 · FL-209 · PARENTAGE — RESCINDING ACKNOWLEDGMENT · CORRECT: B

A signed acknowledgment of parentage may generally be rescinded:

✗ A. Within 2 years of the child's birth

✓ **B. Within a limited statutory period (e.g., 60 days) or before a related proceeding, whichever is earlier**

✗ C. Within 90 days after signing, regardless of any related proceeding

✗ D. Only through a full parentage adjudication

Why: An acknowledgment may be rescinded within the earlier of a short statutory window (commonly 60 days) or the date of a proceeding relating to the child in which the signatory is a party. After that, it may be challenged only on limited grounds like fraud or duress. Confirm current time limits.

Authority: C.R.S. 19-4-105.5 [verify]

QUESTION 214 OF 405 · FL-210 · PARENTAGE — GENETIC TESTING · CORRECT: B

In a contested parentage case, the court may order:

✗ A. A psychological evaluation of both parents

✓ **B. Genetic (DNA) testing to determine biological parentage**

✗ C. A lie-detector test

✗ D. A jury verdict only

Why: Where parentage is disputed, the court may order genetic testing of the child and alleged parent(s). Results create or rebut a presumption depending on the probability of parentage. Testing is a central tool in contested parentage actions.

Authority: C.R.S. 19-4-105 [verify]; C.R.S. 19-4-111 [verify]

QUESTION 215 OF 405 · FL-211 · PARENTAGE — TWO-PARTY SCOPE · CORRECT: B

An LLP may handle a parentage case when it involves:

✗ A. Three or more alleged parents disputing parentage

✓ **B. Two parties (a two-party parentage determination)**

✗ C. A contested ICWA matter

✗ D. A trust dispute

Why: An LLP's authorized scope includes two-party parentage cases. Disputed parentage involving more than two parents or alleged parents asserting or denying legal parentage is a carve-out outside scope, as are certain ICWA matters.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 216 OF 405 · FL-212 · PARENTAGE — MULTI-PARTY CARVE-OUT · CORRECT: B

Which parentage scenario is OUTSIDE an LLP's scope?

✗ A. A mother and one alleged father with DNA testing

✓ **B. A dispute where more than two people assert or deny legal parentage**

✗ C. An uncontested acknowledgment

✗ D. Establishing support after parentage

Why: Disputed parentage where more than two parents or alleged parents are asserting or denying legal parentage is expressly excluded from an LLP's scope. Such multi-party disputes are legally complex and require an attorney.

Authority: C.R.C.P. 207.1 [verify]

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QUESTION 217 OF 405 · FL-213 · PARENTAGE — STANDING/TIME LIMITS · CORRECT: B

An action to establish parentage:

✗ A. Must be filed before the child turns 5 in all cases

✓ **B. May be subject to statutory standing and limitation provisions, varying by presumption**

✗ C. Has no procedural rules

✗ D. Is criminal

Why: The Uniform Parentage Act sets out who may bring an action and applicable time limits, which can vary depending on whether a presumption exists and the type of claim. Counsel must check standing and limitations before filing.

Authority: C.R.S. 19-4-107 [verify]

QUESTION 218 OF 405 · FL-214 · PARENTAGE — SUPPORT AFTER ESTABLISHMENT · CORRECT: B

After parentage is established, the court may order:

✗ A. Support running only from the judgment date forward

✓ **B. Child support, including potentially retroactive support to birth within limits**

✗ C. Only future support starting at age 5

✗ D. Support paid to the state only

Why: Once parentage is established, the court may enter child support orders and may order retroactive support to the child's birth, subject to statutory limits. Establishing both parentage and support is within an LLP's two-party scope.

Authority: C.R.S. 19-4-116 [verify]

QUESTION 219 OF 405 · FL-215 · PARENTAGE — ASSISTED REPRODUCTION · CORRECT: B

Parentage involving assisted reproduction or surrogacy:

✗ A. Is always simple

✓ **B. Can raise complex legal issues that may exceed an LLP's competence/scope**

✗ C. Is criminal

✗ D. Is identical to ordinary parentage

Why: Assisted reproduction and surrogacy parentage can present complex legal questions (e.g., gestational agreements, intended-parent determinations). Where the matter exceeds the LLP's competence or moves beyond a straightforward two-party determination, the LLP should advise the client to consult an attorney.

Authority: C.R.S. 19-4-106 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 220 OF 405 · FL-216 · PARENTAGE — PRESUMPTION REBUTTAL · CORRECT: B

A presumption of parentage may be rebutted:

✗ A. Only within 63 days of the child's birth

✓ **B. By clear and convincing evidence, including genetic test results, in an appropriate proceeding**

✗ C. By a simple denial

✗ D. Only after the child turns 18

Why: A presumption of parentage may be rebutted in an appropriate action, typically by clear and convincing evidence such as genetic testing excluding the presumed parent, subject to standing and timing rules and the child's best interests in some contexts.

Authority: C.R.S. 19-4-105 [verify]

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QUESTION 221 OF 405 · FL-217 · PARENTAGE — BEST INTERESTS OVERLAY · CORRECT: B

In some parentage disputes, the court may consider:

✗ A. The genetic evidence alone, to the exclusion of other factors

✓ **B. The child's best interests and the policy of protecting established parent-child relationships, not biology alone**

✗ C. The mother's wishes alone, as the presumptive parent

✗ D. The alleged father's income only

Why: Colorado law recognizes that biology is not always dispositive; courts may weigh the child's best interests and the importance of established parent-child relationships, particularly where a presumed parent has a bonded relationship with the child. This can affect whether a presumption is rebutted.

Authority: C.R.S. 19-4-105 [verify]

QUESTION 222 OF 405 · FL-218 · PARENTAGE — ACKNOWLEDGMENT EFFECT · CORRECT: B

A valid, unrescinded acknowledgment of parentage:

✗ A. Is merely advisory

✓ **B. Has the legal effect of a determination of parentage (like a judgment)**

✗ C. Must be re-signed yearly

✗ D. Requires court approval to take effect

Why: Once the rescission period passes, a properly executed acknowledgment has the force of a legal determination of parentage and may be the basis for support and APR orders. It can be challenged afterward only on narrow grounds such as fraud, duress, or material mistake.

Authority: C.R.S. 19-4-105.5 [verify]

QUESTION 223 OF 405 · FL-219 · PARENTAGE — JURISDICTION FOR SUPPORT · CORRECT: B

To order support against an out-of-state alleged parent, the court needs:

✗ A. Only subject-matter jurisdiction over the child's home state

✓ **B. Personal jurisdiction (e.g., under UIFSA's long-arm provisions)**

✗ C. Only the child's presence

✗ D. The other parent's consent

Why: Establishing a support obligation against a nonresident requires personal jurisdiction, which UIFSA's long-arm provisions may supply (e.g., where conception occurred in the state). Parentage status may be determinable on different bases, but in personam support requires jurisdiction over the obligor.

Authority: C.R.S. 14-5-201 [verify]

QUESTION 224 OF 405 · FL-220 · PARENTAGE — SCOPE SUMMARY · CORRECT: B

Which parentage task is within an LLP's scope?

✗ A. A four-party parentage dispute

✓ **B. A two-party action to establish parentage and resulting support and APR**

✗ C. A contested ICWA placement

✗ D. Drafting a surrogacy contract

Why: A two-party parentage action—establishing the parent-child relationship and the resulting support and parental responsibilities—is within an LLP's scope. Multi-party disputes, contested ICWA matters, and complex assisted-reproduction contracting fall outside it.

Authority: C.R.C.P. 207.1 [verify]

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Scope

QUESTION 225 OF 405 · FL-221 · SCOPE — AUTHORIZED MATTERS · CORRECT: B

Which of the following is within an LLP's authorized family law scope?

✗ A. Registering a foreign order

✓ **B. Dissolution, legal separation, and declaration of invalidity**

✗ C. Punitive contempt

✗ D. A prenuptial agreement dispute

Why: An LLP may handle dissolution, legal separation, and declaration of invalidity (annulment), among other enumerated matters. Foreign-order registration, punitive contempt, and prenuptial agreement disputes are carve-outs requiring an attorney.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 226 OF 405 · FL-222 · SCOPE — CONTINUING ON IN-SCOPE ISSUES · CORRECT: B

If a complex out-of-scope issue arises mid-case, C.R.C.P. 207.1(i) allows an LLP to:

✗ A. Continue only after the client retains an attorney for the whole case

✓ **B. Continue representing the client on the in-scope matters while the client obtains an attorney for the out-of-scope issue**

✗ C. Continue and take on the out-of-scope issue as well

✗ D. Continue only through withdrawal, retaining the fee already earned

Why: Even when a discrete out-of-scope issue arises, the LLP may continue to represent the client on the services the LLP is authorized to provide, while the client addresses the out-of-scope issue through an attorney or pro se. The LLP and attorney may work in tandem.

Authority: C.R.C.P. 207.1(i) [verify]

QUESTION 227 OF 405 · FL-223 · SCOPE — FOREIGN ORDER REGISTRATION · CORRECT: B

Registration of an out-of-state custody or support order is:

✗ A. Within an LLP's scope

✓ **B. A carve-out outside an LLP's scope**

✗ C. Always unnecessary

✗ D. Handled by the clerk for the LLP

Why: Registration of foreign orders is one of the discrete matters excluded from an LLP's scope. An LLP encountering the need to register an out-of-state order must refer that task to an attorney, even if the LLP can handle related in-state issues.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 228 OF 405 · FL-224 · SCOPE — COMMON-LAW MARRIAGE DISPUTE · CORRECT: B

A contested common-law marriage (existence or formation date disputed) is:

✗ A. Within an LLP's scope

✓ **B. Outside an LLP's scope (a carve-out)**

✗ C. Not recognized in Colorado

✗ D. Decided by the parties

Why: Colorado recognizes common-law marriage, but a dispute over whether a common-law marriage exists or when it formed is a carve-out outside an LLP's scope. The legal complexity (post-Hogsett analysis) warrants attorney involvement.

Authority: C.R.C.P. 207.1 [verify]; Hogsett v. Neale [verify]

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QUESTION 229 OF 405 · FL-225 · SCOPE — ICWA MATTERS · CORRECT: B

Certain non-parent decision-making or parenting-time disputes are outside an LLP's scope when:

✗ A. The child is over 12

✓ B. The court has determined the Indian Child Welfare Act (ICWA) applies and a non-parent's contested request is involved

✗ C. The parents agree

✗ D. No tribe is involved

Why: Where a non-parent's request for decision-making or parenting time is contested by a parent and the court has determined ICWA applies, the matter is outside an LLP's scope (except as otherwise provided by law). ICWA's special requirements demand attorney handling.

Authority: C.R.C.P. 207.1 [verify]; 25 U.S.C. 1901 et seq. [verify]

QUESTION 230 OF 405 · FL-248 · SCOPE — WORKING WITH AN ATTORNEY · CORRECT: B

When part of a matter is out of scope, an LLP and an attorney:

✗ A. Cannot both be involved

✓ B. May work in tandem, with the attorney handling the out-of-scope issue

✗ C. Must merge into one firm

✗ D. Are prohibited from communicating

Why: The rule contemplates LLPs and attorneys working in tandem: the client may retain an attorney for out-of-scope issues while the LLP continues on in-scope services. Clear allocation of responsibility helps avoid confusion and gaps.

Authority: C.R.C.P. 207.1(i) [verify]

QUESTION 231 OF 405 · FL-250 · SCOPE — IDENTIFYING OUT-OF-SCOPE ISSUES · CORRECT: B

A competent LLP's first task when a complex issue appears is to:

✗ A. Proceed regardless

✓ B. Recognize whether it falls within a carve-out or exceeds the LLP's competence and advise the client accordingly

✗ C. Ask the judge to decide scope

✗ D. Withdraw from everything

Why: Competent practice requires the LLP to spot carve-outs and competence limits early and advise the client to obtain an attorney for those issues, continuing on in-scope work as permitted. Issue-spotting scope limits is itself a core LLP skill and an ethics obligation.

Authority: C.R.C.P. 207.1 [verify]; Colo. LLP RPC 1.1 [verify]

LLP in Court

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QUESTION 232 OF 405 · FL-226 · LLP IN COURT — PERMITTED ACTIVITIES · CORRECT: B

In a hearing within their scope, an LLP may:

✗ A. Only sit silently

✓ **B. Examine witnesses, make objections and offers of proof, and argue to the court**

✗ C. Only file documents

✗ D. Only speak if the judge asks

Why: C.R.C.P. 207.1 authorizes an LLP to sit at counsel table, communicate with the client, make statements and offers of proof, examine any witness, make arguments and objections, answer the court's questions, and otherwise represent the client at the hearing—much like an attorney within scope.

Authority: C.R.C.P. 207.1(g)(xiii) [verify]

QUESTION 233 OF 405 · FL-227 · LLP IN COURT — WITNESS EXAMINATION · CORRECT: B

Regarding witness testimony, the current rule:

✗ A. Permits no questioning of witnesses by an LLP

✓ **B. Permits an LLP to elicit testimony and examine any witness**

✗ C. Permits cross-examination only, not direct

✗ D. Permits questioning of the LLP's own client only

Why: The rule no longer restricts an LLP's ability to elicit testimony; an LLP may examine any witness. The comment directs that the scope be liberally construed to include ordinary and reasonable actions consistent with the Rules of Civil Procedure and not expressly prohibited.

Authority: C.R.C.P. 207.1(g)(xiii) [verify]

QUESTION 234 OF 405 · FL-228 · LLP IN COURT — EXPERTS · CORRECT: B

Concerning expert witnesses, the current rule:

✗ A. Bars LLPs from any case with an expert

✓ **B. Contains no scope limitation specific to expert witnesses**

✗ C. Requires attorney co-counsel for experts

✗ D. Forbids cross-examining experts

Why: The current C.R.C.P. 207.1 contains no limitation specific to expert witnesses; an LLP may handle a matter involving an expert, subject to competence. Earlier drafts limited this, but the limitation was removed.

Authority: C.R.C.P. 207.1 [verify]

LLP

QUESTION 235 OF 405 · FL-229 · LLP — LIBERAL CONSTRUCTION · CORRECT: B

The comment to C.R.C.P. 207.1 directs that an LLP's authorized scope be:

✗ A. Narrowly construed

✓ **B. Liberally construed to include ordinary and reasonable actions within scope not expressly prohibited**

✗ C. Applied only to uncontested matters

✗ D. Limited to JDF forms

Why: The rule's comment states that descriptions of an LLP's authorized scope should be liberally construed to include all ordinary and reasonable actions within an authorized scope, including procedural steps permitted by the Rules of Civil Procedure and not expressly prohibited. This favors functional capability.

Authority: C.R.C.P. 207.1 cmt. [verify]

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Carve-Out

QUESTION 236 OF 405 · FL-230 · CARVE-OUT — QDRO/RETIREMENT · CORRECT: B

Preparing a QDRO to divide retirement assets is outside scope because it is:

✗ A. A simple form

✓ **B. A collateral issue requiring analysis outside the LLP's authorized practice**

✗ C. Always handled by the plan

✗ D. Within Title 19

Why: QDRO preparation is listed among collateral issues that directly affect a matter but require analysis outside the LLP's scope, alongside immigration, criminal, and bankruptcy issues. The LLP addresses the underlying division but refers the QDRO out.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 237 OF 405 · FL-231 · CARVE-OUT — COLLATERAL ISSUES · CORRECT: B

Which is a collateral-issue carve-out an LLP must refer out?

✗ A. Calculating child support

✓ **B. An immigration, criminal, or bankruptcy issue affecting the family matter**

✗ C. Drafting a parenting plan

✗ D. Filing a dissolution petition

Why: Issues collateral to but directly affecting the matter—such as immigration, criminal, and bankruptcy consequences or a QDRO—require analysis outside the LLP's scope and must be referred to appropriate counsel. The LLP may continue on the core in-scope work.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 238 OF 405 · FL-232 · CARVE-OUT — BUSINESS ENTITY DOCUMENTS · CORRECT: B

Preparing documents to effectuate the sale or distribution of a business entity is:

✗ A. Within scope

✓ **B. Outside scope, except an agreement addressing the underlying property division**

✗ C. Always required

✗ D. Handled by the court

Why: The LLP may address an agreement on the underlying property division but may not prepare the documents needed to effectuate the sale or distribution of a business entity or commercial property. That transactional work is a carve-out.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 239 OF 405 · FL-242 · CARVE-OUT — TRUST INCOME DISPUTE · CORRECT: B

A dispute about the value of or income from a trust in which a party is a beneficiary is:

✗ A. Within scope

✓ **B. A carve-out outside an LLP's scope**

✗ C. Irrelevant to family law

✗ D. Handled by the trustee in the divorce

Why: Disputes about a trust's value or the income associated with a trust in which a party is a beneficiary are outside an LLP's scope. The LLP must involve an attorney for those issues while potentially continuing on other in-scope matters.

Authority: C.R.C.P. 207.1 [verify]

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QUESTION 240 OF 405 · FL-245 · CARVE-OUT — PUNITIVE CONTEMPT REFERRAL · CORRECT: B

If a client wants to jail an ex-spouse purely to punish past nonpayment, the LLP should:

✗ A. File for punitive contempt

✓ **B. Explain that punitive contempt is outside scope and refer the client to an attorney, while offering remedial remedies within scope**

✗ C. File remedial contempt but style it as punitive

✗ D. Explain the difference and let the client file the punitive motion pro se

Why: Punitive contempt is outside the LLP's scope; the LLP should explain this, refer the punitive aspect to an attorney, and pursue available in-scope remedies such as remedial contempt and other enforcement tools. This both serves the client and respects scope limits.

Authority: C.R.C.P. 207.1 [verify]; C.R.C.P. 107 [verify]

Contempt

QUESTION 241 OF 405 · FL-233 · CONTEMPT — REMEDIAL VS. PUNITIVE · CORRECT: B

The key difference between remedial and punitive contempt is:

✗ A. The courtroom used

✓ **B. Remedial is coercive and purgeable; punitive imposes a fixed sanction to punish and is outside LLP scope**

✗ C. Remedial requires a jury

✗ D. There is no difference

Why: Remedial contempt coerces compliance and allows the contemnor to purge the sanction; punitive contempt imposes a fixed, non-purgeable penalty to punish past conduct and vindicate the court. LLPs may pursue remedial but not punitive contempt.

Authority: C.R.C.P. 107 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 242 OF 405 · FL-234 · CONTEMPT — ELEMENTS · CORRECT: B

To establish remedial contempt for violating a court order, the movant must show:

✗ A. Only that an order exists

✓ **B. A valid order, the respondent's knowledge of it, present ability to comply, and willful noncompliance**

✗ C. Criminal intent beyond a reasonable doubt

✗ D. That the respondent is wealthy

Why: Remedial contempt requires a lawful order, the contemnor's knowledge, the present ability to comply, and willful failure to comply. The 'present ability to comply' element is critical; genuine inability is a defense, though arrears still stand as a judgment.

Authority: C.R.C.P. 107 [verify]

Hearings

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QUESTION 243 OF 405 · FL-235 · HEARINGS — BURDEN OF PROOF · CORRECT: B

Most contested family law issues are decided by:

✗ A. Beyond a reasonable doubt

✓ **B. A preponderance of the evidence**

✗ C. Clear and convincing evidence in all cases

✗ D. No standard

Why: Civil family law matters generally apply the preponderance standard, except where a statute requires a higher standard (e.g., certain findings). Knowing the applicable burden for each issue (best interests, endangerment, etc.) is important for hearing preparation.

Authority: C.R.S. 14-10-101 et seq. [verify]

QUESTION 244 OF 405 · FL-240 · HEARINGS — OFFERS OF PROOF · CORRECT: B

An offer of proof is used to:

✗ A. Object to the judge

✓ **B. Preserve for the record what excluded evidence would have shown**

✗ C. Cross-examine the judge

✗ D. Pay the filing fee

Why: When evidence is excluded, an offer of proof states what the evidence would have shown, preserving the issue for appeal. LLPs are expressly permitted to make offers of proof in hearings within their scope.

Authority: C.R.C.P. 207.1(g)(xiii) [verify]; CRE 103 [verify]

UCCJEA

QUESTION 245 OF 405 · FL-236 · UCCJEA — PURPOSE · CORRECT: B

The UCCJEA primarily exists to:

✗ A. Set child support amounts

✓ **B. Allocate jurisdiction among states for custody/APR and prevent conflicting orders**

✗ C. Divide marital property

✗ D. Govern adoptions

Why: The UCCJEA coordinates which state has jurisdiction to make and modify child-custody (APR) determinations, preventing competing orders and forum shopping. It is distinct from UIFSA, which governs support jurisdiction.

Authority: C.R.S. 14-13-101 [verify]

QUESTION 246 OF 405 · FL-238 · UCCJEA — ONE HOME STATE · CORRECT: B

Under the UCCJEA, at any given time a child generally has:

✗ A. Multiple home states

✓ **B. At most one home state**

✗ C. No home state ever

✗ D. A home state chosen by the parents

Why: The UCCJEA's structure contemplates a single home state to anchor jurisdiction, avoiding conflicting custody orders. Where no state qualifies as the home state, significant-connection jurisdiction may apply.

Authority: C.R.S. 14-13-201 [verify]

UIFSA

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QUESTION 247 OF 405 · FL-237 · UIFSA — PURPOSE · CORRECT: B

UIFSA primarily governs:

✗ A. Custody jurisdiction

✓ **B. Establishment, enforcement, and modification of support orders across state lines**

✗ C. Property division

✗ D. Name changes

Why: UIFSA provides the framework for interstate support, including continuing exclusive jurisdiction over support orders, registration of out-of-state orders, and which state may modify. Registration of a foreign support order is itself outside an LLP's scope.

Authority: C.R.S. 14-5-101 [verify]

Disclosure

QUESTION 248 OF 405 · FL-239 · DISCLOSURE — CONTINUING DUTY · CORRECT: B

If a party's income changes significantly after initial disclosures but before the hearing, the party must:

✗ A. Wait to be asked

✓ **B. Supplement disclosures promptly under the continuing duty**

✗ C. Amend only if the change exceeds 20% of income

✗ D. Disclose only at the hearing

Why: Rule 16.2's duty is continuing; a party must supplement disclosures when material information changes, without awaiting a request. Failing to do so can trigger sanctions and the 5-year reallocation remedy for nondisclosure.

Authority: C.R.C.P. 16.2(e) [verify]

QUESTION 249 OF 405 · FL-246 · DISCLOSURE — SANCTIONS · CORRECT: B

A party who hides assets in violation of Rule 16.2 may face:

✗ A. No consequence

✓ **B. Sanctions, reallocation of the asset within 5 years, and adverse credibility findings**

✗ C. A presumption the hidden asset is separate property

✗ D. Dismissal of the other party's case

Why: Nondisclosure can lead to sanctions, the 5-year reallocation remedy under Rule 16.2(e)(10), fee awards, and adverse findings on credibility. The disclosure regime is enforced to ensure fair, informed resolution of financial issues.

Authority: C.R.C.P. 16.2(e)(10) [verify]

Evidence

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QUESTION 250 OF 405 · FL-241 · EVIDENCE — BEST INTERESTS TESTIMONY · CORRECT: B

In an APR hearing, a CFI's report:

✗ A. Binds the court

✓ **B. Is evidence the court considers but does not have to follow**

✗ C. Cannot be challenged

✗ D. Is admissible only if both parties stipulate

Why: A CFI or PRE report informs the court but does not bind it; the parties may cross-examine the investigator and present contrary evidence. The court independently determines best interests on the whole record.

Authority: C.R.S. 14-10-116.5 [verify]

Mixed

QUESTION 251 OF 405 · FL-251 · MIXED — DIVISIBLE DIVORCE · CORRECT: B

The concept that a court may dissolve a marriage even without personal jurisdiction to divide property is called:

✗ A. Comity

✓ **B. Divisible divorce**

✗ C. Res judicata

✗ D. Forum non conveniens

Why: Under the divisible-divorce doctrine, a court with jurisdiction over the marital status (based on a spouse's domicile) may grant the divorce even if it lacks personal jurisdiction over the other spouse for property or support. Those financial issues require a separate jurisdictional basis.

Authority: C.R.S. 14-10-106 [verify]

QUESTION 252 OF 405 · FL-252 · MIXED — CHILD SUPPORT AND MAINTENANCE ORDER · CORRECT: B

In a case with both awards, an error candidates make is:

✗ A. Calculating maintenance first

✓ **B. Calculating child support before adjusting incomes for maintenance paid**

✗ C. Considering the guideline

✗ D. Making findings

Why: A common error is computing child support without first adjusting the parties' incomes for maintenance actually paid. Maintenance must be determined first and then reflected in the incomes used for the child support worksheet.

Authority: C.R.S. 14-10-115(5)(a)(I) [verify]

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QUESTION 253 OF 405 · FL-253 · MIXED — RELOCATION AND MODIFICATION STANDARDS · CORRECT: B

A parent with majority time moving out of state post-decree implicates:

✗ A. Only best interests with no extra factors

✓ **B. The relocation factors of 14-10-129(2)(c) and, if changing the majority parent, the endangerment trigger**

✗ C. Section 14-10-113 only

✗ D. No standards

Why: Post-decree relocation triggers the additional 14-10-129(2)(c) factors; if the objecting parent seeks to become the majority parent so the child stays, the endangerment/modification triggers of 14-10-129(2) come into play. Multiple standards can operate together.

Authority: C.R.S. 14-10-129(2) [verify]

QUESTION 254 OF 405 · FL-254 · MIXED — IMPUTATION EXCEPTION RECALL · CORRECT: B

Income is NOT imputed to a parent who is:

✗ A. Underemployed by choice

✓ **B. Physically or mentally incapacitated, or caring for a child under 30 months for whom both owe support**

✗ C. Working part-time voluntarily

✗ D. Recently promoted

Why: The imputation exceptions include incapacity and caring for the parties' child under 30 months of age. Voluntary underemployment without an exception supports imputation. Recall of the exceptions is high-yield.

Authority: C.R.S. 14-10-115(5)(b) [verify]

QUESTION 255 OF 405 · FL-255 · MIXED — SHARED-CARE TRIGGER RECALL · CORRECT: B

Since March 1, 2026, how many overnights a year earn a parenting time credit?

✗ A. 90

✓ **B. 1**

✗ C. 93

✗ D. 182

Why: HB25-1159 repealed the 93-overnight Worksheet B trigger. Shared physical care now starts at one overnight a year, and the credit grows with each overnight under the Parenting Time Table.

Authority: C.R.S. 14-10-115(3)(h), (8)(h), as amended by HB25-1159 (eff. Mar. 1, 2026)

QUESTION 256 OF 405 · FL-256 · MIXED — MAINTENANCE CAP RECALL · CORRECT: B

The advisory maintenance formula applies up to a combined annual adjusted gross income of:

✗ A. $120,000

✓ **B. $240,000**

✗ C. $250,000

✗ D. $500,000 or less

Why: The guideline formula applies when combined annual adjusted gross income is $240,000 or less; above that, the court uses discretion under the factors. Recall both the 40%/50% formula and the $240,000 cap. [Confirm current cap.]

Authority: C.R.S. 14-10-114(3)(a) [verify]

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QUESTION 257 OF 405 · FL-257 · MIXED — PROPERTY APPRECIATION RECALL · CORRECT: B

A spouse's inheritance grows from $40,000 to $55,000 during the marriage. The marital portion is:

✗ A. $15,500

✓ **B. $15,000**

✗ C. $40,000

✗ D. $0

Why: The inherited corpus ($40,000) is separate, but the $15,000 appreciation during the marriage is marital and subject to division. This applies the separate-property-appreciation rule.

Authority: C.R.S. 14-10-113(4) [verify]

QUESTION 258 OF 405 · FL-258 · MIXED — MODIFICATION PRESUMPTION RECALL · CORRECT: B

A recalculation showing support should change by 12% creates:

✗ A. A presumption of no change, because 12% is below the threshold

✓ **B. A rebuttable presumption of a substantial and continuing change**

✗ C. A mandatory denial of the modification request

✗ D. A referral for criminal enforcement of the arrears

Why: Because 12% exceeds the 10% threshold, there is a rebuttable presumption of a substantial and continuing change warranting modification. The court still confirms the change is substantial and continuing in context.

Authority: C.R.S. 14-10-122(1)(b) [verify]

QUESTION 259 OF 405 · FL-259 · MIXED — ENDANGERMENT RECALL · CORRECT: B

To restrict a parent's parenting time, the court must find that parenting time would:

✗ A. Be inconvenient

✓ **B. Endanger the child's physical health or significantly impair emotional development**

✗ C. Cost too much

✗ D. Reduce support

Why: Restriction of parenting time requires the endangerment finding under 14-10-129(1)(b)(I). Mere inconvenience or general 'best interests' is insufficient to restrict an existing parent's time.

Authority: C.R.S. 14-10-129(1)(b)(I) [verify]

QUESTION 260 OF 405 · FL-260 · MIXED — DECREE FINALITY · CORRECT: B

After the decree, property division is:

✗ A. Freely modifiable like support

✓ **B. Generally final and not modifiable absent fraud, nondisclosure, or other narrow grounds**

✗ C. Modifiable any time

✗ D. Voidable within one year

Why: Unlike support and maintenance (which are modifiable on changed circumstances) or APR (modifiable in the child's interests), the property division is generally final and not subject to modification except on narrow grounds such as fraud or Rule 16.2 nondisclosure. Finality promotes certainty.

Authority: C.R.S. 14-10-122(1)(a) [verify]; C.R.C.P. 16.2(e) [verify]

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QUESTION 261 OF 405 · FL-261 · MIXED — EMANCIPATION RECALL · CORRECT: B

Absent exceptions, child support ends when the child reaches:

✗ A. 18

✓ **B. 19**

✗ C. 21

✗ D. 16

Why: The presumptive age of emancipation for support is 19, with exceptions for high school enrollment, disability, and agreement to pay further. Earlier emancipating events (marriage, active military service) also end the obligation.

Authority: C.R.S. 14-10-115(13) [verify]

QUESTION 262 OF 405 · FL-262 · MIXED — BEST INTERESTS VS. PARENTAL RIGHTS · CORRECT: B

In a contest between a fit parent and a non-parent, the law gives:

✗ A. Equal footing

✓ **B. Special weight to the parent's constitutionally protected interest, with the non-parent facing a higher standard**

✗ C. Preference to the non-parent

✗ D. No preference

Why: A fit parent's decisions and rights receive constitutional protection (Troxel), so a non-parent seeking APR over a fit parent's objection faces a heightened showing. Best interests still matter, but the parental presumption is a significant thumb on the scale.

Authority: Troxel v. Granville [verify]; C.R.S. 14-10-123 [verify]

QUESTION 263 OF 405 · FL-263 · MIXED — MAINTENANCE FINDINGS RECALL · CORRECT: B

Because the maintenance guideline is advisory, the court must:

✗ A. Simply apply the formula

✓ **B. Make findings on the guideline amount/term and the statutory factors**

✗ C. Defer to the payor

✗ D. Award nothing

Why: The court must calculate and consider the guideline but make findings on the factors and the basis for the award, which may deviate from the guideline. Adequate findings distinguish maintenance (advisory) from child support (presumptive).

Authority: C.R.S. 14-10-114(3) [verify]

QUESTION 264 OF 405 · FL-264 · MIXED — TAX EXEMPTION ALLOCATION · CORRECT: B

The dependency tax benefit may be allocated to the non-residential parent:

✗ A. Only if the parents file a joint tax return

✓ **B. By court order, often conditioned on the obligor being current, with the residential parent executing IRS Form 8332**

✗ C. Automatically

✗ D. Only by the IRS

Why: Colorado courts may allocate the dependency benefit, frequently to the non-residential obligor if current on support, which requires the residential parent to release it via IRS Form 8332. Allocation aims to maximize the family's overall tax benefit.

Authority: C.R.S. 14-10-115(14) [verify]; IRS Form 8332 [verify]

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QUESTION 265 OF 405 · FL-265 · MIXED — COMMON-LAW MARRIAGE TEST · CORRECT: B

Colorado's refined test for common-law marriage (post-Hogsett) focuses on:

✗ A. Cohabitation alone

✓ **B. The parties' mutual agreement to enter marriage, shown by conduct manifesting that agreement**

✗ C. A recorded declaration filed with the clerk

✗ D. A 7-year cohabitation rule

Why: Hogsett v. Neale (2021) refined the test to focus on the parties' mutual intent to be married, evidenced by conduct in the totality of the circumstances, rather than rigid traditional indicia. A disputed common-law marriage is, however, a carve-out outside an LLP's scope.

Authority: Hogsett v. Neale [verify]; C.R.C.P. 207.1 [verify]

QUESTION 266 OF 405 · FL-266 · MIXED — MODIFICATION RETROACTIVITY RECALL · CORRECT: B

A support modification is generally effective from:

✗ A. The child's birth

✓ **B. The date the motion was filed**

✗ C. The hearing date only

✗ D. One year before filing

Why: Modification ordinarily takes effect as of the filing date of the motion (with a limited exception when physical care changes). Pre-filing accrued support is vested and not retroactively reduced. Prompt filing minimizes arrears or overpayment.

Authority: C.R.S. 14-10-122(1)(d) [verify]

QUESTION 267 OF 405 · FL-267 · MIXED — SCOPE-DRIVEN ADVICE · CORRECT: B

When a dissolution involves a contested prenup and a QDRO, a competent LLP should:

✗ A. Handle everything

✓ **B. Continue on in-scope issues and advise the client to retain an attorney for the prenup dispute and QDRO**

✗ C. Withdraw entirely

✗ D. Handle the QDRO but refer out the prenup dispute

Why: The prenup dispute and QDRO are carve-outs; the LLP should refer those to an attorney while continuing to represent the client on in-scope issues (parenting, child support, non-prenup property), consistent with 207.1(i) and the duty to advise of limits.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 268 OF 405 · FL-268 · MIXED — UCCJEA VS. UIFSA · CORRECT: B

Which pairing is correct?

✗ A. UCCJEA = support; UIFSA = custody

✓ **B. UCCJEA = custody/APR jurisdiction; UIFSA = support jurisdiction**

✗ C. UCCJEA governs initial custody only; modifications run under UIFSA

✗ D. UCCJEA applies only when a foreign country is involved

Why: The UCCJEA governs jurisdiction over child-custody/APR determinations, while UIFSA governs jurisdiction over support. Mixing them up is a common error. Foreign-order registration under either is a carve-out outside an LLP's scope.

Authority: C.R.S. 14-13-101 [verify]; C.R.S. 14-5-101 [verify]

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QUESTION 269 OF 405 · FL-269 · MIXED — DISCLOSURE REMEDY RECALL · CORRECT: B

The special remedy for a materially omitted or misstated asset due to nondisclosure allows reallocation within:

✗ A. 1 year

✓ **B. 5 years**

✗ C. 6 years

✗ D. 7 years

Why: Rule 16.2(e)(10) permits reallocation of a misstated or omitted material asset on a motion within 5 years of the decree, a longer window than ordinary post-judgment relief, to enforce the disclosure duty.

Authority: C.R.C.P. 16.2(e)(10) [verify]

QUESTION 270 OF 405 · FL-270 · MIXED — PUTTING IT TOGETHER · CORRECT: C

A 12-year marriage, two minor children, combined income $150,000, a marital home, the husband's pension, and a disputed inheritance. Which issue is OUTSIDE an LLP's scope?

✗ A. Calculating child support

✗ B. Dividing the marital home

✓ **C. Preparing a QDRO for the pension**

✗ D. Drafting the parenting plan

Why: Child support, the home division, and the parenting plan are in scope. Preparing the QDRO needed to divide the pension is a collateral-issue carve-out outside the LLP's scope and must be referred to an attorney or QDRO specialist, even though the LLP can address the agreement to divide the asset.

Authority: C.R.C.P. 207.1 [verify]; C.R.S. 14-10-113 [verify]

Ethics

QUESTION 271 OF 405 · ETH-001 · ETHICS — COMPETENCE · CORRECT: B

Under Colo. LLP RPC 1.1, an LLP must:

✗ A. Take any case offered

✓ **B. Provide competent representation requiring legal knowledge, skill, thoroughness, and preparation reasonably necessary**

✗ C. Guarantee a result

✗ D. Match an attorney's expertise in all fields

Why: LLP RPC 1.1 requires competent representation—the legal knowledge, skill, thoroughness, and preparation reasonably necessary for the matter. Competence can be achieved through study or association, but if a matter exceeds the LLP's competence or authorized scope, the LLP must advise the client to seek an attorney.

Authority: Colo. LLP RPC 1.1 [verify]

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QUESTION 272 OF 405 · ETH-002 · ETHICS — COMPETENCE · CORRECT: B

An LLP asked to handle a dissolution issue requiring analysis of a complex trust should:

✗ A. Obtain the client's informed consent, confirmed in writing, and handle the trust analysis

✓ **B. Advise the client to consult an attorney, because the issue is both a competence concern and a scope carve-out**

✗ C. Associate with a supervising attorney and continue handling the trust issue

✗ D. Decline the entire case

Why: A complex trust issue is outside the LLP's scope and likely beyond competence; LLP RPC 1.1 and C.R.C.P. 207.1 require advising the client to obtain attorney assistance for that issue. The LLP may continue on in-scope portions under 207.1(i).

Authority: Colo. LLP RPC 1.1 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 273 OF 405 · ETH-003 · ETHICS — COMPETENCE · CORRECT: B

Maintaining competence requires an LLP to:

✗ A. Limit practice to areas learned before licensure

✓ **B. Keep abreast of changes in the law and practice, including continuing education**

✗ C. Rely solely on past training

✗ D. Maintain paper files as the system of record

Why: Competence includes staying current with changes in the law and its practice and engaging in continuing study and education. LLPs must complete applicable CLE to maintain their license, mirroring attorney obligations.

Authority: Colo. LLP RPC 1.1 cmt. [verify]

QUESTION 274 OF 405 · ETH-015 · ETHICS — COMPETENCE · CORRECT: B

An LLP lacking competence in a discrete in-scope task may:

✗ A. Decline it unless the client waives competence in writing

✓ **B. Acquire competence through reasonable preparation or associate with a competent LLP/attorney**

✗ C. Only refer it out

✗ D. Handle it and disclose the inexperience afterward

Why: Required competence can be achieved through reasonable study and preparation, or by associating with another competent practitioner. The key is that the client receives competent service; if that is not feasible within scope, the LLP advises the client to seek an attorney.

Authority: Colo. LLP RPC 1.1 cmt. [verify]

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QUESTION 275 OF 405 · ETH-020 · ETHICS — COMPETENCE · CORRECT: B

An LLP's duty of competence in technology includes:

✗ A. Reasonable avoidance of technology in the practice

✓ **B. Reasonable understanding of relevant technology, including e-filing and protecting client data**

✗ C. Reasonable reliance on a vendor for all technology decisions

✗ D. Reasonable refusal to use email with clients

Why: Modern competence includes a reasonable understanding of the benefits and risks of relevant technology, such as court e-filing systems and safeguarding electronic client information. This parallels the attorney duty of technological competence.

Authority: Colo. LLP RPC 1.1 cmt. [verify]

QUESTION 276 OF 405 · ETH-004 · ETHICS — SCOPE/LIMITS · CORRECT: B

Under LLP RPC 1.2, an LLP may limit the scope of a representation if:

✗ A. The client is unaware

✓ **B. The limitation is reasonable and the client gives informed consent**

✗ C. The LLP simply prefers it

✗ D. A judge approves

Why: An LLP may limit the objectives or scope of the representation if the limitation is reasonable under the circumstances and the client gives informed consent. Limited-scope (unbundled) representation is permitted with proper disclosure and consent.

Authority: Colo. LLP RPC 1.2(c) [verify]

QUESTION 277 OF 405 · ETH-005 · ETHICS — SCOPE/LIMITS · CORRECT: B

A defining ethical duty unique to LLPs is to:

✗ A. Advise clients that the LLP must maintain a trust account for client funds

✓ **B. Advise clients of the limitations on the LLP's license and authorized practice**

✗ C. Advise clients that the LLP must complete annual continuing legal education

✗ D. Advise clients that the LLP must carry malpractice insurance and disclose coverage limits

Why: LLPs must advise clients about the limits of the LLP's license and scope so clients can make informed decisions, including whether to retain an attorney for out-of-scope issues. This duty to disclose scope limits is central to the LLP framework.

Authority: Colo. LLP RPC 1.2 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 278 OF 405 · ETH-006 · ETHICS — SCOPE/LIMITS · CORRECT: B

The client, not the LLP, generally decides:

✗ A. Which witnesses to cross-examine

✓ **B. The objectives of the representation, such as whether to settle**

✗ C. Courtroom tactics

✗ D. The wording of motions

Why: Under LLP RPC 1.2, the client determines the objectives—e.g., whether to accept a settlement—while the LLP, after consultation, handles the means and tactics. Settlement of a civil matter is the client's decision to make.

Authority: Colo. LLP RPC 1.2(a) [verify]

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QUESTION 279 OF 405 · ETH-007 · ETHICS — SCOPE/LIMITS · CORRECT: B

An LLP may NOT counsel or assist a client to:

✗ A. Pursue a lawful but aggressive position

✓ **B. Engage in conduct the LLP knows is criminal or fraudulent**

✗ C. File a disclosed motion

✗ D. Negotiate firmly

Why: LLP RPC 1.2(d) prohibits counseling or assisting a client in conduct the LLP knows is criminal or fraudulent, though the LLP may discuss the legal consequences of proposed conduct and help determine the validity of a law. The line is between advising about the law and facilitating wrongdoing.

Authority: Colo. LLP RPC 1.2(d) [verify]

QUESTION 280 OF 405 · ETH-016 · ETHICS — SCOPE/LIMITS · CORRECT: B

Informed consent under the LLP rules requires:

✗ A. A signature only

✓ **B. The client's agreement after the LLP communicates adequate information about the material risks and reasonable alternatives**

✗ C. No explanation

✗ D. Court approval

Why: Informed consent means the client agrees after the LLP has communicated adequate information and explanation about the material risks of and reasonably available alternatives to the proposed course of conduct. It is the foundation for limited-scope arrangements and conflict waivers.

Authority: Colo. LLP RPC 1.0(e) [verify]

QUESTION 281 OF 405 · ETH-019 · ETHICS — SCOPE/LIMITS · CORRECT: B

Limited-scope (unbundled) representation by an LLP is:

✗ A. Permitted only in uncontested matters

✓ **B. Permitted if reasonable and with informed consent, with disclosure to the court as required**

✗ C. Always full-service only

✗ D. Allowed without telling anyone

Why: Unbundled representation is permitted when reasonable and the client gives informed consent; court rules may require disclosure of the limited nature of the appearance. This allows clients to obtain affordable, targeted help within the LLP's scope.

Authority: Colo. LLP RPC 1.2(c) [verify]

QUESTION 282 OF 405 · ETH-023 · ETHICS — SCOPE/LIMITS · CORRECT: B

If a client insists on pursuing an out-of-scope objective, the LLP should:

✗ A. Pursue it anyway

✓ **B. Explain the scope limit, decline the out-of-scope work, and advise the client to consult an attorney**

✗ C. Hide the limitation

✗ D. Sign an attorney's name

Why: The LLP cannot exceed the authorized scope; it must explain the limitation, decline the out-of-scope objective, and advise the client to seek an attorney, while continuing any in-scope work. Exceeding scope is unauthorized practice and misconduct.

Authority: C.R.C.P. 207.1 [verify]; Colo. LLP RPC 1.2 [verify]

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QUESTION 283 OF 405 · ETH-008 · ETHICS — DILIGENCE · CORRECT: B

LLP RPC 1.3 requires an LLP to:

✗ A. Act whenever convenient

✓ **B. Act with reasonable diligence and promptness in representing a client**

✗ C. Prioritize the highest-paying client

✗ D. Delay to increase fees

Why: LLP RPC 1.3 requires reasonable diligence and promptness. Procrastination and neglect are common sources of discipline; the LLP should pursue matters despite opposition and control workload so each matter can be handled competently.

Authority: Colo. LLP RPC 1.3 [verify]

QUESTION 284 OF 405 · ETH-009 · ETHICS — DILIGENCE · CORRECT: B

If an LLP's workload prevents diligent handling of a new matter, the LLP should:

✗ A. Take it anyway

✓ **B. Decline or limit the workload so each client is served competently and diligently**

✗ C. Hand it to a non-licensed assistant

✗ D. Delay indefinitely

Why: Diligence and competence require managing workload so each matter receives adequate attention. An LLP who cannot diligently handle a matter should decline it or otherwise ensure the client's interests are protected. Overcommitment that harms clients can lead to discipline.

Authority: Colo. LLP RPC 1.3 cmt. [verify]

QUESTION 285 OF 405 · ETH-010 · ETHICS — DILIGENCE · CORRECT: B

Upon completing or terminating a representation, diligence and related duties require the LLP to:

✗ A. Take no steps, keeping the file permanently confidential

✓ **B. Take steps to protect the client's interests, such as returning the file and giving notice**

✗ C. Take on no further duty once the representation ends

✗ D. Take the file out of storage and destroy it immediately

Why: When a representation ends, the LLP must protect the client's interests—returning papers and property, giving reasonable notice, and allowing time to obtain other counsel. Abandoning a client mid-matter violates diligence and other duties.

Authority: Colo. LLP RPC 1.3 [verify]; Colo. LLP RPC 1.16 [verify]

QUESTION 286 OF 405 · ETH-017 · ETHICS — DILIGENCE · CORRECT: B

Missing a filing deadline that harms the client most directly implicates:

✗ A. Confidentiality

✓ **B. Diligence (and possibly competence)**

✗ C. Advertising rules

✗ D. Trust accounting

Why: Blowing a deadline is a classic diligence (and often competence) violation. Such neglect can prejudice the client's rights and frequently leads to malpractice exposure and discipline. Calendar systems and workload management are essential.

Authority: Colo. LLP RPC 1.3 [verify]

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QUESTION 287 OF 405 · ETH-022 · ETHICS — DILIGENCE · CORRECT: B

A single, isolated act of neglect versus a pattern:

✗ A. Both are always disbarment

✓ **B. Either can violate diligence; a pattern is more serious and aggravating**

✗ C. Only a pattern matters

✗ D. Neither matters

Why: Even a single act of neglect can violate the diligence rule, but a pattern of neglect is treated as more serious and is an aggravating factor in discipline. Consistent diligence across all matters is required.

Authority: Colo. LLP RPC 1.3 cmt. [verify]

QUESTION 288 OF 405 · ETH-011 · ETHICS — COMMUNICATION · CORRECT: B

LLP RPC 1.4 requires an LLP to:

✗ A. Communicate only in writing

✓ **B. Keep the client reasonably informed and promptly comply with reasonable requests for information**

✗ C. Communicate only at the end

✗ D. Speak only to opposing counsel

Why: LLP RPC 1.4 requires reasonable communication: keeping the client informed about the status, promptly responding to reasonable requests, and explaining matters enough to permit informed decisions. Poor communication is a frequent client complaint and discipline trigger.

Authority: Colo. LLP RPC 1.4 [verify]

QUESTION 289 OF 405 · ETH-012 · ETHICS — COMMUNICATION · CORRECT: B

Explaining a matter so the client can make informed decisions includes:

✗ A. Only legal jargon

✓ **B. Explaining the practical and legal options, including scope limits affecting the client**

✗ C. Withholding bad news

✗ D. Deferring all decisions to the LLP

Why: Communication must give the client enough understanding to make informed decisions, including realistic assessments and the limits of the LLP's scope that may require an attorney. The duty supports the client's autonomy over objectives.

Authority: Colo. LLP RPC 1.4(b) [verify]

QUESTION 290 OF 405 · ETH-013 · ETHICS — COMMUNICATION · CORRECT: B

A settlement offer received from the opposing party should be:

✗ A. Accepted by the LLP

✓ **B. Promptly communicated to the client, who decides whether to accept**

✗ C. Evaluated by the LLP and conveyed only if reasonable

✗ D. Held for the next scheduled client meeting

Why: The LLP must promptly inform the client of settlement offers and let the client decide whether to accept, consistent with LLP RPC 1.2 and 1.4. Failing to convey an offer deprives the client of the decision the rules reserve to them.

Authority: Colo. LLP RPC 1.4 [verify]; Colo. LLP RPC 1.2 [verify]

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QUESTION 291 OF 405 · ETH-014 · ETHICS — COMMUNICATION · CORRECT: B

If a client makes a decision the LLP disagrees with but that is lawful and within the client's authority, the LLP should:

✗ A. Override the client

✓ **B. Abide by the client's lawful decision on objectives after advising them**

✗ C. Withdraw automatically

✗ D. Report the client

Why: The LLP advises but must abide by the client's lawful decisions on the objectives of the representation. Disagreement on strategy is resolved in favor of the client's authority over objectives; the LLP may withdraw only on proper grounds.

Authority: Colo. LLP RPC 1.2(a) [verify]; Colo. LLP RPC 1.4 [verify]

QUESTION 292 OF 405 · ETH-018 · ETHICS — COMMUNICATION · CORRECT: B

How promptly must an LLP respond to a client's reasonable requests for information?

✗ A. Within a year

✓ **B. Promptly, or with a reasonable explanation if a prompt substantive response is not feasible**

✗ C. Only after the case ends

✗ D. Required only at 30-day intervals

Why: The LLP must promptly comply with reasonable requests for information; if a prompt substantive response is not feasible, the LLP (or staff) should acknowledge the request and indicate when a response can be expected. Silence breeds complaints.

Authority: Colo. LLP RPC 1.4 cmt. [verify]

QUESTION 293 OF 405 · ETH-021 · ETHICS — COMMUNICATION · CORRECT: B

When a matter involves a decision reserved to the client, the LLP must:

✗ A. Decide for efficiency

✓ **B. Reasonably consult with the client about the means to accomplish the objectives**

✗ C. Consult only at the client's written request

✗ D. Let opposing counsel decide

Why: LLP RPC 1.4(a)(2) requires reasonable consultation about the means by which the client's objectives are to be accomplished. The client sets objectives; the LLP consults on means and keeps the client informed throughout.

Authority: Colo. LLP RPC 1.4(a)(2) [verify]

QUESTION 294 OF 405 · ETH-024 · ETHICS — COMMUNICATION · CORRECT: B

Communicating with a represented opposing party directly about the matter is:

✗ A. Permitted if the LLP copies opposing counsel

✓ **B. Prohibited without the consent of that party's counsel (the no-contact rule)**

✗ C. Permitted if the represented party initiates the contact

✗ D. Allowed by email only

Why: Under the no-contact rule, an LLP must not communicate about the subject of the representation with a person the LLP knows is represented by counsel, absent that counsel's consent or legal authorization. This protects the represented party's relationship with counsel.

Authority: Colo. LLP RPC 4.2 [verify]

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QUESTION 295 OF 405 · ETH-025 · ETHICS — COMMUNICATION · CORRECT: B

When dealing with an unrepresented person, an LLP must:

✗ A. Give legal advice freely

✓ **B. Not state or imply disinterest, and avoid giving legal advice other than to secure counsel if the person's interests conflict**

✗ C. Pretend to represent them

✗ D. Obtain their signature on a non-representation waiver

Why: Under LLP RPC 4.3, when dealing with an unrepresented person, the LLP must not imply being disinterested, must correct misunderstandings about the LLP's role, and must not give legal advice (other than to secure counsel) where the person's interests may conflict with the client's.

Authority: Colo. LLP RPC 4.3 [verify]

QUESTION 296 OF 405 · ETH-026 · ETHICS — FEES · CORRECT: B

Under LLP RPC 1.5, an LLP's fee must be:

✗ A. The maximum the market allows

✓ **B. Reasonable**

✗ C. Set by the court

✗ D. Equal to an attorney's fee

Why: LLP RPC 1.5 requires that fees and expenses be reasonable. There is no statutory cap on LLP fees, but the reasonableness factors (time, difficulty, customary fee, results, etc.) govern. Unreasonable fees are subject to discipline and fee disputes.

Authority: Colo. LLP RPC 1.5(a) [verify]

QUESTION 297 OF 405 · ETH-027 · ETHICS — FEES · CORRECT: B

Which is a factor in determining the reasonableness of a fee?

✗ A. The client's astrological sign

✓ **B. The time and labor required, novelty and difficulty, customary fee, and results obtained**

✗ C. The LLP's mortgage

✗ D. The opposing party's wealth

Why: Reasonableness factors include the time and labor required, the novelty and difficulty of the questions, the skill required, the customary fee, the amount involved and results obtained, time limitations, and the nature of the relationship. These mirror the attorney rule.

Authority: Colo. LLP RPC 1.5(a) [verify]

QUESTION 298 OF 405 · ETH-028 · ETHICS — FEES · CORRECT: B

The basis or rate of the fee should be communicated to the client:

✗ A. Only in contingent-fee matters

✓ **B. Preferably in writing, before or within a reasonable time after commencing the representation**

✗ C. Only if asked

✗ D. After the case ends

Why: The scope of the representation and the basis or rate of the fee and expenses must be communicated to the client, preferably in writing, before or within a reasonable time after beginning the representation. Written fee agreements reduce disputes.

Authority: Colo. LLP RPC 1.5(b) [verify]

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QUESTION 299 OF 405 · ETH-029 · ETHICS — FEES · CORRECT: B

Is there a cap on what an LLP may charge?

✗ A. Yes, half an attorney's rate by rule

✓ **B. No statutory cap, but the fee must be reasonable**

✗ C. Yes, a flat $100/hour

✗ D. Yes, set by the client's income

Why: There is no fee cap and no client income or asset restriction on whom an LLP may serve; however, fees must be reasonable. Market forces and the reasonableness standard, not a rule-imposed ceiling, govern LLP rates.

Authority: Colo. LLP RPC 1.5 [verify]

QUESTION 300 OF 405 · ETH-030 · ETHICS — FEES · CORRECT: B

A contingent fee in a domestic relations matter is:

✗ A. Generally permitted in any domestic relations matter

✓ **B. Generally prohibited when contingent on securing a dissolution or on the amount of support/property**

✗ C. Generally permitted if the fee is capped at one-third

✗ D. Generally permitted with the court's advance approval

Why: As with attorneys, contingent fees are generally prohibited in domestic relations matters when the payment is contingent on securing a dissolution or on the amount of maintenance, support, or property settlement. This rule applies to LLPs handling family law.

Authority: Colo. LLP RPC 1.5(d) [verify]

QUESTION 301 OF 405 · ETH-031 · ETHICS — FEES · CORRECT: B

Advance fees (retainers) paid by a client are generally:

✗ A. The LLP's money immediately

✓ **B. Client funds held in trust until earned, subject to the safekeeping rules**

✗ C. Earned on receipt if labeled a 'retainer'

✗ D. Nonrefundable always

Why: Unearned advance fees are generally client property held in trust until earned, and unearned amounts must be refunded. Treating an unearned retainer as the LLP's own funds is commingling/misappropriation. Certain flat-fee arrangements have specific requirements.

Authority: Colo. LLP RPC 1.5 [verify]; Colo. LLP RPC 1.15-series [verify]

QUESTION 302 OF 405 · ETH-032 · ETHICS — FEES · CORRECT: B

On termination of the representation, any unearned portion of a fee:

✗ A. Is kept by the LLP

✓ **B. Must be refunded to the client**

✗ C. Is paid to the court

✗ D. Is forfeited

Why: Upon termination, the LLP must refund any advance payment of a fee or expense that has not been earned or incurred. Failure to refund unearned fees is a common and serious disciplinary issue.

Authority: Colo. LLP RPC 1.16(d) [verify]

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QUESTION 303 OF 405 · ETH-033 · ETHICS — FEES · CORRECT: B

Fee splitting between an LLP and a lawyer not in the same firm is:

✗ A. Permitted in all circumstances, without conditions

✓ B. Permitted only under conditions (e.g., proportional to services or joint responsibility, client consent, reasonable total fee)

✗ C. Permitted in no circumstances

✗ D. Permitted without disclosure to the client

Why: Division of a fee with a practitioner outside the firm is permitted only if it is proportional to services performed or each assumes joint responsibility, the client agrees in writing, and the total fee is reasonable. The conditions mirror the attorney fee-division rule.

Authority: Colo. LLP RPC 1.5(e) [verify]

QUESTION 304 OF 405 · ETH-034 · ETHICS — FEES · CORRECT: B

Charging a client for a clearly excessive number of hours is:

✗ A. Permissible if billed

✓ B. A violation of the reasonableness requirement and potentially fraudulent

✗ C. Permitted if the client pays without objection

✗ D. A trust-accounting issue only

Why: Billing excessive or fabricated time violates the reasonableness rule and may constitute dishonesty or fraud, exposing the LLP to discipline. Honest, accurate billing is required, and padding hours is misconduct.

Authority: Colo. LLP RPC 1.5 [verify]; Colo. LLP RPC 8.4(c) [verify]

QUESTION 305 OF 405 · ETH-035 · ETHICS — FEES · CORRECT: B

If a fee dispute arises, the LLP should be aware that:

✗ A. Fee disputes leave the client without recourse

✓ B. Fee dispute resolution mechanisms exist and the LLP should handle disputed funds appropriately in trust

✗ C. Fee amounts in dispute may be kept by the LLP

✗ D. Fee disputes can be resolved only by litigation

Why: When a dispute arises about fees or funds the LLP holds, the disputed portion must be kept separate in trust until the dispute is resolved, and fee-dispute resolution processes may be available. The LLP cannot unilaterally take disputed funds.

Authority: Colo. LLP RPC 1.15-series [verify]

QUESTION 306 OF 405 · ETH-047 · ETHICS — FEES · CORRECT: B

Commingling earned and unearned fees in one account is:

✗ A. Permitted if the account is interest-bearing

✓ B. Improper; unearned client funds must be held in trust separate from the LLP's operating funds

✗ C. Permitted for flat fees under $2,000

✗ D. A communication issue

Why: Unearned fees and other client funds must be held in trust, separate from the LLP's own operating funds. Commingling—mixing client and personal funds—is a serious trust-accounting violation even if no funds are ultimately lost.

Authority: Colo. LLP RPC 1.15-series [verify]

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QUESTION 307 OF 405 · ETH-049 · ETHICS — FEES · CORRECT: B

An LLP serving low- and moderate-income clients:

✗ A. Must charge the maximum

✓ **B. May serve clients regardless of income, with reasonable fees; there is no income restriction**

✗ C. Cannot serve wealthy clients

✗ D. Must work for free

Why: There is no income or asset restriction on who an LLP may serve, though scope limits mean LLPs often serve moderate-income clients with less complex matters. Fees must be reasonable; market forces largely set rates, which tend to be lower than attorney rates.

Authority: Colo. LLP RPC 1.5 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 308 OF 405 · ETH-036 · ETHICS — CONFIDENTIALITY · CORRECT: B

LLP RPC 1.6 prohibits revealing:

✗ A. Only privileged communications

✓ **B. Information relating to the representation of a client, absent informed consent or an exception**

✗ C. Only written information

✗ D. Only information the client marks confidential

Why: The duty of confidentiality is broad: it covers all information relating to the representation, whatever its source, not merely privileged attorney-client communications. Disclosure requires the client's informed consent or a recognized exception.

Authority: Colo. LLP RPC 1.6(a) [verify]

QUESTION 309 OF 405 · ETH-037 · ETHICS — CONFIDENTIALITY · CORRECT: B

Confidentiality under RPC 1.6 compared to the evidentiary privilege is:

✗ A. Narrower

✓ **B. Broader, covering more than just privileged communications**

✗ C. Identical

✗ D. Inapplicable to LLPs

Why: The ethical duty of confidentiality is broader than the attorney-client (or analogous) evidentiary privilege; it applies to all information relating to the representation regardless of source, while the privilege protects certain confidential communications from compelled disclosure. Candidates must not conflate the two.

Authority: Colo. LLP RPC 1.6 cmt. [verify]

QUESTION 310 OF 405 · ETH-038 · ETHICS — CONFIDENTIALITY · CORRECT: B

An LLP may reveal confidential information to:

✗ A. Anyone who asks

✓ **B. Prevent reasonably certain death or substantial bodily harm**

✗ C. Gossip with colleagues

✗ D. Promote the LLP's business

Why: A recognized exception permits (and the rule is structured around) disclosure to prevent reasonably certain death or substantial bodily harm. Other exceptions include compliance with law or court order and securing legal advice about compliance. Disclosure is limited to the extent reasonably necessary.

Authority: Colo. LLP RPC 1.6(b) [verify]

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QUESTION 311 OF 405 · ETH-039 · ETHICS — CONFIDENTIALITY · CORRECT: B

Disclosure to comply with a court order is:

✗ A. Permitted only after an in-camera review

✓ **B. Permitted, generally limited to the extent reasonably necessary**

✗ C. Mandatory in all respects

✗ D. Only allowed with client consent

Why: An LLP may reveal confidential information to comply with a court order or other law, disclosing only as much as reasonably necessary. Where feasible, the LLP should assert applicable protections (e.g., privilege) before disclosing.

Authority: Colo. LLP RPC 1.6(b) [verify]

QUESTION 312 OF 405 · ETH-040 · ETHICS — CONFIDENTIALITY · CORRECT: B

The confidentiality duty continues:

✗ A. Only during the case

✓ **B. After the representation ends and even after the client's death**

✗ C. Only until the first hearing

✗ D. Until the fee is paid

Why: The duty of confidentiality survives the termination of the representation and continues even after the client's death. Former-client information remains protected absent consent or an exception.

Authority: Colo. LLP RPC 1.6 cmt. [verify]; Colo. LLP RPC 1.9(c) [verify]

QUESTION 313 OF 405 · ETH-041 · ETHICS — CONFIDENTIALITY · CORRECT: B

An LLP must make reasonable efforts to:

✗ A. Publicize client matters

✓ **B. Prevent inadvertent or unauthorized disclosure of, and unauthorized access to, client information**

✗ C. Store data publicly

✗ D. Share files with marketers

Why: LLP RPC 1.6(c) requires reasonable efforts to prevent inadvertent or unauthorized disclosure of, or unauthorized access to, information relating to the representation. This includes reasonable data-security and office practices.

Authority: Colo. LLP RPC 1.6(c) [verify]

QUESTION 314 OF 405 · ETH-042 · ETHICS — CONFIDENTIALITY · CORRECT: B

Discussing a client's case in a crowded elevator where others can hear:

✗ A. Is protected by the attorney-client privilege

✓ **B. Risks an unauthorized disclosure of confidential information**

✗ C. Is required for transparency

✗ D. Is only a competence issue

Why: Careless conversations in public places can disclose confidential information and breach the duty to safeguard client information. LLPs must avoid discussing client matters where they may be overheard.

Authority: Colo. LLP RPC 1.6 [verify]

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QUESTION 315 OF 405 · ETH-043 · ETHICS — CONFIDENTIALITY · CORRECT: B

Client consent to disclosure must be:

✗ A. Implied from silence always

✓ **B. Informed consent (or impliedly authorized to carry out the representation)**

✗ C. Confirmed in writing within 7 days

✗ D. Approved by the court

Why: Disclosure is permitted with the client's informed consent or when impliedly authorized to carry out the representation (e.g., disclosing facts in a filing). Beyond those, an exception must apply. Informed consent requires adequate explanation of risks and alternatives.

Authority: Colo. LLP RPC 1.6(a) [verify]

QUESTION 316 OF 405 · ETH-044 · ETHICS — CONFIDENTIALITY · CORRECT: B

An LLP learns the client intends to commit perjury at an upcoming hearing. Confidentiality:

✗ A. Bars any action

✓ **B. May yield to the duty of candor to the tribunal, which can require remedial measures**

✗ C. Requires the LLP to assist

✗ D. Is irrelevant

Why: The duty of candor to the tribunal (RPC 3.3) can override confidentiality: the LLP must take reasonable remedial measures, potentially including disclosure to the court, to prevent or correct false evidence or perjury. This is a key interplay between 1.6 and 3.3.

Authority: Colo. LLP RPC 3.3 [verify]; Colo. LLP RPC 1.6 [verify]

QUESTION 317 OF 405 · ETH-045 · ETHICS — CONFIDENTIALITY · CORRECT: B

Using a former client's confidential information to their disadvantage is:

✗ A. Prohibited only while the representation is ongoing

✓ **B. Prohibited absent consent, except as the rules otherwise permit**

✗ C. Prohibited only until the file has been closed for 7 years

✗ D. Prohibited only where a fee dispute is involved

Why: Under RPC 1.9(c), an LLP must not use information relating to a former client's representation to that person's disadvantage, except as the rules permit or when the information has become generally known. The duty protects former clients.

Authority: Colo. LLP RPC 1.9(c) [verify]

QUESTION 318 OF 405 · ETH-046 · ETHICS — CONFIDENTIALITY · CORRECT: B

Confidentiality applies to information learned:

✗ A. Only from the client directly

✓ **B. From any source, as long as it relates to the representation**

✗ C. Only from documents

✗ D. Only in court

Why: The duty covers information relating to the representation whatever its source—from the client, third parties, investigation, or documents. The source does not determine whether the duty applies; the relationship to the representation does.

Authority: Colo. LLP RPC 1.6 cmt. [verify]

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QUESTION 319 OF 405 · ETH-048 · ETHICS — CONFIDENTIALITY · CORRECT: B

An LLP may disclose limited confidential information to:

✗ A. Win an award

✓ **B. Secure legal advice about the LLP's compliance with the rules**

✗ C. Entertain friends

✗ D. Build a marketing list

Why: An exception permits disclosure to the extent reasonably necessary to secure legal advice about the LLP's compliance with the Rules of Professional Conduct. This allows LLPs to consult counsel about ethics questions without breaching confidentiality.

Authority: Colo. LLP RPC 1.6(b) [verify]

QUESTION 320 OF 405 · ETH-050 · ETHICS — CONFIDENTIALITY · CORRECT: B

Before disclosing under an exception, the LLP should disclose:

✗ A. As much as possible

✓ **B. Only the information reasonably necessary to accomplish the permitted purpose**

✗ C. Everything to be safe

✗ D. Only information already in the public record

Why: Even when an exception applies, disclosure must be limited to the extent reasonably necessary to accomplish the permitted purpose (e.g., to prevent harm or comply with an order). Over-disclosure beyond what is necessary violates the duty.

Authority: Colo. LLP RPC 1.6 cmt. [verify]

QUESTION 321 OF 405 · ETH-051 · ETHICS — CONFLICTS · CORRECT: B

Under LLP RPC 1.7, a concurrent conflict exists when:

✗ A. The clients are friends

✓ **B. The representation of one client is directly adverse to another, or there is a significant risk it will be materially limited**

✗ C. The fee charged is higher than customary

✗ D. The case is complex

Why: A concurrent conflict exists if the representation of one client will be directly adverse to another client, or if there is a significant risk that the representation will be materially limited by responsibilities to another client, a former client, a third person, or the LLP's own interests.

Authority: Colo. LLP RPC 1.7(a) [verify]

QUESTION 322 OF 405 · ETH-052 · ETHICS — CONFLICTS · CORRECT: B

Representing both spouses in their dissolution is:

✗ A. Permitted with a flat fee

✓ **B. A non-consentable conflict because the parties are directly adverse in the same litigation**

✗ C. Encouraged for efficiency

✗ D. Allowed if uncontested

Why: Even in an 'amicable' divorce, the spouses are opposing parties in the same litigation; an LLP cannot represent both because it is a directly adverse, generally non-consentable concurrent conflict. The LLP may represent one party (with disclosure) or neither.

Authority: Colo. LLP RPC 1.7(b)(3) [verify]

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QUESTION 323 OF 405 · ETH-053 · ETHICS — CONFLICTS · CORRECT: B

A concurrent conflict may sometimes be waived if:

✗ A. The LLP maintains separate files for each client

✓ B. The LLP reasonably believes it can provide competent and diligent representation, it is lawful, the clients are not directly adverse in the same litigation, and each gives informed written consent

✗ C. The judge allows it

✗ D. The fee is reduced

Why: A conflict is consentable only if the LLP reasonably believes it can competently and diligently represent each affected client, the representation is not prohibited by law, it does not involve asserting one client's claim against another in the same litigation, and each affected client gives informed consent confirmed in writing.

Authority: Colo. LLP RPC 1.7(b) [verify]

QUESTION 324 OF 405 · ETH-054 · ETHICS — CONFLICTS · CORRECT: B

Some conflicts are non-consentable, meaning:

✗ A. Any conflict can be waived

✓ B. Even with consent, the LLP may not proceed (e.g., suing one current client on behalf of another in the same case)

✗ C. Consent is implied

✗ D. The client decides unilaterally

Why: Certain conflicts cannot be cured by consent, such as representing opposing parties in the same litigation or where the LLP cannot reasonably believe it can provide competent, diligent representation to each. In those cases, the LLP must decline or withdraw.

Authority: Colo. LLP RPC 1.7(b) [verify]

QUESTION 325 OF 405 · ETH-055 · ETHICS — CONFLICTS · CORRECT: B

LLP RPC 1.9 governs conflicts involving:

✗ A. Only current clients

✓ B. Former clients in the same or a substantially related matter

✗ C. Only co-counsel

✗ D. Only opposing counsel

Why: RPC 1.9 prohibits representing a new client in the same or a substantially related matter in which that person's interests are materially adverse to a former client, absent the former client's informed written consent. It protects former-client confidences and loyalty.

Authority: Colo. LLP RPC 1.9(a) [verify]

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QUESTION 326 OF 405 · ETH-056 · ETHICS — CONFLICTS · CORRECT: B

An LLP who represented the wife in a divorce is later asked by the husband to handle a post-decree modification. The LLP should:

✗ A. Accept; the case is over

✓ B. Decline absent the former client's informed written consent, as it is the same/substantially related matter and materially adverse

✗ C. Accept if a year has passed

✗ D. Accept if the wife does not object in writing within 10 days

Why: This is a former-client conflict under RPC 1.9: the modification is substantially related to the prior representation and the husband's interests are materially adverse to the former-client wife. The LLP must decline unless the wife gives informed written consent (often unavailable).

Authority: Colo. LLP RPC 1.9(a) [verify]

QUESTION 327 OF 405 · ETH-057 · ETHICS — CONFLICTS · CORRECT: B

'Substantially related matters' under RPC 1.9 are those that:

✗ A. Share a courthouse

✓ B. Involve the same transaction or a substantial risk that confidential information from the prior representation would materially advance the new client's position

✗ C. Have the same judge

✗ D. Use the same forms

Why: Matters are substantially related if they involve the same transaction or legal dispute, or if there is a substantial risk that confidential factual information from the prior representation would materially advance the new client's position in the subsequent matter.

Authority: Colo. LLP RPC 1.9 cmt. [verify]

QUESTION 328 OF 405 · ETH-058 · ETHICS — CONFLICTS · CORRECT: B

Under RPC 1.10, when one LLP in a firm has a conflict:

✗ A. Only that LLP is affected

✓ B. The conflict is generally imputed to all LLPs/lawyers in the firm

✗ C. Only conflicts arising in litigation are imputed

✗ D. It applies only to staff

Why: Conflicts are generally imputed across the firm: while practitioners are associated in a firm, none may knowingly represent a client when any one of them practicing alone would be prohibited by RPC 1.7 or 1.9, subject to limited exceptions and screening where permitted.

Authority: Colo. LLP RPC 1.10(a) [verify]

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QUESTION 329 OF 405 · ETH-059 · ETHICS — CONFLICTS · CORRECT: B

An LLP's own financial or personal interests:

✗ A. Are irrelevant to conflicts

✓ **B. Can create a conflict if there is a significant risk they will materially limit the representation**

✗ C. Always override the client's

✗ D. Only matter in fee disputes

Why: A conflict can arise from the LLP's own interests—financial, business, personal, or relational—if there is a significant risk those interests will materially limit the representation. Such personal-interest conflicts must be evaluated under RPC 1.7.

Authority: Colo. LLP RPC 1.7(a)(2) [verify]

QUESTION 330 OF 405 · ETH-060 · ETHICS — CONFLICTS · CORRECT: B

Business transactions between an LLP and a client are:

✗ A. Freely allowed

✓ **B. Permitted only if fair, fully disclosed in writing, the client is advised to seek independent counsel, and the client consents in writing**

✗ C. Always prohibited

✗ D. Allowed if the client is sophisticated

Why: RPC 1.8(a) restricts business transactions with clients: the terms must be fair and reasonable, fully disclosed in writing in understandable terms, the client must be advised in writing to seek independent counsel and given a chance to do so, and the client must give informed written consent.

Authority: Colo. LLP RPC 1.8(a) [verify]

QUESTION 331 OF 405 · ETH-061 · ETHICS — CONFLICTS · CORRECT: B

Accepting a gift from a client:

✗ A. Is always fine

✓ **B. Is restricted; an LLP generally may not solicit a substantial gift or prepare an instrument giving the LLP a substantial gift from a non-relative client**

✗ C. Requires court approval

✗ D. Is encouraged

Why: RPC 1.8(c) prohibits soliciting a substantial gift from a client or preparing an instrument giving the LLP (or a related person) a substantial gift, unless the client is a relative. This prevents overreaching in the fiduciary relationship.

Authority: Colo. LLP RPC 1.8(c) [verify]

QUESTION 332 OF 405 · ETH-062 · ETHICS — CONFLICTS · CORRECT: B

An intimate or sexual relationship with a current client is:

✗ A. Permitted with informed written consent

✓ **B. Prohibited unless a consensual relationship predated the representation**

✗ C. Prohibited only if the client objects

✗ D. A fee matter

Why: RPC 1.8(j) prohibits a sexual relationship with a current client unless a consensual sexual relationship existed before the client-practitioner relationship began. Such relationships risk impairing judgment and exploiting the client.

Authority: Colo. LLP RPC 1.8(j) [verify]

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QUESTION 333 OF 405 · ETH-063 · ETHICS — CONFLICTS · CORRECT: B

Identifying conflicts requires an LLP to:

✗ A. Rely on memory

✓ **B. Maintain a system to check for conflicts when taking on new clients and matters**

✗ C. Ask opposing counsel

✗ D. Wait for a complaint

Why: Competent conflict management requires reasonable systems to identify conflicts when opening new matters, checking current and former clients and related parties. Failing to run conflict checks leads to inadvertent violations.

Authority: Colo. LLP RPC 1.7 cmt. [verify]

QUESTION 334 OF 405 · ETH-064 · ETHICS — CONFLICTS · CORRECT: B

A conflict that develops mid-representation requires the LLP to:

✗ A. Continue regardless

✓ **B. Address it—obtain consent if consentable, or withdraw from one or both representations if not**

✗ C. Wait for the affected client to raise it

✗ D. Tell only one client

Why: If a conflict arises after representation begins, the LLP must obtain informed written consent if the conflict is consentable, or withdraw as necessary. Sometimes the LLP must withdraw from representing one or both clients to comply with the rules.

Authority: Colo. LLP RPC 1.7 cmt. [verify]

QUESTION 335 OF 405 · ETH-065 · ETHICS — CONFLICTS · CORRECT: B

Consent to a conflict must be 'confirmed in writing,' which means:

✗ A. A verbal nod is enough

✓ **B. A writing that confirms the client's informed consent, signed or made by the client or promptly transmitted by the LLP**

✗ C. Notarization

✗ D. Court filing

Why: 'Confirmed in writing' means a writing that the client signs or a writing the LLP promptly transmits confirming an oral informed consent. The writing memorializes that the client was informed of the material risks and reasonable alternatives and agreed.

Authority: Colo. LLP RPC 1.0(b) [verify]

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QUESTION 336 OF 405 · ETH-066 · ETHICS — CONFLICTS · CORRECT: B

An LLP asked to represent two parties with potentially aligned but possibly diverging interests (e.g., joint clients) must:

✗ A. Assume alignment

✓ B. Evaluate the risk of material limitation, obtain informed written consent if consentable, and address what happens if interests diverge

✗ C. Require separate fee agreements and proceed

✗ D. Pick one secretly

Why: Joint or common representation requires analyzing whether the representation will be materially limited and obtaining informed written consent, including addressing confidentiality among joint clients and the consequences if their interests later diverge. In litigation between them, joint representation is barred.

Authority: Colo. LLP RPC 1.7 [verify]

QUESTION 337 OF 405 · ETH-067 · ETHICS — CONFLICTS · CORRECT: B

Imputed conflicts under RPC 1.10 may sometimes be avoided by:

✗ A. Timely assignment of the matter to another office of the same firm

✓ B. Timely screening of the personally disqualified practitioner where the rules permit, plus notice

✗ C. Timely notice to the client that the conflict will be disregarded

✗ D. Timely renaming of the firm before the matter proceeds

Why: In certain circumstances the rules permit avoiding imputation by timely and effective screening of the personally disqualified practitioner (e.g., a lateral hire) and required notice, depending on the rule's conditions. Screening must be implemented properly to be effective.

Authority: Colo. LLP RPC 1.10 [verify]

QUESTION 338 OF 405 · ETH-068 · ETHICS — CONFLICTS · CORRECT: B

Representing a client against a current client in an unrelated matter is:

✗ A. Always fine if unrelated

✓ B. Still a concurrent conflict (direct adversity) requiring informed written consent

✗ C. A conflict only if the two matters share facts

✗ D. A former-client issue

Why: Direct adversity to a current client, even in an unrelated matter, is a concurrent conflict under RPC 1.7 requiring informed written consent (and may be non-consentable). Loyalty to current clients bars suing them without compliance with 1.7.

Authority: Colo. LLP RPC 1.7(a)(1) [verify]

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QUESTION 339 OF 405 · ETH-069 · ETHICS — CONFLICTS · CORRECT: B

An LLP must not allow a person who recommends, employs, or pays the LLP to:

✗ A. Pay the fee

✓ **B. Direct or regulate the LLP's professional judgment in rendering services to the client**

✗ C. Refer clients

✗ D. Communicate with the client directly

Why: Under RPC 5.4 principles, an LLP must exercise independent professional judgment and not permit a third party who pays or refers to direct or regulate the LLP's judgment on the client's behalf. Third-party payment requires client consent and protected independence.

Authority: Colo. LLP RPC 5.4 [verify]; Colo. LLP RPC 1.8(f) [verify]

QUESTION 340 OF 405 · ETH-070 · ETHICS — CONFLICTS · CORRECT: B

Third-party payment of an LLP's fee is permitted if:

✗ A. The payor signs the fee agreement as guarantor

✓ **B. The client gives informed consent, there is no interference with the LLP's independence, and confidentiality is protected**

✗ C. The payor controls the case

✗ D. It is secret

Why: RPC 1.8(f) allows a third party to pay the fee if the client gives informed consent, the payor does not interfere with the LLP's independent judgment or the representation, and client confidentiality is preserved. The client, not the payor, remains in charge.

Authority: Colo. LLP RPC 1.8(f) [verify]

QUESTION 341 OF 405 · ETH-071 · ETHICS — CONFLICTS · CORRECT: B

A former-client conflict can be cured by:

✗ A. The passage of 6 years under the discipline rules

✓ **B. The former client's informed consent, confirmed in writing**

✗ C. Screening the LLP from the new matter

✗ D. The new client's consent only

Why: A former-client conflict under RPC 1.9 may be cured only by the former client's informed consent confirmed in writing. The new client's consent is not sufficient because the duty runs to the former client. Without the former client's waiver, the LLP must decline.

Authority: Colo. LLP RPC 1.9(a) [verify]

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QUESTION 342 OF 405 · ETH-072 · ETHICS — CONFLICTS · CORRECT: B

Where two prospective clients consult an LLP about opposing sides of the same dispute, the LLP:

✗ A. May represent both

✓ **B. May represent at most one, and must protect the confidences of the prospective client not retained**

✗ C. Must represent neither ever

✗ D. May share information between them

Why: Under the prospective-client rule (RPC 1.18) and conflict rules, the LLP cannot represent both sides; it may represent one, but must protect confidential information learned from the prospective client who is not retained, and may be disqualified if it received disqualifying information.

Authority: Colo. LLP RPC 1.18 [verify]; Colo. LLP RPC 1.7 [verify]

QUESTION 343 OF 405 · ETH-073 · ETHICS — CONFLICTS · CORRECT: B

An LLP's duty of loyalty primarily protects:

✗ A. The opposing party

✓ **B. The client's interests against competing loyalties and the LLP's self-interest**

✗ C. The integrity of the tribunal

✗ D. The firm's collective interests

Why: The conflict rules safeguard the client's right to the LLP's loyalty and independent judgment, free from competing duties to others or the LLP's own interests. Loyalty and independent judgment are core to the professional relationship.

Authority: Colo. LLP RPC 1.7 cmt. [verify]

QUESTION 344 OF 405 · ETH-074 · ETHICS — CONFLICTS · CORRECT: B

If an LLP cannot reasonably believe they can competently and diligently represent each client, the conflict is:

✗ A. Consentable

✓ **B. Non-consentable, so the LLP must decline or withdraw even if clients would consent**

✗ C. Waivable by the court

✗ D. Cured by withdrawing from the smaller matter

Why: A threshold for consent is the LLP's reasonable belief that it can provide competent and diligent representation to each affected client. If that belief is not reasonable, the conflict is non-consentable and the LLP cannot proceed regardless of client willingness.

Authority: Colo. LLP RPC 1.7(b)(1) [verify]

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QUESTION 345 OF 405 · ETH-075 · ETHICS — CONFLICTS · CORRECT: B

The safest practice when a potential conflict is unclear is to:

✗ A. Proceed while researching the conflict in parallel

✓ **B. Analyze under RPC 1.7/1.9, document the analysis, and obtain informed written consent or decline**

✗ C. Ask the client to waive orally

✗ D. Let the conflict resolve itself

Why: When in doubt, the LLP should carefully analyze the conflict rules, document the analysis, and either obtain proper informed written consent (if consentable) or decline/withdraw. Conservative conflict management protects clients and the LLP's license.

Authority: Colo. LLP RPC 1.7 [verify]; Colo. LLP RPC 1.9 [verify]

QUESTION 346 OF 405 · ETH-076 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Client funds an LLP holds must be:

✗ A. Mixed with the LLP's funds

✓ **B. Kept in a separate trust account, not commingled with the LLP's own funds**

✗ C. Kept in cash in the office

✗ D. Given to the court

Why: Client and third-party funds must be held in a separate trust account (in Colorado, a COLTAF account where applicable) and kept separate from the LLP's business and personal funds. Safekeeping property rules prohibit commingling.

Authority: Colo. LLP RPC 1.15A [verify]

QUESTION 347 OF 405 · ETH-077 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Commingling occurs when an LLP:

✗ A. Keeps client funds separate

✓ **B. Mixes client trust funds with the LLP's own operating or personal funds**

✗ C. Refunds unearned fees

✗ D. Issues a receipt

Why: Commingling is mixing client/third-party trust funds with the LLP's own funds. It is prohibited even if no client ultimately loses money, because it endangers client funds and obscures records. Misappropriation (using client funds) is even more serious.

Authority: Colo. LLP RPC 1.15A [verify]

QUESTION 348 OF 405 · ETH-078 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Unearned advance fees should be:

✗ A. Deposited in the operating account

✓ **B. Held in trust until earned, then transferred as earned**

✗ C. Spent immediately

✗ D. Refunded only at the end

Why: Unearned advance fees are client funds that must be deposited in trust and withdrawn only as they are earned. Transferring unearned fees to the operating account, or treating them as the LLP's own before earning them, violates the safekeeping rules.

Authority: Colo. LLP RPC 1.15A [verify]

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QUESTION 349 OF 405 · ETH-079 · ETHICS — TRUST ACCOUNTING · CORRECT: B

An LLP must maintain trust-account records and:

✗ A. Discard them yearly

✓ **B. Keep complete records and render appropriate accountings to clients**

✗ C. Share them publicly

✗ D. Reconcile only when the client requests an accounting

Why: The rules require complete records of trust account funds and other property, regular reconciliation, and appropriate accountings to clients. Records must generally be retained for a set period after the representation ends. Sloppy recordkeeping is itself a violation.

Authority: Colo. LLP RPC 1.15D [verify]

QUESTION 350 OF 405 · ETH-080 · ETHICS — TRUST ACCOUNTING · CORRECT: B

When a client and a third party both claim trust funds the LLP holds, the LLP must:

✗ A. Keep nothing back and pay the client immediately

✓ **B. Keep the disputed funds separate in trust until the dispute is resolved**

✗ C. Keep the funds as a fee

✗ D. Keep the funds only until they can be sent to the state

Why: If two or more persons claim an interest in funds the LLP holds, the LLP must keep the disputed portion separate until the dispute is resolved, distributing the undisputed portion. The LLP cannot unilaterally resolve the dispute in its own or one claimant's favor.

Authority: Colo. LLP RPC 1.15A(c) [verify]

QUESTION 351 OF 405 · ETH-081 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Prompt delivery of funds the client is entitled to receive is:

✗ A. Required only for amounts above $1,000

✓ **B. Required; the LLP must promptly deliver funds or property the client is entitled to and account for them**

✗ C. Delayed until year-end

✗ D. The bank's job

Why: On receiving funds or property in which a client or third person has an interest, the LLP must promptly notify them and promptly deliver what they are entitled to receive, with an accounting on request. Delay in disbursing client funds is a common violation.

Authority: Colo. LLP RPC 1.15A(b) [verify]

QUESTION 352 OF 405 · ETH-082 · ETHICS — TRUST ACCOUNTING · CORRECT: B

An LLP's own funds may be placed in the trust account only:

✗ A. Up to 10% of the account balance

✓ **B. In a limited amount necessary to pay bank service charges or fees, as permitted**

✗ C. Only with OARC's written approval

✗ D. To hide income

Why: An LLP may deposit its own funds in the trust account only in an amount reasonably necessary to pay bank charges (or as otherwise permitted). Beyond that narrow exception, the LLP's funds must stay out of the trust account to avoid commingling.

Authority: Colo. LLP RPC 1.15A(b) [verify]

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QUESTION 353 OF 405 · ETH-083 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Misappropriating client trust funds, even temporarily, is:

✗ A. A minor recordkeeping issue

✓ **B. Among the most serious violations, often resulting in significant discipline up to disbarment**

✗ C. Permitted if repaid

✗ D. Only a civil matter

Why: Knowing misappropriation of client funds is among the gravest disciplinary offenses and frequently results in disbarment, even if the funds are later replaced. Trust-account integrity is treated as fundamental to public protection.

Authority: Colo. LLP RPC 1.15A [verify]; Colo. LLP RPC 8.4(c) [verify]

QUESTION 354 OF 405 · ETH-084 · ETHICS — TRUST ACCOUNTING · CORRECT: B

COLTAF (interest-bearing pooled trust) accounts are used for:

✗ A. Nominal amounts of the LLP's own profit

✓ **B. Nominal or short-term client funds, with interest directed to the foundation supporting legal services**

✗ C. Nominal filing-fee advances held longer than a year

✗ D. Nominal fees the LLP has earned but not yet collected

Why: Pooled interest-bearing trust accounts (COLTAF) hold client funds that are nominal in amount or to be held for a short time; the interest is remitted to the foundation that funds civil legal aid. Larger or longer-held funds may warrant a separate interest-bearing account for the client.

Authority: Colo. LLP RPC 1.15B [verify]

QUESTION 355 OF 405 · ETH-098 · ETHICS — TRUST ACCOUNTING · CORRECT: B

Failing to reconcile the trust account regularly:

✗ A. Is acceptable

✓ **B. Violates recordkeeping duties and can mask shortages or commingling**

✗ C. Is the bank's responsibility

✗ D. Only matters at audit

Why: Regular reconciliation of the trust account is required; failing to reconcile can hide shortages, errors, or misappropriation and is itself a recordkeeping violation. Diligent trust accounting protects client funds and the LLP.

Authority: Colo. LLP RPC 1.15D [verify]

QUESTION 356 OF 405 · ETH-085 · ETHICS — CANDOR · CORRECT: B

Under LLP RPC 3.3, an LLP must not:

✗ A. Make any argument

✓ **B. Knowingly make a false statement of fact or law to a tribunal or fail to correct one**

✗ C. Cite authority

✗ D. Cite unpublished decisions

Why: Candor toward the tribunal prohibits knowingly making a false statement of fact or law to the court or failing to correct a material false statement previously made. The LLP is an officer of the court with heightened honesty duties to the tribunal.

Authority: Colo. LLP RPC 3.3(a)(1) [verify]

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QUESTION 357 OF 405 · ETH-086 · ETHICS — CANDOR · CORRECT: B

An LLP must disclose to the tribunal:

✗ A. Adverse facts known from any source

✓ B. Legal authority in the controlling jurisdiction known to be directly adverse and not disclosed by opposing counsel

✗ C. Only favorable authority

✗ D. Opposing strategy

Why: RPC 3.3(a)(2) requires disclosing directly adverse controlling legal authority known to the LLP that opposing counsel has not disclosed. The duty of candor requires the court not be misled about the governing law, even when it hurts the client's position.

Authority: Colo. LLP RPC 3.3(a)(2) [verify]

QUESTION 358 OF 405 · ETH-087 · ETHICS — CANDOR · CORRECT: B

If an LLP comes to know a client or witness offered material false evidence, the LLP must:

✗ A. Preserve confidentiality and say nothing to the tribunal

✓ B. Take reasonable remedial measures, including, if necessary, disclosure to the tribunal

✗ C. Withdraw silently

✗ D. Coach the witness

Why: RPC 3.3(a)(3) requires reasonable remedial measures—first remonstrating with the client/witness, then, if needed, disclosing to the tribunal—to address material false evidence. These duties continue to the conclusion of the proceeding and can override confidentiality.

Authority: Colo. LLP RPC 3.3(a)(3) [verify]

QUESTION 359 OF 405 · ETH-088 · ETHICS — CANDOR · CORRECT: B

In an ex parte proceeding, the LLP must:

✗ A. Present only the client's side

✓ B. Inform the tribunal of all material facts known, even adverse ones, to enable an informed decision

✗ C. Hide adverse facts

✗ D. Argue aggressively only

Why: RPC 3.3(d) imposes a heightened duty in ex parte proceedings: because the opposing side is absent, the LLP must disclose all material facts known that will enable the tribunal to make an informed decision, whether or not the facts are adverse.

Authority: Colo. LLP RPC 3.3(d) [verify]

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QUESTION 360 OF 405 · ETH-093 · ETHICS — CANDOR · CORRECT: B

The duty of candor under RPC 3.3 continues:

✗ A. Only until a ruling

✓ **B. Until the conclusion of the proceeding, and applies even if compliance requires disclosing otherwise confidential information**

✗ C. Indefinitely after appeal

✗ D. Only during opening statements

Why: The candor obligations, including the duty to take remedial measures for false evidence, continue to the conclusion of the proceeding and apply even if compliance requires revealing information otherwise protected by RPC 1.6. This is a notable override of confidentiality.

Authority: Colo. LLP RPC 3.3(c) [verify]

QUESTION 361 OF 405 · ETH-100 · ETHICS — CANDOR · CORRECT: B

If correcting false evidence would reveal client confidences, the LLP:

✗ A. Must stay silent

✓ **B. Must still take reasonable remedial measures, as candor to the tribunal can override confidentiality**

✗ C. Must withdraw and say nothing

✗ D. May ignore the falsity

Why: The duty of candor requires remedial measures even when doing so reveals information otherwise protected by confidentiality. After remonstrating with the client fails, the LLP may have to disclose to the tribunal. This override is a frequently tested interplay.

Authority: Colo. LLP RPC 3.3(c) [verify]; Colo. LLP RPC 1.6 [verify]

QUESTION 362 OF 405 · ETH-089 · ETHICS — FAIRNESS · CORRECT: B

Under LLP RPC 3.4, an LLP must not:

✗ A. Object to evidence

✓ **B. Unlawfully obstruct access to or alter, destroy, or conceal evidence**

✗ C. Prepare witnesses lawfully

✗ D. Make lawful discovery requests

Why: Fairness to the opposing party and counsel prohibits unlawfully obstructing access to evidence or unlawfully altering, destroying, or concealing material with evidentiary value, and counseling others to do so. Evidence tampering is a serious violation.

Authority: Colo. LLP RPC 3.4(a) [verify]

QUESTION 363 OF 405 · ETH-090 · ETHICS — FAIRNESS · CORRECT: B

Falsifying evidence or assisting a witness to testify falsely:

✗ A. Is zealous advocacy

✓ **B. Violates the fairness and candor rules**

✗ C. Is permitted if it helps the client

✗ D. Is a fee issue

Why: RPC 3.4(b) prohibits falsifying evidence, counseling or assisting a witness to testify falsely, or offering an unlawful inducement to a witness. Honest advocacy is required; manufacturing or corrupting evidence is misconduct.

Authority: Colo. LLP RPC 3.4(b) [verify]

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QUESTION 364 OF 405 · ETH-091 · ETHICS — FAIRNESS · CORRECT: B

Knowingly disobeying an obligation under the rules of a tribunal:

✗ A. Is allowed if strategic

✓ **B. Violates RPC 3.4 unless based on an open, good-faith assertion that no valid obligation exists**

✗ C. Is encouraged

✗ D. Is only a contempt issue

Why: RPC 3.4(c) prohibits knowingly disobeying an obligation under the rules of a tribunal, except for an open refusal based on a good-faith assertion that no valid obligation exists. Compliance with court rules and orders is required even while preserving objections.

Authority: Colo. LLP RPC 3.4(c) [verify]

QUESTION 365 OF 405 · ETH-095 · ETHICS — FAIRNESS · CORRECT: B

In pretrial discovery, an LLP must not:

✗ A. Respond to requests

✓ **B. Make a frivolous discovery request or fail to make a reasonably diligent effort to comply with a proper request**

✗ C. Object on valid grounds

✗ D. Seek a protective order

Why: RPC 3.4(d) prohibits frivolous discovery requests and failing to make reasonably diligent efforts to comply with legally proper discovery requests by the opposing party. Discovery abuse on either side violates the fairness rule.

Authority: Colo. LLP RPC 3.4(d) [verify]

QUESTION 366 OF 405 · ETH-099 · ETHICS — FAIRNESS · CORRECT: B

Requesting a third party (other than a client's relative or agent) to refrain from voluntarily giving relevant information to another party is:

✗ A. Always allowed

✓ **B. Generally prohibited unless the person is a relative/employee/agent and their interests won't be harmed**

✗ C. Permitted for any witness the client identifies

✗ D. A confidentiality duty

Why: RPC 3.4(f) generally prohibits asking a person other than a client to refrain from voluntarily giving relevant information to another party, except where the person is a relative, employee, or agent of a client and the LLP reasonably believes their interests will not be adversely affected.

Authority: Colo. LLP RPC 3.4(f) [verify]

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QUESTION 367 OF 405 · ETH-092 · ETHICS — TRIBUNAL · CORRECT: B

During trial, an LLP must not:

✗ A. Make objections

✓ **B. Allude to irrelevant or unsupported matters or assert personal knowledge of facts in issue (except when testifying)**

✗ C. Cross-examine

✗ D. Argue inferences from evidence

Why: RPC 3.4(e) prohibits, in trial, alluding to matters not reasonably believed relevant or that will not be supported by admissible evidence, and asserting personal knowledge of facts in issue (except when testifying) or stating a personal opinion on credibility or the justness of the cause.

Authority: Colo. LLP RPC 3.4(e) [verify]

QUESTION 368 OF 405 · ETH-094 · ETHICS — TRIBUNAL · CORRECT: B

Improperly influencing a judge, juror, or court official is:

✗ A. Acceptable networking

✓ **B. Prohibited; an LLP must not seek to influence them by means prohibited by law**

✗ C. Required advocacy

✗ D. A fee matter

Why: RPC 3.5 prohibits seeking to influence a judge, juror, prospective juror, or other official by means prohibited by law, and prohibits improper ex parte communications. Maintaining the integrity of the tribunal is essential.

Authority: Colo. LLP RPC 3.5 [verify]

QUESTION 369 OF 405 · ETH-096 · ETHICS — TRIBUNAL · CORRECT: B

Meritorious claims and contentions (RPC 3.1) require that:

✗ A. Any claim may be filed

✓ **B. There be a non-frivolous basis in law and fact for the positions asserted**

✗ C. Claims always succeed

✗ D. Only the client decides merit

Why: RPC 3.1 prohibits asserting frivolous claims or defenses; there must be a basis in law and fact that is not frivolous, including a good-faith argument for extension or change of existing law. This parallels the civil good-faith filing requirements that apply to LLPs.

Authority: Colo. LLP RPC 3.1 [verify]

QUESTION 370 OF 405 · ETH-097 · ETHICS — TRIBUNAL · CORRECT: B

Expediting litigation (RPC 3.2) requires the LLP to:

✗ A. Delay for advantage

✓ **B. Make reasonable efforts to expedite litigation consistent with the client's interests**

✗ C. File endless motions

✗ D. Oppose all continuance requests from either side

Why: RPC 3.2 requires reasonable efforts to expedite litigation consistent with the client's legitimate interests. Dilatory tactics used merely for delay or to harass violate the rule; legitimate scheduling needs are permissible.

Authority: Colo. LLP RPC 3.2 [verify]

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QUESTION 371 OF 405 · ETH-101 · ETHICS — ADVERTISING · CORRECT: B

Under LLP RPC 7.1, an LLP must not:

✗ A. Advertise at all

✓ **B. Make a false or misleading communication about the LLP or the LLP's services**

✗ C. Use a website

✗ D. List practice areas

Why: RPC 7.1 prohibits false or misleading communications about the LLP or its services. A communication is misleading if it contains a material misrepresentation or omits a fact necessary to make the statement, considered as a whole, not materially misleading.

Authority: Colo. LLP RPC 7.1(a) [verify]

QUESTION 372 OF 405 · ETH-102 · ETHICS — ADVERTISING · CORRECT: B

An LLP's advertising must:

✗ A. Imply attorney status

✓ **B. Identify that the LLP holds a limited license**

✗ C. Hide the LLP designation

✗ D. Promise outcomes

Why: LLPs must identify their limited-license status in advertising so the public is not misled into believing the LLP is a licensed attorney. Failing to disclose the limited license can render a communication misleading and is a violation.

Authority: Colo. LLP RPC 7.1 [verify]

QUESTION 373 OF 405 · ETH-109 · ETHICS — ADVERTISING · CORRECT: B

Claiming to be a specialist or 'certified' when not:

✗ A. May be made freely if the claim appears only on social media

✓ **B. May be misleading unless the certification is from an approved organization and disclosed properly**

✗ C. May be required in any advertisement

✗ D. May be treated as a fee issue rather than an advertising one

Why: Statements about fields of practice or specialization must not be false or misleading; claims of certification generally require an approved certifying organization and appropriate disclosure. Misleading specialization claims violate RPC 7.1.

Authority: Colo. LLP RPC 7.1 [verify]; Colo. LLP RPC 7.2 [verify]

QUESTION 374 OF 405 · ETH-103 · ETHICS — FIRM NAME · CORRECT: B

An LLP-only firm (no lawyers) must:

✗ A. Use any name it likes

✓ **B. Include the words 'Licensed Legal Paraprofessional(s)' in the firm name**

✗ C. Use 'and Associates'

✗ D. Use 'Law Offices of'

Why: Under LLP RPC 7.1(b), an LLP practicing in a firm without lawyers must use the words 'Licensed Legal Paraprofessional(s)' in the firm name. This ensures the public understands the nature of the practice and the limited license.

Authority: Colo. LLP RPC 7.1(b) [verify]

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QUESTION 375 OF 405 · ETH-104 · ETHICS — FIRM NAME · CORRECT: B

A solo LLP whose firm name suggests multiple practitioners:

✗ A. Is always fine

✓ **B. May need to clarify, to avoid misleading the public about the number of practitioners**

✗ C. Must add 'Inc.'

✗ D. Cannot practice solo

Why: While an LLP-only firm must include 'Licensed Legal Paraprofessional(s),' the LLP must also avoid misleading the public—e.g., disclosing whether the LLP practices alone if the name implies multiple practitioners. The overarching standard is not making misleading communications.

Authority: Colo. LLP RPC 7.1 [verify]

QUESTION 376 OF 405 · ETH-105 · ETHICS — FIRM NAME · CORRECT: B

The exact words 'Licensed Legal Paraprofessional(s)' must appear:

✗ A. In the firm's URL and email

✓ **B. In the business/firm name, though not necessarily within the URL or email address**

✗ C. Only in engagement letters, not public materials

✗ D. Only on business cards

Why: The required words must be part of the firm's business name; they are not required to appear within the firm's website URL or email address. The key is that the name itself conveys the LLP status truthfully.

Authority: Colo. LLP RPC 7.1(b) [verify]

QUESTION 377 OF 405 · ETH-106 · ETHICS — COURT FILINGS · CORRECT: B

In all court filings, an LLP must:

✗ A. Omit their status

✓ **B. Use the LLP designation to identify themselves as a licensed legal paraprofessional**

✗ C. Sign as an attorney

✗ D. Use only initials

Why: LLPs must use the LLP designation in all court filings so the court and parties know the signer is a licensed legal paraprofessional, not an attorney. This is part of the duty not to mislead about the limited license.

Authority: Colo. LLP RPC 7.1 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 378 OF 405 · ETH-107 · ETHICS — REGISTRATION NUMBERS · CORRECT: B

How can the public distinguish an LLP's registration number from an attorney's?

✗ A. They are identical

✓ **B. LLPs have six-digit numbers beginning with 6; attorneys have five-digit numbers**

✗ C. LLPs have no number

✗ D. Color coding

Why: LLP registration numbers are six digits beginning with the numeral 6, whereas attorney registration numbers are five digits. This provides a quick public identifier of the practitioner's license type.

Authority: C.R.C.P. 207 [verify]

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QUESTION 379 OF 405 · ETH-108 · ETHICS — SOLICITATION · CORRECT: B

Live, in-person solicitation of a prospective client for pecuniary gain is:

✗ A. Always permitted

✓ **B. Generally restricted, similar to the attorney solicitation rules**

✗ C. Permitted if the person first contacted the firm's website

✗ D. Unregulated

Why: RPC 7.3 restricts live person-to-person solicitation when a significant motive is pecuniary gain, with exceptions (e.g., other professionals or persons with a family/prior relationship). The anti-solicitation rules protect against overreaching of vulnerable prospects.

Authority: Colo. LLP RPC 7.3 [verify]

QUESTION 380 OF 405 · ETH-110 · ETHICS — UPL · CORRECT: B

For an LLP, practicing beyond the authorized scope constitutes:

✗ A. Zealous advocacy

✓ **B. Unauthorized practice and professional misconduct**

✗ C. A billing error

✗ D. A civil matter between the LLP and the client only

Why: Exceeding the authorized scope of practice in C.R.C.P. 207.1 is unauthorized practice and professional misconduct. The carve-out list effectively defines the UPL line for LLPs; staying within scope is both a practice and an ethics obligation.

Authority: C.R.C.P. 207.1 [verify]; Colo. LLP RPC 5.5 [verify]

QUESTION 381 OF 405 · ETH-111 · ETHICS — UPL · CORRECT: B

An LLP may assist on an out-of-scope matter only:

✗ A. With the client's informed written consent

✓ **B. Under the supervision of a licensed attorney**

✗ C. If the client insists

✗ D. If no one objects

Why: An LLP may work on matters outside the authorized scope only under the supervision of a licensed attorney (as a paralegal would). Independent handling of out-of-scope matters is unauthorized practice.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 382 OF 405 · ETH-112 · ETHICS — SUPERVISION · CORRECT: B

An LLP who employs non-licensed assistants must:

✗ A. Let them practice law

✓ **B. Make reasonable efforts to ensure their conduct is compatible with the LLP's professional obligations**

✗ C. Answer only for conduct the LLP directed in writing

✗ D. Delegate legal judgment to them

Why: Under RPC 5.3 principles, an LLP with managerial or supervisory authority must make reasonable efforts to ensure that nonlicensed assistants' conduct is compatible with the LLP's professional obligations, and is responsible for their misconduct in defined circumstances.

Authority: Colo. LLP RPC 5.3 [verify]

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QUESTION 383 OF 405 · ETH-113 · ETHICS — DISCIPLINE · CORRECT: B

LLPs are subject to discipline through:

✗ A. A separate, lenient system

✓ **B. The Office of Attorney Regulation Counsel using the attorney discipline and disability procedures**

✗ C. No oversight

✗ D. Only client lawsuits

Why: LLPs are regulated by the same Office of Attorney Regulation Counsel and are subject to the attorney discipline and disability procedural rules. Serious misconduct can result in sanctions up to suspension or revocation of the LLP license.

Authority: C.R.C.P. 207 [verify]

QUESTION 384 OF 405 · ETH-114 · ETHICS — DISCIPLINE · CORRECT: B

Sanctions for LLP misconduct can include:

✗ A. Only a warning

✓ **B. A range up to suspension or disbarment/revocation, depending on severity**

✗ C. A fine paid to the client only

✗ D. Restitution capped at the fee paid

Why: Discipline ranges from private or public admonition to suspension and revocation (the LLP analog to disbarment), depending on the misconduct, aggravating and mitigating factors. The system parallels attorney discipline.

Authority: C.R.C.P. 207 [verify]

QUESTION 385 OF 405 · ETH-115 · ETHICS — MISCONDUCT · CORRECT: B

Under RPC 8.4, professional misconduct includes:

✗ A. Winning cases

✓ **B. Engaging in dishonesty, fraud, deceit, or misrepresentation**

✗ C. Filing motions

✗ D. Charging fees

Why: RPC 8.4 defines misconduct to include violating the rules, criminal acts reflecting adversely on honesty/fitness, dishonesty/fraud/deceit/misrepresentation, conduct prejudicial to the administration of justice, and more. Honesty and integrity are baseline requirements.

Authority: Colo. LLP RPC 8.4 [verify]

QUESTION 386 OF 405 · ETH-117 · ETHICS — MISCONDUCT · CORRECT: B

Committing a crime involving dishonesty (e.g., theft, fraud):

✗ A. Has no professional effect

✓ **B. Can be a basis for discipline as reflecting adversely on fitness**

✗ C. Is only a personal matter

✗ D. Requires no reporting

Why: A criminal act that reflects adversely on the LLP's honesty, trustworthiness, or fitness can be a basis for professional discipline under RPC 8.4(b), independent of the criminal case outcome. Integrity-related crimes are particularly serious.

Authority: Colo. LLP RPC 8.4(b) [verify]

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QUESTION 387 OF 405 · ETH-116 · ETHICS — REPORTING · CORRECT: B

If an LLP knows another practitioner committed a serious rules violation raising a substantial question about honesty or fitness, the LLP:

✗ A. Must stay silent

✓ **B. May have a duty to report to the appropriate authority**

✗ C. Must confront them only

✗ D. Should ignore it

Why: RPC 8.3 generally requires reporting another practitioner's violation that raises a substantial question as to that person's honesty, trustworthiness, or fitness, subject to confidentiality limits. The reporting duty supports self-regulation of the profession.

Authority: Colo. LLP RPC 8.3 [verify]

QUESTION 388 OF 405 · ETH-118 · ETHICS — BAR ADMISSION/REGISTRATION · CORRECT: B

Making a false statement on an LLP application or registration is:

✗ A. Cured by amendment at the next renewal

✓ **B. Misconduct and grounds for denial or discipline**

✗ C. A matter for the character committee only

✗ D. A fee issue

Why: RPC 8.1 prohibits knowingly making false statements of material fact in connection with a licensing or disciplinary matter and failing to disclose facts necessary to correct misapprehensions. Candor in the admission and registration process is required.

Authority: Colo. LLP RPC 8.1 [verify]

QUESTION 389 OF 405 · ETH-119 · ETHICS — REGISTRATION/CLE · CORRECT: B

To maintain licensure, an LLP must:

✗ A. Retake the exam every 7 years

✓ **B. Complete annual registration and applicable continuing legal education, or face administrative suspension**

✗ C. Renew every 5 years only

✗ D. Pass the exam again

Why: LLPs must complete annual registration and comply with applicable CLE requirements; failure results in administrative suspension of the license. Ongoing compliance is necessary to keep practicing.

Authority: C.R.C.P. 207 [verify]

QUESTION 390 OF 405 · ETH-120 · ETHICS — INDEPENDENCE · CORRECT: B

An LLP must not share legal fees with a nonlicensed person or let a nonlicensed person:

✗ A. Receive a year-end bonus from firm profits

✓ **B. Own or control the LLP practice or direct professional judgment, except as the rules permit**

✗ C. Answer phones

✗ D. Schedule clients

Why: RPC 5.4 protects professional independence by restricting fee-sharing with nonlicensed persons and nonlicensed ownership/control of the practice, so that professional judgment is not compromised by nonlicensed interests, subject to limited exceptions.

Authority: Colo. LLP RPC 5.4 [verify]

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QUESTION 391 OF 405 · ETH-121 · ETHICS — MALPRACTICE INSURANCE · CORRECT: B

Regarding malpractice insurance, LLPs must:

✗ A. Publicly certify that they carry a policy at all times

✓ B. Publicly disclose whether they carry it, as part of annual registration (it is not currently mandated)

✗ C. Publicly disclose nothing, telling only clients who ask in writing

✗ D. Publicly certify a minimum of $1 million in coverage

Why: LLPs are not currently required to carry malpractice insurance (as Colorado attorneys are not), but they must publicly disclose whether they carry it as part of annual registration. Disclosure lets the public make informed choices.

Authority: C.R.C.P. 207 [verify]

QUESTION 392 OF 405 · ETH-122 · ETHICS — WITHDRAWAL · CORRECT: B

An LLP must withdraw from a representation when:

✗ A. The client is difficult

✓ B. Continuing would violate the rules or law, or the LLP's condition materially impairs the representation

✗ C. Fees are unpaid for a day

✗ D. The case is hard

Why: RPC 1.16(a) requires withdrawal when the representation would violate the rules or law, the LLP's physical or mental condition materially impairs representation, or the LLP is discharged. Permissive withdrawal is allowed on other grounds if the client's interests are protected.

Authority: Colo. LLP RPC 1.16(a) [verify]

QUESTION 393 OF 405 · ETH-123 · ETHICS — WITHDRAWAL · CORRECT: B

On withdrawal, the LLP must:

✗ A. Keep the file as leverage

✓ B. Take steps to protect the client, including notice, returning the file/property, and refunding unearned fees

✗ C. Destroy records

✗ D. Disclose confidences

Why: Upon termination, the LLP must take reasonably practicable steps to protect the client's interests—reasonable notice, time to obtain other counsel, surrendering papers and property, and refunding unearned fees. Court permission may be required to withdraw from a pending case.

Authority: Colo. LLP RPC 1.16(d) [verify]

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QUESTION 394 OF 405 · ETH-124 · ETHICS — UPL IDENTIFICATION · CORRECT: B

Holding oneself out as able to handle a matter clearly outside LLP scope (e.g., a criminal defense) is:

✗ A. Permissible marketing

✓ **B. A misleading communication and potential unauthorized practice**

✗ C. Required disclosure

✗ D. A trust issue

Why: Advertising or holding out the ability to handle matters outside the LLP's authorized scope is both misleading under RPC 7.1 and potential unauthorized practice. LLPs must accurately represent the limited services they may lawfully provide.

Authority: Colo. LLP RPC 7.1 [verify]; C.R.C.P. 207.1 [verify]

QUESTION 395 OF 405 · ETH-125 · ETHICS — SCOPE DISCLOSURE RECAP · CORRECT: B

The recurring ethical theme unique to LLP practice is:

✗ A. Maximizing fees

✓ **B. Accurately disclosing the limited license and advising clients of scope limits**

✗ C. Avoiding court

✗ D. Maintaining a lower fee schedule than attorneys

Why: Across advertising, filings, and client communication, LLPs must accurately disclose their limited license and advise clients of scope limits so clients can decide whether to engage an attorney. This transparency is the throughline of LLP ethics.

Authority: Colo. LLP RPC 7.1 [verify]; Colo. LLP RPC 1.2 [verify]

QUESTION 396 OF 405 · ETH-126 · ETHICS — MIXED · CORRECT: B

An LLP discovers mid-hearing that a discrete trust-valuation issue (a carve-out) has become central. The LLP should:

✗ A. Argue the trust issue anyway

✓ **B. Advise the client to obtain an attorney for that issue and continue on in-scope matters**

✗ C. Withdraw entirely and keep the fee

✗ D. Ask the judge to ignore it

Why: The trust-valuation issue is a scope carve-out and likely beyond competence; the LLP must advise the client to consult an attorney for it while continuing in-scope work under C.R.C.P. 207.1(i). This blends competence (1.1), scope-disclosure (1.2), and the rule's carve-outs.

Authority: C.R.C.P. 207.1 [verify]; Colo. LLP RPC 1.1 [verify]

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QUESTION 397 OF 405 · ETH-127 · ETHICS — MIXED · CORRECT: B

Both spouses, who are amicable, ask one LLP to prepare and file their uncontested divorce and split the fee. The LLP should:

✗ A. Represent both to save them money

✓ **B. Represent at most one (with disclosure) or neither, because joint representation of opposing parties in the same litigation is barred**

✗ C. Represent both with a written waiver

✗ D. Have them flip a coin

Why: Spouses are opposing parties in the same litigation, so joint representation is a non-consentable concurrent conflict. The LLP may represent one with appropriate disclosure that the other is unrepresented, or decline both. A fee split does not cure the conflict.

Authority: Colo. LLP RPC 1.7(b)(3) [verify]

QUESTION 398 OF 405 · ETH-128 · ETHICS — MIXED · CORRECT: B

An LLP receives a $3,000 advance fee. The proper handling is to:

✗ A. Deposit it in the operating account and spend it

✓ **B. Deposit it in the trust account and withdraw amounts only as earned**

✗ C. Treat it as a nonrefundable gift

✗ D. Give it to the court

Why: Unearned advance fees are client funds held in trust and withdrawn only as earned; unearned amounts are refundable. Depositing the advance into the operating account or spending it before earning it is commingling/misappropriation.

Authority: Colo. LLP RPC 1.15A [verify]; Colo. LLP RPC 1.5 [verify]

QUESTION 399 OF 405 · ETH-129 · ETHICS — MIXED · CORRECT: B

During a hearing, the LLP's client testifies to something the LLP knows is false and material. The LLP must:

✗ A. Say nothing to preserve confidentiality

✓ **B. Take reasonable remedial measures, including disclosure to the court if necessary**

✗ C. Withdraw silently and keep the secret

✗ D. Encourage more such testimony

Why: The duty of candor (RPC 3.3) requires reasonable remedial measures for material false testimony—first remonstrating with the client, then, if needed, disclosing to the tribunal—even though this may reveal confidential information. Candor can override confidentiality here.

Authority: Colo. LLP RPC 3.3 [verify]; Colo. LLP RPC 1.6 [verify]

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QUESTION 400 OF 405 · ETH-130 · ETHICS — MIXED · CORRECT: B

An LLP's website states 'Smith Family Law' with no indication of license type. This is:

✗ A. Compliant if the homepage footer links to OARC

✓ B. Potentially misleading; an LLP-only firm must include 'Licensed Legal Paraprofessional(s)' in the name and disclose the limited license

✗ C. Required wording

✗ D. A trust issue

Why: An LLP-only firm must include 'Licensed Legal Paraprofessional(s)' in the firm name and must not imply attorney status. A name like 'Smith Family Law' without disclosure risks misleading the public about the limited license, violating RPC 7.1.

Authority: Colo. LLP RPC 7.1 [verify]

QUESTION 401 OF 405 · ETH-131 · ETHICS — MIXED · CORRECT: B

A client asks the LLP to register an out-of-state custody order and pursue punitive contempt. Both requests are:

✗ A. Within scope

✓ B. Outside scope (carve-outs); the LLP should refer them to an attorney while assisting with in-scope matters

✗ C. Within scope if filed as a single combined motion

✗ D. Trust-accounting issues

Why: Registration of a foreign order and punitive contempt are both express carve-outs outside an LLP's scope. The LLP must advise the client to obtain an attorney for those tasks, continuing on any in-scope work such as remedial enforcement.

Authority: C.R.C.P. 207.1 [verify]

QUESTION 402 OF 405 · ETH-132 · ETHICS — MIXED · CORRECT: B

An LLP wants to enter a business deal buying property from a client. The LLP must:

✗ A. Proceed freely

✓ B. Ensure fair terms fully disclosed in writing, advise the client in writing to seek independent counsel, and obtain informed written consent

✗ C. Route the purchase through a third-party LLC

✗ D. Use trust funds

Why: RPC 1.8(a) governs business transactions with clients: fair and reasonable terms, full written disclosure, written advice to seek independent counsel with an opportunity to do so, and the client's informed written consent. These safeguards prevent overreaching.

Authority: Colo. LLP RPC 1.8(a) [verify]

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QUESTION 403 OF 405 · ETH-133 · ETHICS — MIXED · CORRECT: B

An LLP suspects a paralegal in the office is signing the LLP's name to pleadings without review. The LLP must:

✗ A. Report the paralegal to OARC before investigating

✓ B. Supervise to ensure the assistant's conduct complies with the rules and stop the unauthorized conduct

✗ C. Let it continue if efficient

✗ D. Blame the client

Why: Under RPC 5.3, the LLP must make reasonable efforts to ensure nonlicensed assistants' conduct is compatible with the LLP's obligations and is responsible for ordering or ratifying misconduct. Allowing an assistant to sign pleadings unreviewed is a serious supervision failure.

Authority: Colo. LLP RPC 5.3 [verify]

QUESTION 404 OF 405 · ETH-134 · ETHICS — MIXED · CORRECT: B

A client demands the LLP pursue a frivolous motion to harass the other parent. The LLP should:

✗ A. Comply with the client

✓ B. Decline, because RPC 3.1 prohibits frivolous filings and the good-faith requirement applies to LLPs

✗ C. File it under protest

✗ D. Charge extra and file it

Why: RPC 3.1 and the civil good-faith requirements prohibit asserting frivolous positions; the LLP must decline to file a motion lacking a non-frivolous basis, even at the client's insistence. The client controls objectives but cannot direct unethical or frivolous conduct.

Authority: Colo. LLP RPC 3.1 [verify]; Colo. LLP RPC 1.2(d) [verify]

QUESTION 405 OF 405 · ETH-135 · ETHICS — MIXED · CORRECT: B

The unifying duty an LLP owes when any out-of-scope or competence limit appears is to:

✗ A. Maximize billable hours

✓ B. Advise the client of the limitation and the need for an attorney, and act within authorized scope

✗ C. Handle it quietly and bill at a reduced rate

✗ D. Refer the entire case out always

Why: Whenever a carve-out or competence limit arises, the LLP must advise the client of the limitation and that an attorney is needed for that issue, while continuing to provide authorized in-scope services. This duty to disclose limits and stay within scope is the core of LLP ethics.

Authority: C.R.C.P. 207.1 [verify]; Colo. LLP RPC 1.1 [verify]; Colo. LLP RPC 1.2 [verify]

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Part III — The Six Sample Essays

Prompts, model answers, and why each answer scores.

SAMPLE ESSAY 1 — Dissolution with Carve-Outs (scope, child support, property)

The prompt. Dana retains you, a Licensed Legal Paraprofessional, to handle her dissolution of marriage. Dana and her husband, Mark, have one child, age 6. Dana earns $4,500/month gross; Mark earns $7,500/month gross and recently quit a $9,000/month job, saying he wants 'time to think.' The parties own a marital home with equity, Mark has a 401(k) accumulated during the marriage, and Dana inherited $60,000 during the marriage that has grown to $75,000 in a separate account. Mark insists a prenuptial agreement he asked Dana to sign the night before the wedding controls the property division; Dana wants to challenge it. The parties will share parenting roughly equally. Identify the issues, the applicable Colorado law, what you can and cannot do as an LLP, and how each issue should likely be resolved.

Scope issues first. Two matters are carve-outs outside an LLP's authorized scope under C.R.C.P. 207.1: (1) the dispute over the prenuptial (marital) agreement, and (2) preparation of a QDRO to divide Mark's 401(k). You must advise Dana to consult an attorney for the prenup challenge and the QDRO, while you may continue on the in-scope portions under C.R.C.P. 207.1(i). You must also advise Dana of the limits of your license (LLP RPC 1.2 and the duty to disclose scope limits). Jurisdiction/commencement. Confirm 91-day Colorado domicile and the 91-day waiting period before a decree may enter (C.R.S. 14-10-106). Ensure Rule 16.2 mandatory financial disclosures are exchanged (Sworn Financial Statement), noting the continuing duty and the 5-year reallocation remedy for nondisclosure (C.R.C.P. 16.2(e)). Property. Colorado is an equitable-distribution state (C.R.S. 14-10-113). The marital home equity and the marital portion of the 401(k) are marital. Dana's $60,000 inheritance is separate, but the $15,000 appreciation during the marriage is marital (C.R.S. 14-10-113(4)). The prenup's enforceability is outside your scope; refer it out. You may, in scope, address the agreement dividing the home and ordinary accounts, but not the QDRO. Child support. Combined income is under the maintenance cap; run the guideline (C.R.S. 14-10-115). Because the parties share roughly equal time, apply the Parenting Time Table credit to each parent's overnights (C.R.S. 14-10-115(8)). Mark quit a $9,000 job; if he is voluntarily underemployed without an exception (incapacity or caring for a child under 30 months), impute potential income to him based on employment potential and probable earnings (C.R.S. 14-10-115(5)(b)). Add adjustments for child care and the child's health insurance. Maintenance. If requested, run the advisory guideline: 40% of the higher earner's monthly adjusted gross income minus 50% of the lower earner's, applicable because combined income is under $240,000 (C.R.S. 14-10-114). The guideline is advisory; the court must make findings. Remember to compute maintenance first and adjust incomes before the child support worksheet. Conclusion. Proceed in scope on dissolution mechanics, parenting, child support, maintenance, and the ordinary property division; refer the prenup dispute and the QDRO to an attorney; and document your advice to Dana about these scope limits.

Why this answer scores

Graders look for: (1) spotting BOTH carve-outs (prenup and QDRO) and the duty to advise of scope limits; (2) correct property characterization, especially that appreciation of separate property is marital; (3) imputation analysis tied to Mark quitting a higher-paying job, with the exceptions named; (4) running the child support guideline and applying the overnight-based parenting time credit; (5) the advisory maintenance formula and cap, and the maintenance-before-child-support order of operations. Citing C.R.C.P. 207.1, 14-10-113, 14-10-115, and 14-10-114 earns points. A strong answer continues on in-scope work rather than withdrawing entirely. Authority: C.R.C.P. 207.1; C.R.S. 14-10-106; C.R.C.P. 16.2; C.R.S. 14-10-113; C.R.S. 14-10-115; C.R.S. 14-10-114

SAMPLE ESSAY 2 — Post-Decree Relocation and Conflict of Interest

The prompt. Two years ago you, as an LLP, represented Maria in her divorce. Maria is the majority residential parent of the parties' 8-year-old (she has 250 overnights; the father, Tom, has 115). Maria now wants to relocate with the child from Pueblo to Seattle for a job. Tom opposes the move and also claims

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Maria's new partner is 'dangerous' to the child. Tom comes to your office and asks you to represent him in a motion to modify parenting and to stop the relocation. Discuss the ethical issue with Tom's request and the substantive law that governs the relocation and any modification.

Ethics issue first. You previously represented Maria in the same or a substantially related matter, and Tom's interests are materially adverse to hers. Representing Tom would violate the former-client conflict rule (LLP RPC 1.9) absent Maria's informed consent confirmed in writing, which is unlikely and may be unavailable given the direct adversity. You must decline to represent Tom and advise him to seek other counsel. You must also protect Maria's confidences (RPC 1.9(c)). Spot and resolve this before any substantive analysis. Relocation standard. Were the conflict absent, the relocation is post-decree, so the court applies the best-interests factors (C.R.S. 14-10-124) PLUS the additional relocation factors of C.R.S. 14-10-129(2)(c): the reasons for and against the move, the educational and emotional advantages, the impact on the child's relationship with each parent, and whether a realistic plan can preserve that relationship. Under Ciesluk, neither parent bears a presumption and Maria need not prove the move is 'necessary'; the court balances the parties' competing constitutional interests with the child's best interests as the touchstone. Endangerment/safety. Tom's allegation about the new partner triggers the safety analysis. If the child's present or proposed environment endangers physical health or significantly impairs emotional development, the court may restrict parenting time (C.R.S. 14-10-129(1)(b)) and, to change the majority residential parent over objection, the endangerment trigger applies (C.R.S. 14-10-129(2)). Domestic-violence and safety evidence is a mandatory consideration (C.R.S. 14-10-124(4)). Likely resolution/notice. Maria must give written notice of the intended relocation as soon as practicable (C.R.S. 14-10-129(1)(a)(II)). The court will hold a hearing; it may allow the move with a long-distance parenting plan or, if the evidence favors Tom, designate him the majority parent so the child remains in Pueblo. The court cannot enter temporary orders permitting the child's relocation before a full hearing in a contested case. Conclusion. Decline Tom's case due to the RPC 1.9 conflict; advise him to obtain other counsel.

Why this answer scores

Graders reward: (1) immediately spotting and correctly resolving the former-client conflict under RPC 1.9 (decline; protect confidences); (2) identifying this as POST-decree relocation and applying 14-10-129(2)(c) plus best interests with NO presumption (Ciesluk); (3) addressing the endangerment standard for restriction/modification and the mandatory DV consideration; (4) the relocation notice requirement and the limit on temporary relocation orders. A top answer leads with the ethics issue because taking the case would itself be misconduct, then analyzes the substance in the alternative. Authority: Colo. LLP RPC 1.9; C.R.S. 14-10-124; C.R.S. 14-10-129(2)(c); In re Marriage of Ciesluk; C.R.S. 14-10-129(1)(b)

SAMPLE ESSAY 3 — Child Support Modification, Enforcement, and Contempt

The prompt. Your client, Priya, has a child support order requiring the father, Raj, to pay $900/month. Raj has paid nothing for eight months and now owes $7,200 plus interest. Raj recently lost his job but has since started a cash-based side business he does not report. Priya wants the arrears collected and Raj 'put in jail.' She also asks whether the amount can be reduced or increased going forward. Explain the enforcement tools available, the contempt options and their limits for an LLP, and the standard for modifying support.

Arrears are vested. Each unpaid installment became a vested money judgment as it accrued, with statutory interest, and the court generally cannot retroactively forgive accrued arrears (C.R.S. 14-10-122(1)(c)). The $7,200 plus interest is enforceable. Enforcement tools (in scope). You may pursue income assignment/wage withholding (C.R.S. 14-14-111.5), a judgment for arrears, interest, tax-refund intercepts, liens, credit reporting, and license suspension for nonpayment. Because Raj has a cash business, you may need discovery and proof of his actual income and ability to pay. Contempt - scope limit. Remedial contempt (coercive, purgeable - the 'keys to the cell') is within your LLP scope and requires proof of a valid order, Raj's knowledge, his present ability to comply, and willful noncompliance (C.R.C.P. 107). Priya's wish to 'put him in jail' to punish him implicates punitive contempt, which is OUTSIDE an LLP's scope; you must advise Priya to retain an attorney for any punitive-contempt remedy while you pursue remedial contempt and other enforcement. Raj's present ability to pay is the crux: if he genuinely cannot pay he is not in contempt, though arrears still stand; his

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unreported cash income is relevant to ability and willfulness. Modification. Support is modifiable on a substantial and continuing change of circumstances (C.R.S. 14-10-122). A recalculation that changes the guideline amount by 10% or more creates a rebuttable presumption of such a change. Raj's job loss does not self-execute a reduction; he must move to modify, and relief runs only from the filing date. His new (unreported) income may support keeping or increasing support; income may be imputed if he is voluntarily underemployed, and his actual cash earnings count as gross income (C.R.S. 14-10-115). Conclusion. Pursue remedial contempt and the full slate of in-scope enforcement tools; refer any punitive contempt to an attorney; advise Priya that prospective modification requires a motion and the substantial-and-continuing standard.

Why this answer scores

Key graded points: (1) arrears are vested and not retroactively forgivable; (2) the full menu of enforcement tools; (3) the REMEDIAL vs. PUNITIVE contempt distinction and that punitive contempt is outside LLP scope - the signature scope-meets-substance issue; (4) present ability to comply and willfulness as contempt elements, tied to Raj's unreported cash income; (5) the modification standard, the 10% presumption, the file-date rule, and imputation. Cite C.R.S. 14-10-122, 14-10-115, C.R.C.P. 107, and C.R.C.P. 207.1. Authority: C.R.S. 14-10-122; C.R.S. 14-10-115; C.R.C.P. 107; C.R.C.P. 207.1; C.R.S. 14-14-111.5

SAMPLE ESSAY 4 — Allocation of Parental Responsibilities and Domestic Violence

The prompt. In an initial dissolution, your client Sam and the other parent, Alex, dispute parenting of their two children (ages 4 and 9). Sam alleges Alex has been physically abusive to Sam and once 'grabbed' the 9-year-old. Alex denies abuse and seeks joint decision-making and equal parenting time. The 9-year-old has told a counselor she is 'scared' of Alex. Explain how the court will determine parental responsibilities, how the abuse allegations factor in, and what restrictions, if any, the court may impose.

Standard. This is an initial APR determination decided by the best interests of the child (C.R.S. 14-10-124), with the child's safety and physical, mental, and emotional needs as the paramount consideration. Decision-making and parenting time are allocated separately. Best-interests factors. The court weighs the statutory factors: the parents' and (if mature) the children's wishes; the children's adjustment to home, school, and community; the mental and physical health of all individuals; each parent's ability to encourage the children's relationship with the other parent; the past pattern of involvement; and the ability to put the children's needs first. The 9-year-old's expressed fear is relevant if she is sufficiently mature to express reasoned preferences. Domestic violence. Credible evidence of spousal abuse or child abuse must be considered and weighs heavily against joint decision-making (C.R.S. 14-10-124(4)). If credible, Alex's abuse of Sam and the incident with the child make mutual decision-making likely inappropriate, because shared authority can perpetuate control and endanger the family. The court considers the safety of the children and the abused parent. Restrictions. The court may restrict Alex's parenting time only if it finds that parenting time would endanger the children's physical health or significantly impair their emotional development (C.R.S. 14-10-129(1)(b)(I)). If that endangerment standard is met, appropriate tailored restrictions include supervised parenting time or a graduated 'step-up' plan; the restriction should be the least restrictive means of protecting the children. The court may appoint a CFI/PRE to investigate. Conclusion. Likely outcome: if the abuse is credibly shown, sole or primary decision-making to Sam, with Alex's parenting time conditioned or supervised pending safety, all framed by the children's best interests and safety. This matter is within your LLP scope.

Why this answer scores

Graders look for: (1) the best-interests standard for an INITIAL determination and the separate treatment of decision-making and parenting time; (2) the mandatory DV consideration and its strong weight against joint decision-making (14-10-124(4)); (3) the correct ENDANGERMENT standard for any restriction (14-10-129(1)(b)) - not mere best interests - and least-restrictive tailoring (supervised/step-up); (4) the child's maturity as the gate for considering her stated fear; (5) noting CFI/PRE as an investigative tool and that the matter is in LLP scope. Authority: C.R.S. 14-10-124; C.R.S. 14-10-124(4); C.R.S. 14-10-129(1)(b)(I); C.R.S. 14-10-116.5

SAMPLE ESSAY 5 — Maintenance, Property Characterization, and Disclosure

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The prompt. Lee and Jordan are divorcing after a 15-year marriage. Lee earns $10,000/month; Jordan stayed home raising children and now earns $2,500/month part-time. Combined income is under $240,000/year. The marital estate includes a home, retirement accounts, and a brokerage account Lee opened before the marriage worth $50,000 at marriage and $200,000 now (funded partly with marital earnings during the marriage). Jordan suspects Lee has not disclosed a year-end bonus. Analyze maintenance, the characterization of the brokerage account, and Jordan's disclosure concerns.

Maintenance. Because combined income is under $240,000, apply the advisory guideline (C.R.S. 14-10-114): amount = 40% of the higher earner's monthly adjusted gross income minus 50% of the lower earner's = (0.40 x $10,000) - (0.50 x $2,500) = $4,000 - $1,250 = $2,750/month (advisory). For a 15-year marriage the guideline TERM is a percentage of the 180 months married under the statutory schedule. The guideline is advisory; the court must make findings on the statutory factors - including the 15-year duration, Jordan's role as homemaker, the lifestyle during the marriage, Jordan's lower earning capacity and any need for retraining, and the property awarded. A long marriage with a large income disparity supports a substantial award. Brokerage account. The $50,000 Lee brought into the marriage is separate property, but two categories are marital: the appreciation during the marriage on the separate portion (C.R.S. 14-10-113(4)) AND any growth attributable to marital funds contributed during the marriage. Tracing will separate the premarital corpus from the marital appreciation and contributions; the marital component of the $200,000 is divided equitably. Lee bears the burden of tracing the separate portion. Disclosure. Rule 16.2(e) imposes an affirmative, continuing duty of full and honest financial disclosure; the bonus is income and an asset that must be disclosed via the Sworn Financial Statement and supplements. If Lee conceals it, the court may impose sanctions and may reallocate the omitted asset on a motion within 5 years of the decree (C.R.C.P. 16.2(e)(10)), and may draw adverse credibility findings. You should request documentation (pay records, employer statements) to confirm the bonus. Conclusion. Expect meaningful maintenance given the marriage length and disparity; divide the marital portion of the brokerage account after tracing; and pursue full disclosure of the bonus. All issues here are within LLP scope.

Why this answer scores

Graders reward: (1) correct application of the 40%/50% formula AND recognition that it is advisory with required findings, plus the duration tied to a 15-year marriage; (2) precise property analysis - premarital corpus separate, but in-marriage appreciation and marital-funded growth are marital, with Lee bearing the tracing burden; (3) the Rule 16.2 affirmative, continuing disclosure duty and the 5-year reallocation remedy for the hidden bonus; (4) naming the homemaker-contribution and lifestyle factors. Cite 14-10-114, 14-10-113(4), and C.R.C.P. 16.2(e). Authority: C.R.S. 14-10-114; C.R.S. 14-10-113(4); C.R.C.P. 16.2(e); C.R.C.P. 16.2(e)(10)

SAMPLE ESSAY 6 — Parentage, Scope Limits, and Ethics

The prompt. An unmarried client, Robin, asks you to establish that Casey is the legal parent of Robin's 2-year-old and to obtain child support. Casey signed a voluntary acknowledgment of parentage at the child's birth but now claims another man, Pat, is the biological father and wants out. Pat has appeared and also claims to be the father. Robin further asks you to help with a related bankruptcy issue affecting Casey's ability to pay support. Identify the parentage and support issues, the scope limits, and the ethical duties involved.

Acknowledgment of parentage. Casey signed a voluntary acknowledgment, which has the legal effect of a determination of parentage once the rescission window passed (C.R.S. 19-4-105.5). After that period, it may be challenged only on limited grounds such as fraud, duress, or material mistake, and timing/standing limits apply. Casey's later change of mind does not automatically undo the acknowledgment. Scope - multi-party parentage carve-out. Because Pat has appeared and now THREE people are asserting/denying legal parentage (Robin, Casey, and Pat), this is a disputed parentage matter involving more than two parents/alleged parents - a carve-out OUTSIDE your LLP scope under C.R.C.P. 207.1. You must advise Robin to retain an attorney for the contested multi-party parentage determination. A simple two-party parentage action would be in scope, but this is not. Collateral bankruptcy carve-out. The bankruptcy issue affecting Casey's ability to pay is a collateral matter requiring analysis outside your scope (C.R.C.P. 207.1); refer that to appropriate counsel. Note that child support is a non-dischargeable domestic support obligation, but advising on

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bankruptcy is not your role. Support. Once parentage is properly established, the court may order child support, potentially retroactive to birth within statutory limits (C.R.S. 19-4-116; C.R.S. 14-10-115). You could assist with support once an attorney resolves the contested parentage, consistent with working in tandem. Ethics. You must advise Robin of the limits of your license and that an attorney is needed for the multi-party parentage and bankruptcy issues (LLP RPC 1.1 competence; 1.2 scope-disclosure). You may continue on any in-scope work under C.R.C.P. 207.1(i). Maintain confidentiality and avoid any conflict. Conclusion. Refer the contested multi-party parentage and the bankruptcy issue to an attorney; advise Robin of your scope limits; assist with support if and when parentage is resolved.

Why this answer scores

Graders reward: (1) recognizing the acknowledgment's binding effect after the rescission period and the limited grounds/timing to challenge it; (2) spotting the MULTI-PARTY parentage carve-out (more than two claimants) as outside scope - contrast with an in-scope two-party action; (3) the bankruptcy collateral-issue carve-out and that support is non-dischargeable; (4) the duty to advise of scope limits and the ability to continue in-scope work in tandem with an attorney; (5) retroactive support to birth once parentage is established. Cite 19-4-105.5, C.R.C.P. 207.1, and 19-4-116. Authority: C.R.S. 19-4-105.5; C.R.C.P. 207.1; C.R.S. 19-4-116; C.R.S. 14-10-115; Colo. LLP RPC 1.2

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Exhibits — Quick-Reference Study Aids

Exhibit A — Scope & Carve-Out Cheat Sheet

AN LLP MAY (C.R.C.P. 207.1):

• Dissolution, legal separation, declaration of invalidity (pre- and post-decree).

• Establish, enforce, and modify child support; remedial contempt within scope.

• Name changes; protective orders; adult gender-designation changes.

• Initial allocation and modification of parental responsibilities.

• Two-party parentage cases.

• Advise, draft, and file documents; assist in mediation; fully represent clients at hearings (examine witnesses, object, argue).

AN LLP MAY NOT (carve-outs — refer out or work under attorney supervision):

• Registration of foreign orders.

• Punitive contempt under C.R.C.P. 107 (remedial contempt is allowed).

• Contested common-law marriage (existence or date disputed).

• Disputed parentage with more than two parents/claimants.

• Certain non-parent ICWA situations.

• Pre- or post-nuptial (marital) agreements.

• Matters where a party is a trust beneficiary and trust info is relevant; trust value/income disputes.

• Documents to effectuate sale/distribution of a business entity or commercial property.

• Collateral issues — immigration, criminal, bankruptcy, or a QDRO/retirement-division order.

ALWAYS:

• Identify the limited license in advertising and on all court filings.

• Advise the client of scope limits; an LLP may continue in-scope work even if one issue is out of scope (207.1(i)).

Exhibit B — Child Support Worksheet Walkthrough

One calculation for all cases (C.R.S. 14-10-115, as amended by HB25-1159, eff. March 1, 2026):

• 1. Determine each parent's monthly gross income; add for combined income.

• 2. Find the basic obligation on the statutory schedule for combined income and number of children.

• 3. Prorate the basic obligation by each parent's share of combined income.

• 4. Parenting time credit: total basic obligation × each parent's Parenting Time Table percentage (by overnights; one overnight a year qualifies); deduct it from that parent's share.

• 5. Add each parent's share of work-related child care, education costs, health insurance and extraordinary medical expenses; credit the parent who pays them directly.

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• 6. The parent owing more pays the difference, capped at what that parent would owe with no overnights.

Key numbers (verify against current law):

• No 93-overnight switch since March 1, 2026; credit starts at 1 overnight. 10% change = modification presumption. Emancipation age 19.

Exhibit C — Maintenance Guideline Quick-Reference

Advisory formula (combined annual AGI ≤ $240,000):

• Amount = (0.40 × higher monthly AGI) – (0.50 × lower monthly AGI); floor of $0.

• Duration = a percentage of the months married (statutory schedule), starting at 36 months of marriage.

• The guideline is ADVISORY — the court must consider the statutory factors and make findings.

Order of operations & tax:

• Compute maintenance first; subtract maintenance paid from payor income and add to recipient income before child support.

• Post-2018 orders: maintenance is not deductible to payor nor taxable to recipient (federal).

Exhibit D — High-Yield Numbers & Standards

Numbers (verify):

• 91-day domicile; 91-day waiting period; Rule 16.2 reallocation within 5 years.

• Parenting Time Table credit from 1 overnight (no A/B worksheets); 10% modification presumption; emancipation 19.

• Maintenance: 40%/50% formula; $240,000 combined-income cap. LLP reg. numbers: 6 digits starting with 6.

Standards:

• Initial APR → best interests (14-10-124). Restrict parenting time → endangerment (14-10-129(1)(b)).

• Modify decision-making → 14-10-131. Modify support → substantial & continuing change (14-10-122).

• Property → equitable distribution; appreciation of separate property is marital. Relocation post-decree → best interests + 129(2)(c), no presumption (Ciesluk).

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